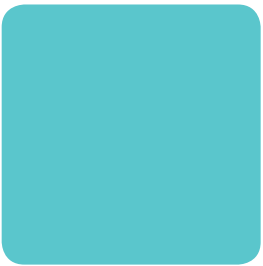


Carlisle District Local Plan



2015-2030

Foreword

I am delighted to endorse the Local Plan. It provides a platform to embark upon the most ambitious levels of growth ever and directly echoes the priorities and vision of the Carlisle Plan 2015 - 2018 which aims to: ‘...work in partnership to further establish our position as the regional centre and focus for investment, ensuring that residents can share in the benefits through increased opportunities and greater choice of jobs, range of housing and a quality environment’.

Carlisle is a very special and diverse place for those who live, base their business, work in, or visit the District. It extends from the Solway Coast to the North Pennines, with the City of Carlisle, with its cathedral and castle, at its heart. There is also an abundance of lowland farmland supporting agricultural and other rural businesses, and many characteristic small towns, villages and hamlets. The World Heritage Site of Hadrian’s Wall strides across it all.

The Local Plan provides the vision, strategy, policies and site allocations that will shape the future of Carlisle District. It provides clear direction on how to meet the challenges we face, such as: climate change; a growing population; and the need to deliver much needed regeneration in specific parts of the City. It also identifies where, when, how and the quantity of new development to be delivered. It will guide future planning documents such as Neighbourhood Development Plans and aims to create inclusive, safe and healthy communities.

The Plan has been shaped with the support and involvement of local communities, landowners, businesses, agencies and many others - all who share the desire to plan for a prosperous future for the District by meeting the need for new homes, a growing economy and the protection of our precious natural environment and outstanding heritage assets over the next 15 years.

Carlisle City Council is now well placed to deliver this Plan, by building on existing community support and working in partnership with business, developers, landowners and infrastructure providers.

I would like to take this opportunity to thank all those who have been involved in the evolution of the Plan; from early consultation to the finished document.



Cllr Colin Glover

Leader of Carlisle City Council

Contents

The Carlisle District Local Plan 2015-2030



1. Introduction	1
------------------------	----------



2. Vision and Objectives	9
Spatial Vision	10
Strategic Objectives	12
Spatial Portrait	15
Key Diagram	24



3. Spatial Strategy and Strategic Policies	25
Policy SP 1: Sustainable Development	26
Policy SP 2: Strategic Growth and Distribution	28
Policy SP 3: Broad Location for Growth: Carlisle South	37
Policy SP 4: Carlisle City Centre and Caldew Riverside	40
Policy SP 5: Strategic Connectivity	45
Policy SP 6: Securing Good Design	48
Policy SP 7: Valuing our Heritage and Cultural Identity	50
Policy SP 8: Green and Blue Infrastructure	53
Policy SP 9: Healthy and Thriving Communities	56
Policy SP 10: Supporting Skilled Communities	60



4. Economy	63
Policy EC 1: Employment Land Allocations	64
Policy EC 2: Primary Employment Areas	67
Policy EC 3: Primary Shopping Areas and Frontages	70
Policy EC 4: Morton District Centre	72
Policy EC 5: District and Local Centres	73
Policy EC 6: Retail and Main Town Centre Uses Outside Defined Centres	75
Policy EC 7: Shop Fronts	77
Policy EC 8: Food and Drink	79
Policy EC 9: Arts, Culture, Tourism and Leisure Development	81
Policy EC 10: Caravan, Camping and Chalet Sites	83
Policy EC 11: Rural Diversification	84
Policy EC 12: Agricultural Buildings	86
Policy EC 13: Equestrian Development	88



5. Housing	91
Policy HO 1: Housing Strategy and Delivery	92
Policy HO 2: Windfall Housing Development	98
Policy HO 3: Housing in Residential Gardens	101
Policy HO 4: Affordable Housing	103
Policy HO 5: Rural Exception Sites	108
Policy HO 6: Other Housing in the Open Countryside	110
Policy HO 7: Housing as Enabling Development	114
Policy HO 8: House Extensions	116
Policy HO 9: Large Houses in Multiple Occupation and the Subdivision of Dwellings	118
Policy HO 10: Housing to Meet Specific Needs	120
Policy HO 11: Gypsy, Traveller and Travelling Showpeople Provision	122
Policy HO 12: Other Uses in Primary Residential Areas	125



6. Infrastructure	127
Policy IP 1: Delivering Infrastructure	128
Policy IP 2: Transport and Development	130
Policy IP 3: Parking Provision	133
Policy IP 4: Broadband Access	135
Policy IP 5: Waste Minimisation and the Recycling of Waste	137
Policy IP 6: Foul Water Drainage on Development Sites	139
Policy IP 7: Carlisle Airport	141
Policy IP 8: Planning Obligations	142



7. Climate Change and Flood Risk	145
Policy CC 1: Renewable Energy	146
Policy CC 2: Energy from Wind	150
Policy CC 3: Energy Conservation, Efficiency and Resilience	155
Policy CC 4: Flood Risk and Development	157
Policy CC 5: Surface Water Management and Sustainable Drainage Systems	161



8. Health, Education and Community	165
Policy CM 1: Health Care Provision	166
Policy CM 2: Educational Needs	168
Policy CM 3: Sustaining Community Facilities and Services	170
Policy CM 4: Planning Out Crime	172
Policy CM 5: Environmental and Amenity Protection	174
Policy CM 6: Cemetery and Burial Grounds Provision	178



9. Historic Environment	179
Policy HE 1: Hadrian's Wall World Heritage Site	180
Policy HE 2: Scheduled Ancient Monuments and Non-Designated Archaeological Assets	182
Policy HE 3: Listed Buildings	184
Policy HE 4: Historic Parks and Gardens	185
Policy HE 5: Historic Battlefields	185
Policy HE 6: Locally Important Heritage Assets	187
Policy HE 7: Conservation Areas	189



10. Green Infrastructure	191
Policy GI 1: Landscapes	192
Policy GI 2: Areas of Outstanding Natural Beauty	194
Policy GI 3: Biodiversity and Geodiversity	196
Policy GI 4: Open Space	200
Policy GI 5: Public Rights of Way	203
Policy GI 6: Trees and Hedgerows	204



11. Monitoring and Implementation	207
--	------------



12. Glossary	211
---------------------	------------

Appendix 1: Sites Allocated within Policy HO 1	227
---	------------

Appendix 2: Local Plan Monitoring Framework	253
--	------------

1 Introduction





Introduction

- 1.1** The Carlisle District Local Plan (2015 – 2030) is at the forefront of shaping how the District, its many settlements and vast rural area will develop between now and 2030. The Plan sets out a long-term spatial vision and strategic objectives to support the development of a thriving District through the identification of land to accommodate new development, and policies to achieve this growth in a positive, managed and sympathetic way, whilst ensuring the timely delivery of the infrastructure necessary to support growth.
- 1.2** The policies and proposals within the Local Plan, and any other adopted local or neighbourhood development plans and supplementary planning documents in operation, are those against which all planning applications within the District will be assessed. Ultimately the aim of the Local Plan is to facilitate sustainable development. It is therefore important to read the Plan as a ‘whole’ i.e. with reference to all the policies that may be relevant, as it is these policies taken collectively which determine what will be regarded as constituting sustainable development. Policies should not be taken out of context and will not be applied in isolation.
- 1.3** The Local Plan operates alongside a Policies Map, which illustrates the policies in the Local Plan(s) which have an area or place specific application, including those sites that are allocated for development and, where appropriate, committed sites that have planning permission. Designations include existing land uses such as areas of housing, employment and the City and other retail centres, and areas of protected land such as the two Areas of Outstanding Natural Beauty and Hadrian’s Wall World Heritage Site and its buffer zone, nature conservation areas, parks and playing pitches, amenity open space and conservation areas.
- 1.4** Allocations identified on the Policies Map should be read in conjunction with the relevant policy in the Local Plan which will set out criteria that any planning applications will need to comply with. By setting out specific land allocations in this way, the Plan provides local communities, land owners, developers and infrastructure providers with a clear indication of the future pattern of development across the District. Inclusion as an allocated site within the Plan indicates that the principle of development on such sites is acceptable.
- 1.5** It is important to acknowledge at the outset that the Local Plan will operate alongside the Cumbria Minerals and Waste Local Plan (MWLP) which contains mineral and waste specific policies for use in determining planning applications for waste or quarry developments across Cumbria. Once the MWLP is adopted it may be necessary to update the Local Plan Policies Map to illustrate Mineral Safeguarding Areas and other relevant designations and/or allocations.

- 1.6** The Local Plan will also operate alongside any neighbourhood development plans brought forward. The concept of neighbourhood development planning was introduced by the Localism Act 2011. It allows communities to develop a vision of what their area should be like and make decisions on where certain types of development should go. They go through a formal preparation process but importantly need to be in line with the strategic policies within the Carlisle District Local Plan. One such plan is currently being progressed in Dalston. The Council will continue to work with and support those pursuing neighbourhood development plans.
- 1.7** Section 206 of the Planning Act 2008 (The Act) confers the power to charge Community Infrastructure Levy (CIL) on certain bodies known as charging authorities. This came into force on 6 April 2010 through the CIL Regulations 2010 (now amended by the CIL (Amendment) Regulations 2011, 2012, 2014 and 2015). This provides the enabling powers for local planning authorities to apply CIL to development proposals to support infrastructure delivery which in turn will support delivery of this Local Plan.
- 1.8** Monitoring is an integral part of the plan making and review process. A series of indicators have been identified to assess the relative effectiveness of the Local Plan with regards to achieving its desired outcomes. The Authority Monitoring Report (AMR) reports on an annual basis the performance of the Local Plan, and in doing so, plays a leading role in identifying the need to review existing policies and proposals.



How the Local Plan has emerged

- 1.9** The Local Plan has been prepared under the Planning and Compulsory Purchase Act 2004 (as amended) and the Town and Country Planning (Local Planning) (England) Regulations 2012.
- 1.10** The Plan has evolved through extensive research and consultation which identified the key issues it needed to address, and determined the best approaches to various challenges and opportunities. Active community involvement at each key stage of plan preparation has helped to mould the Plan and has been undertaken in accordance with the Council's adopted Statement of Community Involvement (SCI), which sets out how the Council will undertake consultation on key planning documents to ensure stakeholders and the community are engaged in the process.
- 1.11** The Plan has also been prepared in accordance with national planning policy and has had regard to other plans and strategies where relevant, including the Carlisle District Sustainable Community Strategy "A Community Plan for Carlisle and District 2011-2016" which was itself informed by extensive public consultation.
- 1.12** The Local Plan has been supported by a comprehensive and robust evidence base proportionate to the key issues it is seeking to address. The majority of these studies focus on Carlisle District specifically, however there are some studies that have been jointly prepared with other Cumbrian authorities or produced by Cumbria County Council. This evidence includes the Infrastructure Delivery Plan (IDP) which identifies the strategic and local infrastructure required to deliver the development proposals outlined in the Local Plan. The IDP will be reviewed and updated throughout the lifetime of the Plan to continually identify and ensure the timely delivery of essential infrastructure.
- 1.13** The Localism Act introduced a Duty to Cooperate, requiring the City Council to work with neighbouring authorities and a wide variety of public and private bodies on cross boundary planning issues and matters of common concern. The Duty to Cooperate ensures that there has been in the past, and will be in the future, a high level of cooperation in the plan making process. Regular liaison meetings have been held with the prescribed bodies under the Act to ensure that strategic cross boundary issues have been identified and addressed as the Plan evolved. Notably, the Council has, and will, continue to work with all neighbouring authorities, Cumbria County Council and other statutory consultees where relevant and necessary. An outcome of this cooperation is that the Plan seeks to recognise the economic, social and environmental linkages with neighbouring areas, and opportunities for joint working and policy development have been identified.

1.14 The plan preparation process has also been informed through a variety of further statutory and non-statutory appraisals and assessments. These include:

Equality Impact Assessment (EQIA) - this process aimed to ensure that the Local Plan has promoted equality and that any aspects which would have resulted in discrimination are addressed. The Plan has been subject to a process of EQIA across all stages of its evolution.

Habitats Regulation Assessment (HRA) - this is the statutory process to assess the potential impacts of the Local Plan on Natura 2000 sites. Natura 2000 sites are of exceptional importance in respect of rare, endangered or vulnerable natural habitats and species within Europe: they include Special Protection Areas (SPAs) designated under the European Union (EU) 'Wild Birds' Directive; Special Areas of Conservation (SACs) designated under the EU 'Habitats Directive'; European Marine Sites (EMS) and Ramsar Sites. As the Habitats Directive applies the precautionary principle, plans can only be adopted if there is likely to be no adverse impact on the integrity of the site(s) in question. In order to comply with the requirements of the Habitats Regulations, a Screening Assessment has been undertaken at all stages of the evolution of the Plan. Each roll forward of the HRA has been submitted to Natural England for comment, and the conclusions have ultimately been signed off.

Health Impact Assessment (HIA) - this process aimed to measure the potential health impacts of a policy, programme or project on the wider population. The HIA has therefore helped to ensure that the proposals outlined in the Plan have been judged against the effects they may have on the health of the population through recognition that planning has a key role to play in the delivery of healthy sustainable communities. Ultimately the HIA has aimed to reduce health inequalities, contribute to improved health and contribute to better decision making.

Rural Proofing - this process sought to assess the impact of policies and site allocations on the rural area. The Plan has been subject to Rural Proofing through its evolution which has helped to identify those policies that provide urban solutions that may not necessarily work for rural areas with dispersed populations and economy. This allowed the adjustment of policies to optimise their impact.

Sustainability Appraisal (SA) - SA is a statutory process integrated into the preparation of all aspects of the Local Plan. The process measures the potential impacts of the Plan on a range of economic, social and environmental considerations, and includes the requirements of Strategic Environmental Assessment legislation. The separately published SA post-adoption statement makes clear how environmental



considerations have been integrated into the Plan; how the report and consultation responses have been taken into account; the reasons for choosing the selected approach over the alternatives considered; and the arrangements for monitoring the significant environmental effects of the Plan.

Process leading to the adoption of the Local Plan

- 1.15** The Proposed Submission Draft of the Carlisle District Local Plan was submitted to the Government for independent examination on 22nd June 2015. Prior to this, representations on the ‘soundness’ of the Plan, and policies and proposals within, were sought by the City Council for a minimum period of six weeks in accordance with Regulations 19 and 20 of the Town and Country Planning (Local Planning) (England) Regulations 2012.
- 1.16** The hearing sessions of the examination commenced on Tuesday 1st December 2015, and, following a recess due to the devastating effects of Storm Desmond in Carlisle, resumed on Tuesday 19th January 2016. During the examination process the Inspector assessed whether the Plan had been prepared in accordance with the ‘Duty to Cooperate’; legal and procedural requirements; and whether it was ‘sound’. The tests of ‘soundness’ are defined in the National Planning Policy Framework (NPPF) (para. 182) as being:

- **Positively prepared** - the Plan should be based on a strategy which seeks to meet objectively assessed development and infrastructure requirements, including unmet requirements from neighbouring authorities where it is reasonable to do so and consistent with achieving sustainable development;
- **Justified** - the Plan should be the most appropriate strategy, when considered against the reasonable alternatives, based on proportionate evidence;
- **Effective** - the Plan should be deliverable over its period based on effective joint working on cross-boundary strategic priorities; and
- **Consistent with national policy** - the Plan should enable the delivery of sustainable development in accordance with the policies in the NPPF.

- 1.17** The Inspector’s report into the examination of the Local Plan was received on 25th July 2016. The report sets out the Inspector’s findings, based on a consideration of all the evidence, on legal compliance including duty to cooperate, and soundness. The overall conclusion and recommendation in this report sets out that the Local Plan meets legal requirements, is sound and capable of adoption, subject to the recommended main modifications.

1.18 Carlisle City Council resolved to accept the Inspector's findings, including recommended main modifications, and formally adopted the Carlisle District Local Plan (2015 – 2030) on the 8th November 2016.

2 Vision and Objectives





Spatial Vision

In 2030... the District of Carlisle, with the City at its heart, is successfully asserting its position, as a centre for activity and prosperity, as the capital and economic engine for a region encompassing Cumbria, the western fringes of Northumberland and extending into South West Scotland.

People are attracted to visit, live, work, invest and importantly remain in the District of Carlisle, a key driver of which is the setting of the historic City, as well as the District's market towns and villages, within a stunningly beautiful rural backdrop much of which is characterised by a rich and unrivalled collection of natural and cultural assets. The more significant of these assets, including

Hadrian's Wall and its associated National Trail path and Solway Coast and North Pennines Areas of Outstanding Natural Beauty, continue to underpin a thriving visitor economy, as too does Carlisle's proximity and ease of access to the Lake District National Park.

Key to Carlisle's ongoing success has been an increased supply of new high quality market and affordable homes, the delivery of which has been instrumental in attracting and retaining an economically active workforce and in supporting thriving rural communities. Capitalising on excellent strategic transport connections, including the M6 corridor, rail connections and Carlisle Airport, land has similarly been made available to support the

delivery of new business premises and jobs. Continued innovation and development within agriculture has acted to ensure farming remains economically vibrant. Economic performance across the District has been underpinned by continued investment in higher and further education. This has resulted in a skilled and responsive workforce which exhibits high levels of entrepreneurship, with the University of Cumbria and Carlisle College having been at the forefront of these efforts.

Policies and proposals have succeeded in strengthening and diversifying the City Centre offer, ensuring that its expanded retail and leisure focus is underpinned by a strong cultural offer which can be enjoyed by all. Opportunities have similarly been taken to support thriving rural communities through sustaining and enhancing a network of centres across the District's rural towns and villages.

Growth has been achieved through a framework which has sought to protect and enhance the very assets that make Carlisle unique, including its: important natural landscapes; wildlife species, habitats and geodiversity; and its cultural and heritage relics. Furthermore it has been enabled through a co-ordinated approach to the

timely delivery of supporting infrastructure, adding to the availability of essential local services, facilities and connections.

Careful consideration has been afforded to the design of all new development in order to ensure that proposals have enhanced their immediate setting, strengthened local distinctiveness and helped to create environments which are safe and resilient to the effects of climate change. New developments and the regeneration of brownfield sites within the City have proved a valuable catalyst for addressing social inequalities and deprivation, and as a recognised Healthy City, a firm commitment to continue positively improving health and wellbeing outcomes for all of the District's residents has been at the forefront of decision making.

Looking to the future a Masterplan is in place to guide the continued realisation of a sustainable major mixed use development at Carlisle South, in doing so ensuring that Carlisle is well placed to continue responding to the growth needs of its next generation. The District in its widest sense continues to be alive to its potential and capable of harnessing momentum to turn this into reality.



Strategic Objectives

Spatial Strategy and Strategic Policies

- To promote a sustainable pattern of development, which will contribute to building a strong, responsive and competitive economy, to support the vision for managed growth.
- To support strong, vibrant and healthy communities, by meeting the housing needs of present and future generations, in a high quality environment with accessible local services.
- To contribute to protecting and enhancing our natural, built and historic environment (including improving biodiversity), using natural resources prudently, minimising waste and pollution, and mitigating and adapting to climate change including moving to a low carbon economy.

Economy

- Foster the right conditions to stimulate inward investment through increasing the working age population; strengthening and expanding the skills base available, diversifying the economy and improving enabling physical infrastructure.
- To create opportunities for economic growth by making land available to meet the current and future quantitative and qualitative needs of the business community and to maintain Carlisle's role as an economic driver for a wider geographical area.
- To focus new retail and leisure floorspace within the City Centre, and take opportunities to strengthen and diversify its offer, in order to enhance its role as a sub-regional service centre and leisure and cultural destination.

Housing

- To enable the development of a range of high quality, energy efficient housing, in a variety of appropriate locations, to meet the aspirations of the existing residents, including those with a need for affordable housing and those wishing to move to the area.
- To make land available to boost significantly the supply of housing to support economic growth, whilst ensuring new housing supports the creation of thriving communities.

Climate Change and Flood Risk

- To reduce emissions of greenhouse gases, including through securing energy from renewable sources, and avoid inappropriate development in areas at risk of flooding in order to ensure that the District is more resilient and less vulnerable to the effects of climate change and can successfully adapt to its effects.

Infrastructure

- To ensure the provision of efficient and integrated infrastructure networks, and their timely delivery, including sustainable transport, where needed to support new and existing development, facilitate economic growth and deliver the Plan strategy.

Health, Education and Community

- To create a thriving, successful and healthy community for all by promoting cohesive mixed communities and ensuring that everyone can have a decent home, in a safe environment, with good access to health care, educational provision and other community facilities by sustainable modes, including walking and cycling.



Historic Environment

- To conserve, enhance and promote Carlisle's heritage and important historic landscapes whilst ensuring that development proposals respect and enhance Carlisle's historic assets.

Green Infrastructure

- To protect, enhance and increase the provision of the green and blue infrastructure across the District to create and maintain multifunctional, interconnected and attractive recreational and ecological networks for the benefit of residents, businesses, visitors and the wider natural environment.

Spatial Portrait

- 2.1** This spatial portrait describes the District's current geography, environment, economy, social and cultural characteristics and movement patterns. In doing so it provides a snapshot of the District as it is now as well as highlighting future issues it faces.
- 2.2** Today Carlisle's identity is largely shaped by its extensive rural hinterland. It has an important agricultural economy, and is set in an area of high landscape value, including a coastal and upland landscape recognised as being of national importance. The historic core of the City is traversed by rivers that are internationally important for biodiversity, and a World Heritage Site strides across the District.
- 2.3** The District of Carlisle covers an area of approximately 1,042 sq km and is situated in the far north of the County of Cumbria, bounded by the Scottish border to the north, Northumberland

to the east, Allerdale and the Solway Firth to the west and Eden to the south. The City of Carlisle forms the principal urban area and lies within the south western part of the District. The remainder of the District is predominantly rural in nature, with the exception of Longtown to the north and Brampton to the east, and a number of smaller villages which are scattered predominantly to the west and east of the City.

Local Character and Distinctiveness

- 2.4** Carlisle's local character and distinctiveness has been significantly influenced by its rich and turbulent history resulting from its location on the border between England and Scotland. Carlisle established itself as an important and well fortified Roman settlement primarily serving the forts along Hadrian's Wall. As an important frontier town it was frequently disputed and besieged by the English and the

Scots during various campaigns and the area suffered from many attacks by the Border Reivers.

- 2.5** By the time of the Norman conquest in 1066 Carlisle was part of Scotland. This changed again in 1092 when the region was invaded and Cumberland, including Carlisle, was subsequently incorporated into England. Carlisle Castle and the City Walls were constructed shortly after and whilst only the West Walls and the section around the Castle remain standing, the titles of the gates still remain in the names of key roads into the City Centre.
- 2.6** In the 12th Century King Henry I allowed the founding of a religious establishment, later making the town a diocese thus turning the Priory into a Cathedral, which is today one of the smallest in England.



2.7 Carlisle has been shaped in more recent times by its industrial heritage, predominantly in textile manufacture. This was followed by the arrival of the railways which continue to be of significant strategic benefit to the City.

2.8 As a result of Carlisle's extensive history the District is rich in heritage ranging from Hadrian's Wall World Heritage site which crosses the District from Gilsland in the east to Burgh by Sands in the west, to the remaining City walls, Carlisle Cathedral, the Old Town Hall and Tullie House. There are approximately 1139 listed buildings within the District and 19 conservation areas including areas within the City, the historic market towns of Brampton and Longtown as well as some of the other villages such as Dalston and Cumrew. There are also approximately 166 Scheduled Ancient Monuments, two designated parks and gardens, (Corby Castle and Dalston Road

Cemetery); as well as one historic battlefield - the Battle of Solway Moss, at Longtown.

2.9 Carlisle District also has a number of locally listed buildings and structures of architectural and historic significance which whilst not of national significance are important in creating the locally distinctive character that can be seen in parts of the District. Future additions to this list will ensure Carlisle's local history continues to be protected alongside both the nationally and internationally recognised assets. The District's heritage is an extremely important asset, which contributes significantly to the character and attractiveness of the area and is a major draw for tourism.

2.10 Carlisle also has an attractive and varied natural landscape. The District includes two Areas of Outstanding Natural Beauty (AONB), (Solway Coast and the North Pennines) as well as a network of ecologically

important rivers, becks and burns. The North Pennines AONB is also a European Geopark. The River Eden and its tributaries are of international importance for their biodiversity, being designated as both a Site of Special Scientific Interest (SSSI) and a Special Area of Conservation (SAC). Carlisle has a range of other sites of European nature conservation importance including the Upper Solway Flats and Marshes Ramsar site and Special Protection Area (SPA), the Solway Firth (SAC), the Irthinghead Mires Ramsar site and the North Pennine Moors (SPA). These form part of a network of internationally important wildlife sites within the European Union known as Natura 2000.

2.11 In addition, the District is home to many rare and endangered species such as the red squirrel, great crested newt and otters, as well as habitats such as lowland raised bogs, blanket bogs and upland hay meadows.

2.12 The landscape and wildlife in Carlisle and surrounding districts underpins the economy of the area, through people's work and leisure activities, and their sense of local identity. Delivery of targeted biodiversity and landscape enhancements, therefore, has a significant contribution to make towards social inclusion and sustainable economic development, and logically forms an integral part of all aspects of the Sustainable Community Strategy (The Community Plan for Carlisle).

2.13 The District has approximately 455 ha of public open space, which ranges from amenity open space (land which is recognised as making a contribution to the visual amenity and enjoyment of an area), to natural/semi natural greenspace, parks/gardens, allotments, play areas and outdoor sports facilities. Within the centre of the City, and located immediately next to the River Eden are two linked and important urban parks, Rickerby Park and Bitts

Park. Rickerby Park is a natural park with mature trees and grazed by sheep and cattle. Bitts Park has a more formal layout with landscaped beds and trees, together with playing pitches, children's play area and tennis courts etc.

Social Characteristics

2.14 Population data collated from the 2011 Census, released in July 2012, showed that the usual resident population of the District had increased by 6,785 from 100,739 in 2001 to 107,524, a rise of 6.7%. Whilst the rate was slower than the average for England and Wales it was the highest recorded in Cumbria.

2.15 Census data shows that over the ten year period 2001 to 2011 there has been an increase of 15.8% in the over 60 age group. In the working age groups of 20 to 64 there has been an increase of 8.2% overall, but in the age bracket 30 to 44 there has been a decrease of 7.2%. The under 18 age group has also seen a decrease of 3%,

but the most marked decrease has been in the 5 to 14 age bracket which has seen a reduction of 10% while the 0 to 4 age group has experienced an overall increase of 15.3%.

2.16 Ethnic minorities within the District account for 5.6% of the population which is a two fold increase since the 2001 census. In the same time period the figures for Cumbria have also increased from 2% to 4.9%.

2.17 In line with national trends, growth in Carlisle will most notably be seen in the number of older people living in the District where it is predicted that there will be a 57% increase by 2032. Approximately 68% of the population currently live within the urban area of Carlisle. In the rural areas a key feature is the sparse distribution of residents; on average there are 97 people per hectare in Carlisle's rural areas (compared to 477 regionally and 378 nationally).



Movement Patterns

- 2.18** The M6 motorway runs through the District linking the City of Carlisle to Southwest Scotland, Northwest England and beyond. Carlisle benefits from four motorway junctions at Carleton (J42), Rosehill (J43) and Kingstown (J44), whilst junction 45 connects with the Scottish border at Gretna. Additionally the Carlisle Northern Development Route (CNDR) (the A689) provides a western link from the A595 to the M6 at junction 44. It also provides a combined pedestrian and cycle route along its 8.25km length.
- 2.19** From Carlisle City there is a network of 'A' roads including the A69 which links the District to Newcastle upon Tyne in the North East, the A7 to the Scottish Borders and on to Edinburgh, the A6 to Penrith and the Lake District, and the A595 to Workington and Cockermouth in West Cumbria.

2.20 In terms of rail travel and freight movements, the West Coast Main Line provides a north/south high speed rail link serving the City providing access to Birmingham and London and Glasgow and Edinburgh, as well as links via Northern Rail to Manchester Airport and Manchester to Glasgow and Edinburgh. There are rail links to Newcastle and the Cumbrian Coast providing access to Barrow and Lancaster. The historic Carlisle/Settle line, which is important for tourists, commuters and freight, links Carlisle to Leeds.

2.21 Travel to work is heavily dependent on private car usage with 40.8% of people working in Carlisle District choosing to drive to work (Source: Office of National Statistics (ONS) Census 2011) despite the fact that nearly 50% of people travel less than 5km to their place of work. This level of car usage is partly due to accessibility to public

transport across the District which varies considerably outside the urban area, with a number of areas having only limited services.

Housing

- 2.22** Housing Stock as of 31 March 2012 was 50,660 (source ONS Local Profiles). 85% of this stock is privately owned with Registered Providers of housing accounting for the remaining 15%.
- 2.23** At the 2001 census owner occupation within the District was 71% which was slightly below the Cumbrian percentage of 72% but higher than that of the North West which was 69%. The percentage living in social rented properties were 18%, 16% and 20% with the private rented sector accounting for 8%, 12% and 8% respectively.

2.24 A house condition survey undertaken in 2005 and Registered Social Landlord data from 2009 identified that 27% of the private sector and 12% of the social sector dwellings failed the decency standard in the urban area and 43% and 10% respectively in the rural area.

2.25 Housing in Carlisle is generally more affordable in respect of house price/earning ratio at 4.7% than is the case for England which is 6.6% (source ONS Local Profiles 2012). However, variations in average house prices across the District identify parts of the rural area where average house prices are in excess of ten times the annual income, creating problems of housing need due to affordability.

2.26 Average household size as determined by the Department of Communities and Local Government (DCLG) has reduced to 2.2 persons and is expected to further reduce to 2.17 by 2016 and 2.14 by 2021. This compares to 2.21, 2.18 and 2.15 respectively for Cumbria and 2.36, 2.35, 2.33 for England.

2.27 Over the last 10 years 72% of housing built within the District has been within the urban area and 28% in the rural area. Housing development has significantly slowed over the last 5 years with the lowest increase in new housing being recorded in 2013/14 with only 190 net new dwellings. This performance relates however to national as opposed to local circumstances and predominately the effects of the most recent housing crash and subsequent recession.

Economy

2.28 Carlisle is a free standing City which is not directly influenced by a major conurbation. It acts as a significant employment base and the main professional centre for Cumbria as well as parts of Southwest Scotland.

2.29 Historically, the economy of Carlisle was based around easy access to a railway network and the textile industry which has over time declined and been replaced by other forms of manufacturing. A large proportion of Carlisle's working population are still employed in the manufacturing sector. However, the wholesale/ retail trade provides employment for the largest proportion of the workforce. Employment in non-service industries, such as agriculture, manufacturing and construction are all higher than the national average. Carlisle is an important centre for agricultural services and lies at the centre of a large rural livestock market. Within the rural area Brampton



and Longtown act as employment hubs along with Dalston to a lesser extent. All three settlements have industrial estates which provide employment opportunities for people within their locality as well as the wider area.

2.30 Whilst Carlisle benefits from good connections to the M6 as well as being situated on the West Coast Main Line, there can still be a perception by businesses from outside the area of remoteness and isolation which may detract from Carlisle's attractiveness as a business location. This is further compounded by a gap in skills as well as poor retention levels with regards to graduates. However, current work under the 'Carlisle Story' banner aims to attract people to visit and live in the area, encourage those here already to stay, persuade investors and developers to see us as a place worth investing in and create and attract new jobs whilst keeping the ones we have.

Tourism

2.31 Tourism is of major importance to Carlisle as a generator of economic prosperity and employment with the District receiving over 7 million visitors in 2013 (STEAM Report). It is essential that the tourism potential of the District is promoted and exploited to maximise the benefits it can bring to the area, including a large number of jobs. Carlisle's heritage is central to its attractiveness as a tourist location with Hadrian's Wall World Heritage Site and National Trail crossing the District, Carlisle Castle, the Cathedral, Tullie House museum and many more attractions attracting visitors in their own right.

2.32 Carlisle lies at the heart of a wealth of historic and modern attractions ranging from Roman remains to Norman strongholds, medieval market towns to a contemporary City. Carlisle has museums, art galleries, national sporting events, outdoor and indoor

recreation, heritage tours, award-winning parks and nature reserves. Carlisle Racecourse lies on the edge of the City, whilst in the wider rural area are a wealth of historic churches, Talkin Tarn Country Park, Lanercost Priory founded in 1197 as an Augustinian Priory, and stunning countryside including the two Areas of Outstanding Natural Beauty.

Culture and Heritage

2.33 Protecting heritage whilst supporting economic growth is something that the City Council is actively engaged in. The historic core of the City includes Carlisle Castle, Tullie House Museum, Carlisle Cathedral precinct, the Tithe Barn, the City Walls, the Courts, the Market Cross, the Old Town Hall and the Guildhall. These and other heritage and cultural assets, including the Sands Centre and Old Fire Station Arts Centre, combine with the high quality environment in and around the District to contribute towards Carlisle's appeal as a visitor destination. Providing potential for economic

diversification, particularly within the rural area, opportunities of this nature are already being supported along for example the route of Hadrian's Wall World Heritage Site (officially known as 'Frontiers of the Roman Empire (Hadrian's Wall): World Heritage Site') National Trail with the development of accommodation and refreshment facilities.

Education

2.34 Educational achievement (measured as 5 or more GCSEs at A* to C grade, including English and maths) at 15 years old in Carlisle is lower (52.2%) than both national (59.2%) and regional (59.9%) averages. The District also has a higher percentage of its population with no qualifications at 12.3% compared to the national figure of 9.3%. However in recent years there has been significant investment and restructuring of education services and institutions across the District and standards are continually improving.

2.35 All post 11 education in the District, which was managed by the County Council, now has Academy status. The Richard Rose Academy (Central and Morton sites) have been established through an investment of some £30M. Trinity School has obtained Academy status and has again had significant investment to improve its facilities. In the rural area, Caldew School Dalston and William Howard School Brampton have also had significant investment to improve facilities.

2.36 Carlisle College, based between Victoria Place and Strand Road, is the main provider of further education. The college also provides educational opportunities for students aged over 14 alongside vocational and skills training for a growing number of both young and mature students which is helping to expand the skills base locally. The facilities at the college have greatly improved in recent years as a result of significant investment being made to

redevelop the college estate through refurbishment and replacement of outdated buildings.

2.37 The University of Cumbria was established in August 2007 and after a period of uncertainty, has in recent years experienced significant levels of new students enrolling in courses based at its Carlisle campuses. Proposals for major campus redevelopments including a new administrative headquarters for the University, based within the City of Carlisle, have stalled due to the initial financial challenges faced by the university following its establishment. With recent reports of improved performance, increasing student numbers, and in an improving economic climate it is hoped that these proposals can be progressed once more.



Social

- 2.38** The English Indices of Deprivation 2010 (which updated the 2007 indices) show that Carlisle District is 109th out of 326 nationally (with 1 being the highest) with 5 Lower Super Output Areas in the 10% worst nationally which indicates great disparity throughout the District and a slightly worsening position from the 2007 indices (ranked 122nd out of 354 nationally).
- 2.39** The Green Infrastructure Study March 2011 further supports the inequality across the District as it identified that the 10 most deprived Super Output Areas of the District have on average 27% less green infrastructure cover than the 10 least deprived.

Health

- 2.40** Carlisle became a World Health Organisation (WHO) Healthy City in 2009. Since then, the City Council has worked closely with organisations such as the National Health Service (NHS), Riverside and Carlisle Leisure and has gained from the Healthy City approach and network. A Healthy City is one that continually creates and improves its physical and social environments and expands the community resources that enable people to mutually support each other in performing all the functions of life and developing to their maximum potential.
- 2.41** Life expectancy in the District is 78.5 years for men and 82.0 years for women. Whilst slightly lower than the national average this is higher than figures for the North West. However, there is great disparity across the District with men in the least deprived areas living seven years longer than

those in the most deprived areas. Mortality rates per 100,000 persons at 609.3 is higher than the national figure of 553.3 and early death rates from cancer remain above the England average.

Flooding and Climate Change

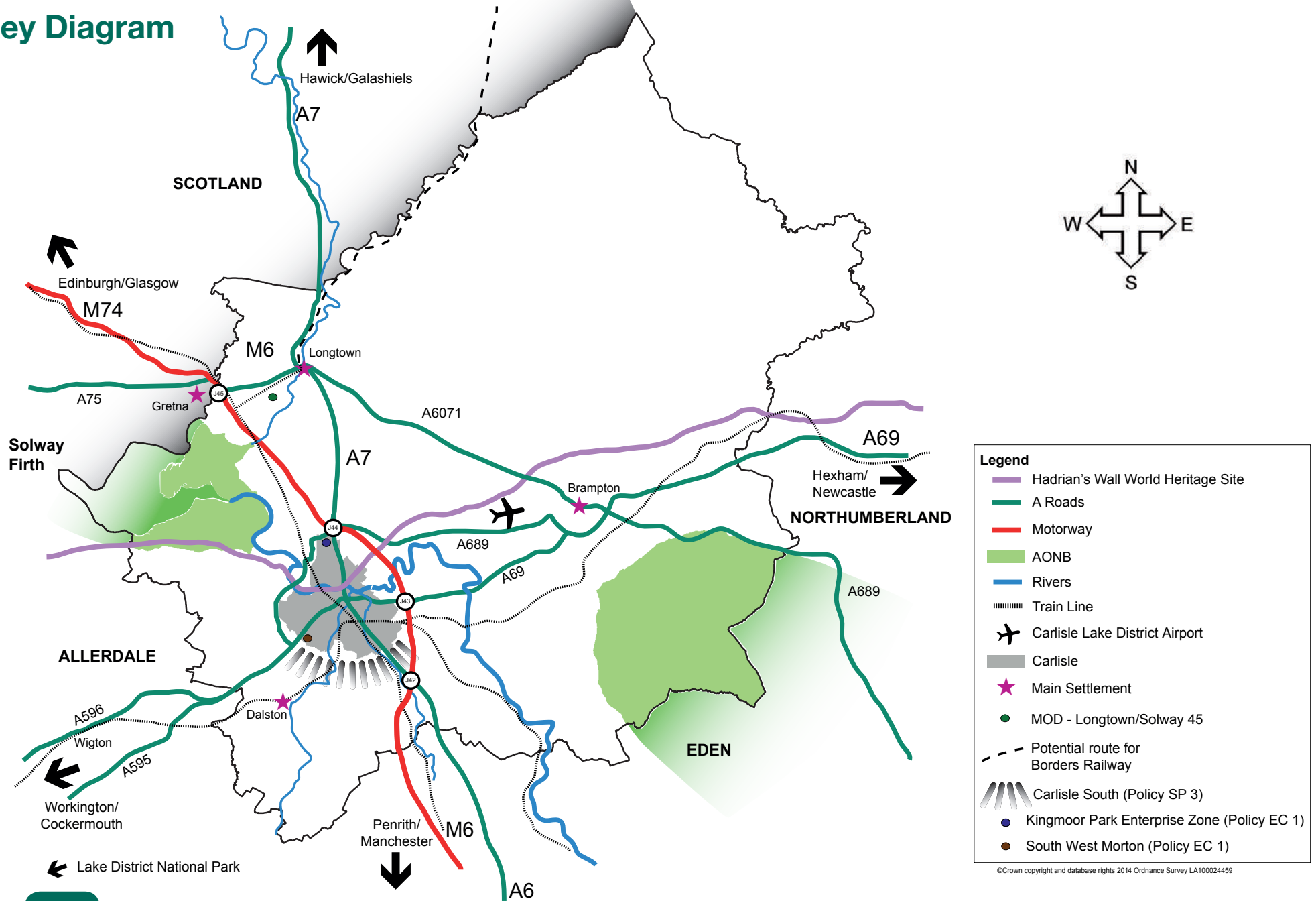
- 2.42** The position of Carlisle at the meeting point of three rivers makes it vulnerable to the risk of flooding. In 2005, and then again in 2015, the District experienced the worst floods since 1822 which resulted in the loss of human life and severely affected many homes and businesses. Despite flood defences offering a level of defence against future flood risk, caution must still be taken when considering proposals for development in high risk areas benefitting from defences.

2.43 Specific data for the impacts of climate change on Carlisle are not readily available, but information is available on a regional basis that gives a good indication of the potential impacts. Between now and 2080, if we continue to discharge high amounts of greenhouse gases, the District could expect an impact on the following:

- more extreme weather conditions causing disruption to front line services like refuse/recycling collections;
- higher energy costs for buildings and transport as climate change impacts on markets and trade;
- health related problems for example waterborne diseases linked to warm weather impacting on health services;
- drier summers could lead to droughts affecting parks, allotments and nature reserves putting pressure on water resources and local biodiversity; and
- wetter weather patterns in the summer affecting the agricultural economy through impact on crop and grass growth.



Key Diagram



3 Spatial Strategy and Strategic Policies

Objective

- To promote a sustainable pattern of development, which will contribute to building a strong, responsive and competitive economy, to support the vision for managed growth.
- To support strong, vibrant and healthy communities, by meeting the housing needs of present and future generations, in a high quality environment with accessible local services.
- To contribute to protecting and enhancing our natural, built and historic environment (including improving biodiversity), using natural resources prudently, minimising waste and pollution, and mitigating and adapting to climate change including moving to a low carbon economy.

Context

This section of the Local Plan comprises a suite of policies which set out key overarching and recurring principles and therefore strategic direction for the more detailed policies and specific proposals that follow. Collectively these strategic policies constitute the spatial strategy at the heart of the Local Plan and in this regard they are central to the realisation of the vision of how Carlisle will look in 2030. A number of these policies go beyond traditional land use planning in order to lend impetus to wider initiatives pursuing common goals, as well as to ensure that synergies with the planning process are maximised.





Policy SP 1 - Sustainable Development

When considering development proposals Carlisle City Council will take a positive approach that reflects the presumption in favour of sustainable development contained in the National Planning Policy Framework (NPPF). It will always work proactively with applicants, and communities, jointly to find solutions which mean that proposals can be approved wherever possible, and to secure development that improves the economic, social and environmental conditions of the District.

Planning applications that accord with the policies in this Local Plan (and, where relevant, with policies in neighbourhood development plans) will be approved without delay, unless material considerations indicate otherwise.

Where there are no policies relevant to the application, or relevant policies are out of date at the time of making the decision, then the Council will grant permission unless material considerations indicate otherwise - taking into account whether:

1. any adverse impacts of granting permission would significantly and demonstrably outweigh the benefits, when assessed against the policies in the NPPF taken as a whole; or
2. specific policies in the NPPF indicate that development should be restricted.

Justification

- 3.1** The current United Kingdom Sustainable Development Strategy 'Securing the Future' (HM Government, 2005) defines 'sustainable development' as: "Development which meets the needs of the present without compromising the ability of future generations to meet their own needs".
- 3.2** The NPPF sets out a presumption in favour of sustainable development. This presumption is considered to be the golden thread running through both plan making and decision taking. The NPPF emphasises the three dimensions to sustainable development, these being:
 - an economic role – contributing to building a strong, responsive and competitive economy;
 - a social role – supporting strong, vibrant and healthy communities; and
 - an environmental role – contributing to protecting and enhancing our natural, built and historic environment.
- 3.3** These roles are interdependent, and to achieve sustainable development, economic, environmental and social gains should be achieved through all aspects of planning.

- 3.4** The Carlisle District Local Plan is the first reference point for those involved in the determination of planning applications. The NPPF makes it clear that local planning documents should reflect the presumption in favour of sustainable development and Policy SP 1 responds to this requirement.
- 3.5** It is important to note that in accordance with other policies in the NPPF that the presumption does not apply to development affecting sites protected under the Birds and Habitats Directives and/or land designated, amongst others, as a Site of Special Scientific Interest (SSSI), an Area of Outstanding Natural Beauty (AONB), Local Green Space, designated heritage assets or locations at risk of flooding or coastal erosion.



Policy SP 2 - Strategic Growth and Distribution

To ensure that objectively assessed development needs are met, and met in the most sustainable manner, strategic growth within the District of Carlisle will be governed by the following principles:

1. Sufficient land will be identified to accommodate 9,606 net new homes between 2013 and 2030 including a minimum annualised average of:

- 478 net new homes between 2013 and 2020; and
- 626 net new homes between 2020 and 2030 (adjusted to have regard to delivery in the 2013-2020 period).

a) approximately 70% of this growth will be focussed on the urban area of Carlisle, with approximately 30% in the rural area; and

b) specific sites have been identified within the Plan, alongside an allowance for windfall developments, to accommodate the majority of growth required. Carlisle South has been identified as a broad location to accommodate additional housing growth in accordance with SP 3.

2. Sufficient land will be identified to create the right conditions for economic growth:

a) the focus for development will be within the urban area of Carlisle and locations which can maximise the benefits of Carlisle's highly accessible position in relation to the M6 Corridor; and

b) whilst efforts will be focussed across the Plan period on realising the residual capacity within existing employment areas, this approach will be complemented by the allocation of an additional 45 Ha for employment related purposes.

3. Development of surplus land at Ministry of Defence (MOD)

Longtown, which lies within the strategic M6 Corridor and benefits from excellent road and rail connections, will also be supported as a key element of the strategy to grow the economy, and to secure modal shifts in freight transport.

4. The City Centre will maintain and enhance its status by being the primary focus for further comparison retail development across the Plan period:

a) specifically, sufficient land will be identified within the City Centre to accommodate an additional 18,700m² net comparison retail floor space until 2030.

5. Provision for leisure and other 'main town centre uses' will be based on the need to protect and enhance the vitality and viability of the City Centre, District Centres and Local Centres as defined on the Policies Map.

6. Where possible and appropriate, the re-use and redevelopment of previously developed land will be encouraged across the District. Within the urban area of Carlisle the reuse and redevelopment of underused, vacant and derelict land will be supported in order to secure the continued regeneration of the City.
7. Within the District's rural settlements, development opportunities of an appropriate scale and nature, which are commensurate with their setting, will be harnessed to positively contribute to increasing the prosperity of the rural economy and to enable rural communities to thrive.
8. Within the open countryside, development will be assessed against the need to be in the location specified.

Justification

- 3.6 Policy SP 2 sets out the level of objectively assessed development needs to be delivered within the District until 2030, and importantly a number of key principles to guide how, where and when these will be met in order to ensure that sustainable patterns of development prevail across the plan period. This policy therefore constitutes a key strategic policy which will be used to shape how the District develops in the future.
- 3.7 The delivery of housing is a key thrust of the spatial strategy necessary in order to respond to changes in local demographics and equally in accommodating in-migration necessary to support economic growth through helping to sustain an economically active workforce.
- 3.8 Policy SP 2 makes provision for a minimum of 9,606 dwellings between 2013 and 2030. The District of Carlisle constitutes a self contained strategic

housing market area and this level of growth therefore reflects what the Council considers to represent the District's objectively assessed housing need.

- 3.9 The housing requirement and time period to which it relates is consistent with the base date and findings of the Carlisle Strategic Housing Market Assessment (SHMA) Update 2014, and the latest 2014 POPGROUP modelling undertaken by the Cumbria Intelligence Observatory. POPGROUP is a software product designed to project populations, households and labour forces associated with specified future scenarios and is widely regarded as a credible tool to derive robust projections. To do this, it builds upon Office of National Statistics projections using further assumptions, for example: the continuation of longer/ shorter term trends in birth, death and migration rates, future development proposals and the anticipated performance of the local economy.



3.10 The POPGROUP “10 year migration scenario”, based on historic migration trends, and the “Experian jobs led scenario”, based on the latest job projections for the District of Carlisle, point to an annual housing requirement of between 383 and 592 new homes. The SHMA Update 2014 also produces projections which suggest an annual housing requirement of between 485 and 565 new homes. The proposed requirement pursued by the Plan can be seen to align with this evidence and is considered reflective of the requirements set out in paragraph 47 of the NPPF.

3.11 To ensure the supply of new homes does not constrain economic growth, a minimum number equating to an annual average of 478 net new homes is required between 2013 and 2020. Beyond this and for the remainder of the plan period, between 2020 and 2030, a minimum number equating to an annual average of 626 net new homes is required. This stepped

approach reflects that job-growth is generally expected to be stronger post 2020 (and hence a greater increase in population would be required from this point). Aside from aligning with the evidence in the form of the jobs-led projection within the SHMA which has influenced the housing requirement, the introduction of a stepped approach importantly affords an opportunity for the development industry to mobilise and increase its capacity within Carlisle, necessary given the migration from a historically lower housing requirement in preceding plan periods and industry base position.

3.12 It must be stressed that the ‘minimum’ requirements are exactly that and should the conditions be in place to exceed these and/or frontload supply earlier in the Plan period then such opportunities will be positively responded to. To ensure that supply keeps pace with demand it is important that any shortfall within the 2013 to 2020 period is addressed within

this same period. Beyond 2020 the annualised average employed for assessment purposes should similarly be adjusted to have regard to any under or over provision in the preceding seven year period.

3.13 Excluding Carlisle South the spatial strategy seeks to focus the majority (approximately 70%) of new housing growth within or on the edge of the City of Carlisle which aside from reflecting that this is where the majority of housing needs arise within the District also reflects a desire to enhance the City’s role as a sub-regional centre. Concentrating development on the City also reflects that this area is well served by existing infrastructure which entails evident sustainability benefits. The remainder of housing growth (30%) will occur within the District’s rural settlements including in Brampton and Longtown.

3.14 Specific allocations have been identified within the Local Plan to contribute, alongside existing commitments and an allowance for windfall, to meeting the majority of growth required across the Plan period. Carlisle South, which is subject to the provisions of Policy SP 3, has been identified as a broad location to accommodate additional housing growth within and beyond the Plan period.

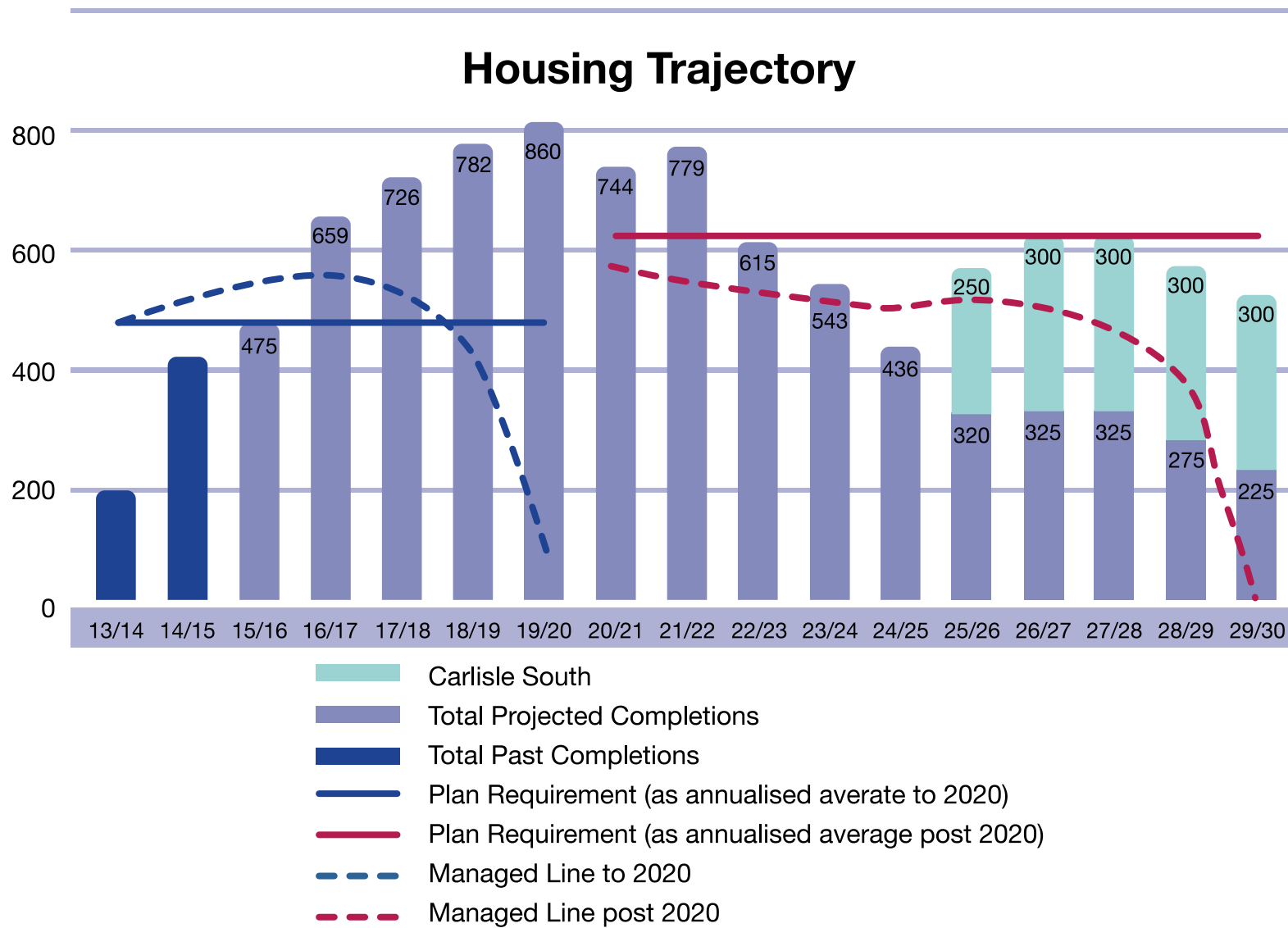
3.15 The supply of housing land is summarised in Table 1 with the anticipated rate of delivery illustrated through the trajectory at Figure 1.

3.16 Whilst Table 1 indicates a total supply which would support a higher rate of delivery than that proposed within the Local Plan, it is recognised that not all of the existing permissions and allocations may be built out in full within the plan period, which the trajectory reflects. Nevertheless, if economic and market conditions are favourable, it demonstrates that the Local Plan target could be exceeded.

Table 1 - Summary of Housing Land Supply (as at 1st April 2015)

Source	No. Of Dwellings
Delivery to date (2013 – 2015)	609
Outstanding Planning Permissions	3,884
Proposed Local Plan Allocations*	4,017
Windfall Provision (@100 dwellings per annum across the plan period)	1,500
Strategic Allocation Carlisle South	1,450
Total Supply	11,460

* Excludes the capacity of those allocations which have an outstanding planning permission in place in order to avoid double counting.



3.17 Despite lower completion rates owing predominately to unfavourable economic conditions and the recent global recession, there are encouraging market signals to support that the desired level of housing growth can be achieved particularly across the longer term. In this regard the Council is fully committed to directing its own resources to aid delivery efforts, with a housing action plan in place to guide interventions. A key part of this action plan is engagement with housing enablers to better understand future opportunities as well as risks and constraints.

3.18 The delivery of housing to meet the Local Plan target will be monitored through the Annual Monitoring Report (AMR), and if the rate of delivery is not as expected, the Council will seek to work directly with stakeholders to identify any barriers to development, and consider further interventions including bringing forward additional or substituting allocations. A review of the

housing element of the strategy would also be instigated if evidence used to determine the housing requirement changes; monitoring shows the strategy is not meeting its objectives; or sustained market signals indicate a clear need for change.

3.19 From an employment land perspective Policy SP 2 identifies that sufficient land will be identified to create the right conditions within the District for economic growth, which is a key priority of the City Council, Carlisle Partnership and the Cumbria Local Enterprise Partnership (LEP). Evidence, in the form of the Carlisle Employment Sites Study (2010) and the Economic Review of Carlisle (2013), shows that one of the key economic issues to date within the District has been the lack of quality and choice of employment locations for companies to invest. The Local Plan seeks to address these shortcomings through encouraging and facilitating investment in existing sites, and complementing this offer through

the provision of new sites, particularly within the strategically important M6 Corridor which is a recognised Cumbria LEP priority.

3.20 Whilst 45 Ha of land is allocated for employment purposes within the plan period, there is also approximately 46 Ha of available land within existing and established Primary Employment Areas, with the majority of this (42 Ha) being within the City of Carlisle and (4 Ha) within rural settlements. There have been encouraging signs of investment in existing employment sites, including the award of LEP funding to enable qualitative improvements, and the City Council is committed to ongoing engagement with stakeholders and joint working to secure further inward investment and promote opportunities within the District. Whilst the allocation and existing Primary Employment Areas will be the focus for new employment related development, this does not preclude additional employment



developments coming forward out with these sites where such proposals would act to diversify and strengthen the employment offer in the District. In these circumstances the merits of individual proposals would be assessed on a case by case basis against the suite of relevant policies within the Local Plan.

3.21 The identification of surplus land (some 243 Ha) at the Ministry of Defence owned Longtown munitions base and its promotion for commercial purposes represents, owing to its scale, a significant economic opportunity within the District within the life of the Plan and beyond. The opportunity lends itself to manufacturing, storage and distribution related uses, through either making use of existing buildings or through the development of new ones. The site's greatest assets are its ability to operate as a dry port owing to its excellent rail links, its proximity to the M6 and M74, and its potential to exploit linkages with the Port of Workington.

3.22 Identification of the opportunity at the MOD Longtown site within the Cumbria LEP's Strategic Economic Plan 2014-2024, and recent award of LEP funding, is testament to the economic potential of the site with initial marketing of the opportunity, branded as 'Solway 45', revealing strong interest in it as a destination for inward investment. The City Council are committed to working with the relevant stakeholders, including those in Scotland given the proximity of the site to the border, to ensure that the potential benefits of developing the site are maximised and that importantly any adverse impacts of doing so are avoided.

3.23 Whilst it is not considered appropriate to pursue a specific employment land uptake target through the Local Plan, take up rates will be monitored and this stance will be kept under review.

3.24 Carlisle City Centre is recognised as the main retail, leisure, service and administrative centre for a sub region

encompassing the majority of Cumbria and which extends into South West Scotland and the Scottish Borders. In catchment terms the City Centre caters for almost 500,000 people and therefore provides a higher order role for both residents and businesses in the region.

3.25 The Carlisle Retail Study (2012) identifies that whilst the City Centre was considered to be vital and viable, it was not achieving its full potential due to existing constraints such as its historic core (attractive asset but restricts change/expansion), small and historic retail accommodation (size and configuration of units) and department stores occupying multiple (irregular) co-joined units. Consequently the study identifies that improving the performance and overall future vitality and viability of the City Centre will only be achieved if new comparison retail provision is delivered which is of sufficient quality to add to the existing offer.

3.26 In order to maintain and enhance its status, and in accordance with national policy, the City Centre will be the primary focus for further comparison retail development across the plan period. Whilst capacity and opportunities exist within the Primary Shopping Area to accommodate additional retail floor space, including within The Lanes Shopping Centre, land has been identified through Policy SP 4 within the Local Plan, through a potential future expansion of the Primary Shopping Area, to accommodate up to an additional 18,700m² net Class A1 comparison (non-food) retail floor space over the period to 2030, which is identified as necessary by the Carlisle Retail Study (2012). As with other key elements of the spatial strategy the delivery and pipeline of additional comparison retail floor space will be kept under regular review.

3.27 Beyond the City Centre the Carlisle Retail Study (2012) highlights the importance of a network of local centres which perform an important top-up function from a convenience retail perspective as well as in providing access to other important local services and facilities. The network of local centres considered by the study has been reviewed and expanded as part of the Local Plan process, and a distinction has been made between district and local centres. Accordingly, the provision for retailing, leisure and other 'main town centre uses' will be based, in accordance with national policy, on the need to protect and enhance the vitality and viability of this hierarchy of centres.

3.28 Evidence in the form of the Strategic Housing Land Availability Assessment (SHLAA) and Employment Land Availability Position Statement support that there are relatively limited opportunities to meet development

needs on previously developed land. This largely reflects that previous efforts and planning regimes have succeeded in bringing previously developed land across the District back into beneficial use. Opportunities will however be taken to re-use and redevelop previously developed, underused and vacant land where it exists, particularly within the urban area of Carlisle where such opportunities can also act as a catalyst for wider urban regeneration and renewal.

3.29 In order to support the rural economy and thriving rural communities, development proposals of an appropriate scale and nature, which are commensurate with their setting, will be supported within the District's rural settlements. This approach will consider proposals on a case by case basis on their individual merits, and against other policies of relevance



within the Local Plan, and is considered preferable to a prescriptive approach particularly given the diversity of the many rural settlements within the District.

3.30 Within the open countryside development proposals will be assessed against the need to be in the location specified. This approach is necessary to ensure that sustainable patterns of development prevail and that importantly unnecessary and unjustified encroachment into and urbanisation of the District's countryside and fine landscapes is avoided, in keeping with the objectives of national policy.

Policy SP 3 - Broad Location for Growth: Carlisle South

A broad location for growth for a major mixed use development, focusing on housing, is identified on the Key Diagram at Carlisle South. The release and phasing of Carlisle South will be informed by a Development Plan Document inclusive of an Infrastructure Delivery Strategy.

To support the housing development, there will be a requirement for primary and secondary schools, employment and retail sites, community facilities, open space, green and other infrastructure including highways and transport.

The development of this area will be in accordance with a masterplan which will be approved as a Development Plan Document. The study area for the masterplan will include the whole of the undeveloped extent beyond the city's existing southern edge and any existing allocations.

The purpose of the masterplan will be as follows:

1. to provide more detail on how and when the strategic requirements set out in this policy will be delivered;
2. to set a framework to guide the preparation of future planning applications;
3. to provide a framework against which future planning applications will be assessed;

4. to enable and support the co-ordination and timely delivery of infrastructure provision; and
5. to facilitate the delivery of land release to help address the imbalance of employment land between the north and south of the City.

The potential for the future development of a southern relief road linking Junction 42 of the M6 with the southern end of the A689 will be an integral part of the masterplan.

To enable a comprehensive and coordinated development approach, piecemeal or unplanned development proposals within the area which are likely to prejudice its delivery including the infrastructure required for the area will not be permitted.

To ensure that Carlisle South is deliverable when required, work on masterplanning the area will commence in the early years of the plan period.



Justification

- 3.31** The NPPF (para 47) states that in order to deliver a wide choice of high quality homes, and to boost significantly the supply of housing, local planning authorities should: “Identify a supply of specific, developable sites or broad locations for growth, for years 6-10 and, where possible, for years 11-15”.
- 3.32** The NPPF also states that the supply of new homes can sometimes be best achieved through planning for larger scale development, such as new settlements or extensions to existing villages and towns that follow the principles of Garden Cities. Paragraph 52 states: “Working with the support of their communities, local planning authorities should consider whether such opportunities provide the best way of achieving sustainable development. In doing so, they should consider whether it is appropriate to establish Green Belt around or adjoining any such new development”.
- 3.33** Policy SP 2 sets out the overall housing target and identifies that specific sites have been identified within the Plan, through Policy HO 1, alongside an allowance for windfall developments, to accommodate the majority of growth. Policy SP 3 makes provision for the development of additional housing (and associated infrastructure), by setting out a broad location for growth at Carlisle South.
- 3.34** The broad location is of such a size that it would deliver a strategic number of houses and necessary supporting development such as schools, employment, retail and community facilities, open space and green and other infrastructure for the District, in a location bordering the southern edge of Carlisle, where the Plan indicates future development for housing and a range of complementary uses would be appropriate in principle. Future growth in this direction is considered the most appropriate option for meeting longer term development needs within the District including beyond the plan period.
- 3.35** The delivery of Carlisle South as a strategic growth option may also help to deliver in the long term a southern link road from the A689 (western bypass) to Junction 42 of the M6, and afford opportunities to secure investment in employment premises in the strategic M6 corridor.
- 3.36** Policy SP 3 makes clear that the development of Carlisle South as a broad location would be governed by future masterplanning work, and it would be through this process where consideration would be afforded to the detail of the scale and nature of the development and its boundaries and to the infrastructure necessary to support growth. This process would also inform the release date and phasing of development in this area. Maintaining

adequate distances between the major mixed use development and existing settlements in the wider locality, in order to avoid any coalescence and preserve their distinctiveness, would be a valid and undoubtedly essential approach of any such work.

3.37 Future masterplanning work would be undertaken in partnership with stakeholders and be subject to its own public consultation. Such work would take forward the outcomes through to the production of a Development Plan Document. It would then set the policy framework for any future planning applications and make clear the requirement for individual applications to demonstrate how they align with the masterplan including how they will contribute to the delivery of strategic infrastructure.

3.38 The identification of Carlisle South in the Plan does not imply that the whole area should be developed. Within this wider area, specific and linked development sites will be identified and allocated for specific uses, taking account of infrastructure needs and land constraints through the processes outlined.

3.39 It would prejudice the strategy of the Plan if individual sites within the Carlisle South area came forward until such time as the intended Development Plan Document, inclusive of an infrastructure delivery strategy, is adopted. It would also prejudice the delivery of infrastructure.



Policy SP 4 - Carlisle City Centre and Caldew Riverside

In order to maintain and enhance its status, Carlisle City Centre, as defined on the Policies Map, will be the principal focus for comparison retail within the District, in addition to leisure, office and other main town centre uses.

Development proposals within the City Centre should support its vitality and viability and respond to opportunities to:

1. create a diverse mix of uses, including City Centre living, which support vitality through generating daytime and evening activity;
2. preserve or enhance the character, appearance and wider setting of the City Centre, Botchergate and Portland Square/ Chatsworth Square Conservation Areas and contribute towards the delivery of objectives within their respective Management Plans;
3. create new and enhance the existing public realm through imaginative hard and soft landscaping;
4. improve connectivity within the City Centre specifically with regards to increasing pedestrian and cycle permeability and accessibility; and
5. bring back into beneficial use vacant and redundant buildings and upper floors particularly where to do so would increase City Centre living or generate job growth.

Land to the north of Lowther Street including Rickergate has been identified for a potential future expansion of the Primary Shopping Area. Retail led development proposals within this area will be supported where they are in response to identified needs, are guided by a comprehensive strategy and where it can be demonstrated that the proposal would integrate effectively with the existing Primary Shopping Area. Proposals within this area which would prejudice the ability to respond to an identified need to deliver additional comparison retail floor space will be unlikely to be supported, unless the benefits of doing so outweigh the benefits of safeguarding the potential expansion.

To the south of the City Centre a notable and significant opportunity exists in the locality of the Citadel, as defined on the Policies Map, to reuse and redevelop buildings and land for a mix of uses which could act as a catalyst to enhance the vitality and viability of the southern extent of the City Centre, including Botchergate, and further improve the sense of arrival for visitors using this important historic and iconic gateway. Consideration will be afforded to progressing a development brief for this locality to ensure that the opportunity to deliver a comprehensive and strategic development across this area is safeguarded. This approach will also ensure that the potential

benefits are maximised and that any opportunities to accelerate delivery are identified. Proposals will be supported providing that they do not prejudice any longer term opportunities and respect the significance of the heritage assets which characterise this area.

Caldew Riverside, as defined on the Policies Map, constitutes a significant regeneration opportunity outwith but in close proximity to the City Centre, to bring back into beneficial use land for a mix of uses which would complement those found in the City Centre and in doing so aid its overall attractiveness. Development proposals for main town centres uses on this site will be considered on their merits, and should be accompanied by a sequential and impact test in accordance with Policy EC 6, to ensure that any proposed scheme does not threaten the delivery of sequentially preferable sites and the health of the City Centre Primary Shopping Area. Development proposals should demonstrate how they would contribute to the delivery of the comprehensive redevelopment of the wider site and positively interact with the River Caldew, including enhancing the riverside walk/cycle way, as well as improving linkages with the City's West Walls and the City Centre beyond.

All proposals will need to consider their impacts on the transportation network.

Justification

- 3.40** Carlisle City Centre is the main retail, leisure, service and administrative centre for a sub region encompassing the majority of Cumbria and which extends into South West Scotland and the Scottish Borders. Due to its historic status and heritage assets it is also an important visitor destination, and a key economic driver which is reflective of the roles it performs and jobs these roles give rise to. In order to maintain this status and ensure that its offer keeps pace with a growing population and expectations, there is a need to plan positively for the future of the City Centre.
- 3.41** The extent of the City Centre is defined on the Policies Map. This area will, in accordance with national policy and Policy SP 2 of the Local Plan, be the principal focus for main town centre uses, with comparison (non-food) retail further focussed within the Primary Shopping Area within the City Centre in accordance with Policy EC 3 of the Local Plan.
- 3.42** The Council commissioned consultants to prepare the City Centre Development Framework (CCDF) to guide the consideration of future development proposals in the City to 2030. Policy SP 4 seeks to embed the key principles to emerge from this work within the Local Plan and to take forward the key development opportunities identified.



3.43 The overriding objective for development within the City Centre will be to contribute to maintaining and where possible enhancing, in accordance with national policy, its vitality and viability. The need for proposals to contribute towards a diverse mix of uses reflects a desire to act to ensure vitality throughout both the daytime and evening economies, and in doing so expand the City Centre offer.

3.44 The City Centre is covered in its entirety by conservation area designations which serve to reinforce its historic status. Botchergate is currently identified as a Conservation Area at Risk and it is therefore imperative that opportunities are taken to contribute towards the achievement of actions within its adopted management plan in order to help reverse its decline. Whilst management plans are not yet in place for the City Centre and Portland Square/Chatsworth Square Conservation

Areas, proposals will be expected to contribute towards the delivery of objectives within these once in place.

3.45 The public realm within the City Centre exerts a significant influence on the perceived quality of the City Centre and its overall attractiveness as a destination. Whilst there has been significant investment in public realm within key areas of the City Centre, there remains a need to improve its quality in other parts. The City Council have commissioned a public realm framework as a means of helping to identify and prioritise further enhancements, and development proposals should consider how they can assist such efforts. Major development proposals within or on the edge of the City Centre should also consider how they can help to expand the public realm network through opening up access to high quality public space.

3.46 Connectivity between parts of the City Centre, and between the City Centre and adjoining areas and/or attractions, is not as good as it could be. Whilst in some regards connectivity could be improved through more simplistic measures such as enhanced signage, at the other end of the spectrum more creative solutions are required to overcome the severance effect of key vehicular routes which pass through the City Centre. Again development proposals should consider how they can assist to improve connectivity, not least through a high quality and inclusive design approach.

3.47 There remains potential across the City Centre to bring back into beneficial use upper floors with the introduction of City Centre living and/or proposals for offices and other uses which generate job growth proven to positively enhance vitality. Such proposals will, subject to conforming to other policies of relevance within the Local Plan, be supported.

3.48 A key objective of the CCDF was to explore whether and where within the City Centre additional A1 comparison (non-food) retail floor space could be accommodated. The need to do so reflects the findings of the Carlisle Retail Study (2012) and both the quantitative and qualitative need for this form of additional floor space within the City Centre within the plan period.

3.49 The CCDF concludes that the most appropriate and logical expansion of the Primary Shopping Area within the City Centre would be to its north, on land to the north and east of Lowther Street. Accordingly this area, which is also that where land availability is currently greatest and market interest strongest, has been identified on the Policies Map as a future extension of the Primary Shopping Area. The extent of land identified reflects that a number of development options exist within this area, as evidenced through the CCDF and other private sector indicative

proposals, through which the required development needs could be met. The identification of this land in this manner is considered to afford a strong degree of flexibility whilst at the same time providing a sufficient degree of certainty to aid investment decisions.

3.50 In order to be supported a fundamental aspect of any proposal within this area will be demonstrating how the development scheme integrates effectively with the existing Primary Shopping Area, particularly from a pedestrian accessibility perspective. Furthermore, such proposals should be guided by a comprehensive strategy to ensure a strategic approach to the actual expansion of the Primary Shopping Area prevails. Proposals which would prejudice the ability of the land to the north and east of Lowther Street to respond to the identified need to deliver additional comparison retail floor space will not be supported.

3.51 The CCDF also identifies that a notable and significant redevelopment opportunity exists to the south of the City Centre centred on the Citadel and former Courts buildings. This reflects that these buildings are shortly (in 2016) to be vacated by Cumbria County Council, and equally that the adjacent properties fronting English Street and Victoria Viaduct are also in public ownership.

3.52 While this location does present a real opportunity to deliver a transformative mixed use development (for a variety of main town centre uses, alongside residential, educational or institutional uses), realising this will not be without challenges. Development will need to respect the historic character and fabric of the site, and comprehensive development will be dependent on assembling a number of leases. Reflecting these characteristics, it may be that the redevelopment of this site will need to take place on a phased basis.



3.53 In order to ensure that the opportunity to deliver a comprehensive and strategic development across the wider Citadel area in the future is not lost, the Council will consider progressing a development brief for the site in conjunction with Cumbria County Council. Importantly this process may also help to identify opportunities to accelerate the delivery of a more comprehensive redevelopment and ensure that the benefits associated with redeveloping this site in acting as a catalyst to improve the vitality and viability of the southern extent of the City Centre, including Botchergate, are maximised.

3.54 Caldew Riverside constitutes a significant regeneration opportunity to bring back into beneficial use land for a mix of uses outwith, and although in close proximity physically distinct from, the City Centre. The site is not

however without its constraints and is contaminated in parts and subject to the risk of flooding. Planning permission is in place for a food superstore on part of the site with the consent for this having been lawfully implemented but not currently progressed. Based on the level of need identified in the Carlisle Retail Study the site is not relied upon to accommodate any main town centre uses.

3.55 The CCDF identifies that a mix of uses could potentially be accommodated on this site subject to addressing the relevant policy tests elsewhere within the Local Plan and providing these uses do not undermine the delivery of sequentially preferable site opportunities within the City Centre including the proposed extension of the Primary Shopping Area and the redevelopment of the Citadel complex. The delivery of main town centre uses on these sequentially preferable sites

will be given clear priority over Caldew Riverside. In these circumstances development proposals for the site will be considered on their merits and be expected to deliver enhanced walking and cycling links and to aid the overall attractiveness of the City Centre through the delivery of uses which would complement those found within it.

3.56 Finally all proposals will need to consider their impacts on the transportation network, in accordance with Policies SP 5 and IP 2 of the Local Plan, to ensure that access to key sites and key routes are not adversely affected.

Policy SP 5 - Strategic Connectivity

The City Council will support improvements to the transport network, in partnership with delivery partners and operators, including the Highway Authority, in order to support the District's growth aspirations and Carlisle's role as a strategic transport hub.

Proposals in line with the objectives of the 3rd Cumbria Local Transport Plan will be supported. Interventions to facilitate growth as identified in the Infrastructure Delivery Plan will be prioritised. Opportunities will also be taken to:

1. increase the provision for walking and cycling, including improved connectivity across the District;
2. retain and enhance existing public transport services and to improve and modernise key public transport infrastructure including Carlisle Railway Station and interchange;
3. promote economic growth and seek to attract new and growing investment along the M6 corridor;
4. improve transport networks for all modes to ensure access and movement are maintained;
5. develop a southern relief road linking Junction 42 of the M6 with the southern end of the A689 as part of developing the broad location of Carlisle South;

6. enhance the appearance of key gateways;
7. secure a modal shift in the transport of freight from road to rail and improve connections with the Port of Workington; and
8. support Carlisle Airport as a gateway for business, tourism and in helping to improve access to global markets and destinations.

The lines of disused railways which have the potential for future use as green corridors for walking and cycling, or to facilitate the reinstatement of public transport services, will be protected. Specifically, the alignment of the former Carlisle - Longtown - Borders railway will, as far as possible, be protected through recognition of the longer term aspiration to reinstate the Carlisle-Borders-Edinburgh rail connection.

Land will be safeguarded and/or allocated through the planning process to support the realisation of new or improved transport infrastructure.



Justification

3.57 Carlisle fulfils an important role as a strategic transport hub for the wider Cumbrian sub-region. The strategically important M6 passes through the District from south to north and links to Scotland beyond as well as important east and west connections to Newcastle and the Northeast and West Cumbria including the Port of Workington and Britain's Energy Coast. Carlisle also hosts Cumbria's principal railway station with Carlisle Station fulfilling an important gateway and rail interchange on the strategically important West Coast Mainline. A number of strategic green corridors and cycle ways traverse through the District and link to the Lake District, Yorkshire Dales and Northumberland National Parks. Carlisle Airport is also a strategically important transport asset for both Carlisle and the wider sub-region, with aspirations to increase its role and function over the next few years.

3.58 Carlisle's strategic connectivity makes it an accessible and attractive location for investment and supports and services the wider County. The need to protect and further enhance this connectivity has however been identified as critical in supporting not only the District's growth aspirations but also those of the wider County. The need for this is echoed by the Cumbria LEP which, through its Strategic Economic Plan, identifies connectivity as one of four key priorities stating that investment is required in the full range of Cumbria's strategic networks, including rail, road, cycleways and public transport to improve connectivity within and to the sub-region.

3.59 The 3rd Cumbria Local Transport Plan (LTP) sets out objectives and plans for developing transport across Cumbria including within Carlisle. The overriding objective of the Cumbria LTP is to ensure a high quality and resilient

highway and transport network that everyone can access, which supports the development of a sustainable and prosperous low carbon economy and ensures Cumbria's outstanding environment can be enjoyed. The policies and allocations within this Local Plan help to contribute to this ambition through acting to reduce the need to travel, reduce the need to use private vehicles, promoting accessibility to jobs, shopping, leisure and community facilities by public transport, walking and cycling and promoting more sustainable transport choices for both people and freight. Specific proposals which further aid the delivery of the LTP objectives will be supported.

3.60 In order to facilitate the levels of growth set out in the Local Plan, interventions identified through the Infrastructure Delivery Plan (IDP) will be prioritised. The IDP acts to document

and continually review infrastructure requirements, including transport infrastructure, and subsequently to monitor whether the delivery of infrastructure is keeping pace with development. The IDP has been developed with the co-operation of a wide range of infrastructure providers including transport partners and operators.

3.61 Opportunities will also be taken where they arise to assist in the realisation of a number of strategic interventions listed in Policy SP 5. These include improving opportunities for walking and cycling; modernising public transport infrastructure; acting to capitalise on the economic potential of the M6 corridor; improving transport networks; enhancing the appearance of key gateways; securing a modal shift in the transport of freight from road to rail particularly within the context presented by the part

commercialisation of surplus land at MOD Longtown and potential connectivity to the Port of Workington; and supporting Carlisle Airport as a gateway for business, tourism and in helping to improve access to global markets and destinations.

3.62 The lines of disused railways offer unique opportunities to improve connectivity through their reinstatement as transport corridors. Every effort will therefore be made to protect the potential of disused alignments within the District as far as is possible. Of particular relevance within the District is the alignment of the former Carlisle-Longtown-Borders railway in light of the Campaign for Borders Rail and cross boundary longer term aspirations to reinstate the Carlisle-Borders-Edinburgh rail connection. Of relevance to these aspirations is the Scottish Government's decision to re-open the section of this route between

Edinburgh and Tweedbank which is currently under construction, albeit that no firm proposals are yet in place to further extend this route.

3.63 Where land is identified as being essential to the delivery of transport interventions which have a reasonable prospect of delivery, it will be safeguarded where necessary through the planning process. No such safeguarding is considered necessary at the current time, but if needed throughout the life of the Local Plan will be achieved through the partial review of the Local Plan or acting to bring forward an additional Development Plan Document.



Policy SP 6 - Securing Good Design

Development proposals will be assessed against the following design principles. Proposals should:

1. respond to the local context and the form of surrounding buildings in relation to density, height, scale, massing and established street patterns and by making use of appropriate materials and detailing;
2. take into consideration any important landscape or topographical features and respect local landscape character;
3. reinforce local architectural features to promote and respect local character and distinctiveness;
4. take into consideration the historic environment including both designated and undesignated heritage assets and their settings;
5. ensure all components of the proposal, such as buildings, car parking, and new connections, open space and landscaping are accessible and inclusive to everyone, safe and well related to one another to ensure a scheme which is attractive and well integrated with its surroundings;
6. seek to ensure that streets are designed, where appropriate, to encourage low vehicle speeds which allow streets to function as social spaces;
7. ensure there is no adverse effect on the residential amenity of existing areas, or adjacent land uses, or result in unacceptable conditions for future users and occupiers of the development;
8. aim to ensure the retention and enhancement of existing trees, shrubs, hedges and other wildlife habitats through avoidance, including alternative design. If the loss of environmental features cannot be avoided, appropriate mitigation measures should be put in place and on-site replacement of those features will be sought;
9. include landscaping schemes (both hard and soft) to assist the integration of new development into existing areas and ensure that development on the edge of settlements is fully integrated into its surroundings;
10. ensure that the necessary services and infrastructure can be incorporated without causing unacceptable harm to retained features, or cause visual cluttering;
11. ensure that the layout and design incorporates adequate space for waste and recycling bin storage and collection; and
12. when agreed by the Highway Authority, the reinstatement of existing traditional materials will also be sought, following repairs to roads, pavements, kerbs and underground services.

All proposals should be designed to maximise opportunities to employ sustainable design and construction techniques.

Justification

3.64 High quality design is an integral part of sustainable development and accordingly is a key thrust of the Local Plan's strategic overarching strategy. The Plan recognises that good design is essential to creating accessible, inclusive, attractive, vibrant and sustainable places with a strong sense of place, in which people want to live, work and have fun. This policy applies across the whole spectrum of development, regardless of use type or scale; all new development is expected to be well designed and appropriate to its surroundings.

3.65 Good design should enhance the quality of buildings and spaces by considering form and function, efficiency and effectiveness, and the potential impact of a development on the well being of the people who will use and view it. It should be sympathetic to the needs and requirements of different use classes and localities.

3.66 Good design should be the aim of everyone involved in the development process. The principles in this policy will help to ensure that the development itself is not only well designed, but also complements and enhances its local setting whilst being accessible and inclusive to everyone. Developments should also seek to encourage a healthy lifestyle through the provision of opportunities for walking and cycling, and safe places to play, where these are appropriate.

3.67 In areas where there are no significant local building traditions or where positive character elements are lacking, proposals should seek to create a strong and attractive local identity through intelligent, innovative and imaginative design.

3.68 Landscaping schemes are an essential consideration of the design process. Landscaping schemes can take two forms: soft landscaping which

includes tree and shrub planting; and hard landscaping concerning paving, walls etc. Where appropriate, the Council may require the partial implementation of a landscaping scheme prior to the completion of the development in order to reduce the impact of the construction works on site in the interim period. The proposed development should be situated to reflect the mature growth of species above ground and landscaping schemes should take account of the position of underground services and utilities, ensuring any planting does not compromise their function.

3.69 In addition to this policy consideration must also be given to any additional design guidance/policies or site specific supplementary planning documents including those set out in neighbourhood development plans.



Policy SP 7 - Valuing our Heritage and Cultural Identity

The Council will, through planning decisions and in fulfilling its wider functions, proactively manage and work with partners to protect and enhance the character, appearance, archaeological and historic value and significance of the District's designated and undesignated heritage assets and their settings.

Opportunities will also be pursued, to aid the promotion, enjoyment, understanding and interpretation of both heritage and cultural assets, as a means of maximising wider public benefits and in reinforcing Carlisle's distinct identity.

Key elements which contribute to the distinct identity of Carlisle District, and which will therefore be a priority for safeguarding and enhancing into the future, include;

1. the outstanding universal value of the World Heritage Site associated with the Roman frontier including Hadrian's Wall and associated Roman sites such as Bew Castle;
2. medieval castles and other fortifications including Carlisle Castle and the City Walls, the Citadel, Brampton Mote, Bew Castle, Naworth Castle, Rose Castle, Scaleby Castle and other bastles and fortified houses;
3. Battle of the Solway Moss battlefield;

4. the historic quarter of Carlisle City including the Cathedral and its precinct, Carlisle Castle and the City Walls, Tullie House Museum, the Market Cross, Old Town Hall and the Guildhall, as well as the important streets and spaces which interconnect and provide a setting for these assets;
5. important industrial heritage including Tindale, Forest Head Quarries and prominent and historically significant mill / factory buildings in West Carlisle including Dixon's Chimney;
6. key religious sites and their settings including the Cathedral precinct, Brampton, Burgh by Sands, Lanercost, Wreay and Bewcastle Cross;
7. conservation areas across the District and particularly Botchergate and the City Centre which fulfil important social and economic functions for the District and wider sub-region; and
8. key cultural assets encompassing parklands, landscapes, museums, art galleries, public art, local food and drink and local customs and traditions.

As well as fulfilling its statutory obligations, the Council will:

- a) seek to identify, protect and enhance locally identified heritage assets;

b) promote heritage-led regeneration including in relation to development opportunities in the City Centre;

c) produce conservation area appraisals and management plans;

d) develop a positive strategy to safeguard the future of any heritage assets that are considered to be 'at risk'; and

e) adopt a proactive approach to utilising development opportunities to increase the promotion and interpretation of the District's rich archaeological wealth.

A more detailed suite of policies as a key mechanism through which to help safeguard the above assets and wider archaeological interest is set out in the historic environment chapter of the Plan.

Justification

3.70 The historic environment plays a vitally important role, both in terms of keeping the story of Carlisle's history alive for the people who live here but also for the economy in telling visitors that story. It is a source of local pride and identity, as well as being a valuable educational and economic resource. It is central to the character, quality and cultural identity of the District and contributes significantly, from a social perspective, to quality of life. The historic environment acts as a stimulus and inspiration to place making and plays a part in increasing the appeal of the area as a place to live, work, visit and invest in.

3.71 The District contains a wealth of heritage and cultural assets and evidence which have, and will continue to, inform our understanding and interpretation of the development of the District's historic landscapes and townscapes, all of which contribute to its identity and local distinctiveness. In

these regards it is pertinent to note that whilst much is known about the past, much equally remains to be discovered.

3.72 Policy SP 7 serves to ensure that this evidence is given due consideration in planning decisions and, aside from planning and development proposals, reaffirms the Council's commitment to work proactively with partners where opportunities arise to preserve, protect and enhance the character, appearance, archaeological and historic value of heritage and cultural assets, as well as to better understand their significance. In these regards the policy sets a clear and important statement of intent with regards to both heritage and cultural considerations playing an integral part in local decision making.

3.73 The Local Plan in its widest sense seeks to achieve this aim through ensuring that both heritage and cultural assets are safeguarded or enhanced



for the future, both for their own heritage and cultural merits and for the wider benefits they bring, in line with the NPPF. Benefits should include improvements in the quality of the historic built environment, stimulation of high architectural quality in new buildings, creation of a stronger local identity and sense of place, increased sustainability, encouragement of local building craft skills, greater opportunities for interpretation and use of the historic environment in education and increased levels of investment and tourism. To ensure that historic assets make a positive contribution towards the wider economic, social and environmental regeneration of Carlisle District, it is important that they are not considered in isolation but are conserved and enhanced within their wider context. A holistic approach to the built and natural environment maximises opportunities to improve the overall image and quality of life in

the District by ensuring that the historic context informs planning decisions and provides opportunities to link with other environmental infrastructure initiatives, working with partners.

3.74 Like most places, Carlisle District has a number of heritage assets that are considered to be ‘at risk’. The Council will work with partners to help secure the long term sustainable future of such assets and aims to reduce the number of buildings and areas at risk. As part of this, should a historic building (designated or undesignated) become vacant, under-used, or derelict, the council will, where appropriate, encourage its owner to promote its re-use, or its more efficient existing use where this preserves or enhances its heritage significance. As a last resort, the Council may employ more robust measures such as Amenity Notices, Urgent Works Notices and Repairs Notices, to safeguard finite historic assets from unwarranted loss.

Policy SP 8 - Green and Blue Infrastructure

The Council will, through planning decisions and in fulfilling its wider functions, work with partners to develop a holistic approach to the protection and stewardship of the District's green and blue infrastructure through a comprehensive and connected policy approach.

Existing assets will be protected and, where possible, enhanced in order to establish a multifunctional, integrated and accessible green and blue infrastructure network which maximises wider public and ecological benefits.

New development will be required to work towards delivering, where appropriate and achievable, outcomes of the Carlisle Green Infrastructure Strategy. At a strategic level these include:

1. affording the highest level of protection to key blue and green assets and taking opportunities to enhance relationships with, views and the setting of aquatic assets such as the Rivers Eden, Caldew, and Petteril within the City;
2. recognising and enhancing the function of and connectivity to Bitts and Rickerby Parks as strategic green infrastructure hubs for the City and wider District;
3. supporting and enhancing strategic green links including Hadrian's Wall National Trail, the Cumbria Way, English Coastal Path and The Reivers Route;

4. supporting and enhancing those assets which fulfil a key visitor and leisure, or other productive economic function including Bitts and Rickerby Parks, Talkin Tarn and Kershope Forest; and
5. protecting the lines of disused railways and encouraging, where appropriate and possible, proposals for their reuse for green transport links such as cycleways and footpaths, or as important wildlife corridors.

Conditions, legal agreements and developer contributions will be sought to secure new or enhanced green and blue infrastructure provision on, or associated with, new development. Developers will be expected to provide some aspects of green and blue infrastructure within developments, ensuring that, where possible, they integrate with wider blue and green infrastructure networks.

Where unavoidable harm is caused to a green infrastructure asset through development, the developer will be expected to replace or mitigate for this damage. Any replacement or mitigation measure will be expected to be of similar or better quality to that lost, including fulfilling the same functions effectively, and should be deployed as closely as possible to the affected green infrastructure asset.



Justification

3.75 ‘Green infrastructure’ (GI) is a term used to refer to the living network of green spaces, water and other environmental features in both urban and rural areas. It is often used in an urban context to cover benefits provided by trees, parks, gardens, road verges, allotments, cemeteries, woodlands, rivers and wetlands, but is also relevant in a rural context, where it might refer to the use of farmland, woodland, wetlands or other natural features. In some instances, GI can also provide important off-road walking and cycling links, contributing in part to the wider, integrated transport network. ‘Blue infrastructure’ (BI) refers to the aquatic and hydrological networks such as rivers and canals which often entail wider corridors and therefore go hand in hand with GI.

3.76 National policy expects planning authorities to plan positively for the creation, protection, enhancement

and management of green and blue infrastructure networks. This reflects that beyond the key role these infrastructure networks play in providing a pleasant and green environment, they also constitute an important mechanism for building resilience against and countering the impacts and causes of climate change. They also have a proven and demonstrable positive impact upon peoples’ quality of life and health and well being, providing both pleasant and safe places for exercise but also the sense of comfort and connection to the natural environment, providing rich and varied habitats that allow the District’s flora and fauna thrive. Fundamentally they also play a key role in supporting and driving economic growth and regeneration.

3.77 At the heart of Policy SP 8 is a presumption against the loss of any components of GI which fulfil or have

the potential to fulfil valuable functions unless the loss of such assets can be mitigated. Productive landscapes also fall under the definition of GI and these landscapes, which help drive the rural economy through forestry, agriculture and tourism, will be protected from inappropriate development through this policy.

3.78 The Carlisle Green Infrastructure Strategy (2011) sets out a vision which places adopting a progressive approach to GI at the heart of creating an excellent place for business, community and wildlife, which is confident in its own distinctiveness, strength and resilience, ultimately to assist in making Carlisle one of the best places in the UK to live, work, invest and enjoy life. In addition to a number of specific actions the strategy highlights four key benefits of using GI as follows:

- enhancing the image and perception of the District through improving the aesthetics and environmental quality of key areas over time;
- supporting spatial and economic growth by creating the setting and stimulus for this as well as making it sustainable;
- to improve quality of life through tackling health and wellbeing inequalities and deprivation; and
- enhancing sustainability and resilience through presenting an opportunity to future-proof the District.

3.79 The City Council will work with partners to help realise the ambitions of the GI Strategy and will aim to ensure that all opportunities are taken through the planning system to add to, enhance the quality of, improve the functionality and increase the connectivity of the District's green and blue infrastructure networks.

3.80 Applicants for all development proposals will be expected to consider and be designed to maximise the full range of benefits of green and blue infrastructure affording careful consideration to how they can add to and integrate with existing spaces and the wider network. Where appropriate, provision should be made on site for green infrastructure through, for example, landscaping and open space provision. In such circumstances consideration should be afforded to the functionality of such components, for example, including how they can equally assist with climate change adaptation through providing natural shading and urban cooling or in creating valuable habitat to support and enable biodiversity to flourish or to improve ecological connectivity.

3.81 The Carlisle Green Infrastructure Strategy (2011) highlights a particular lack of accessible green space within the City Centre, emphasising the value this places on those green spaces that are present. In these circumstances and in other areas where a deficit is identified, developers may be required to contribute towards new provision. This approach reflects the need to ensure that this form of infrastructure keeps pace with development and ultimately that those proposals which place an increased demand on assets contribute to upgrading capacity. Such contributions may also be justified on the basis of the necessity to improve the quality of existing assets and/or to improve their accessibility. In some circumstances contributions towards the maintenance of these assets will also be justified. The imposition of conditions or planning obligations will be used where necessary to secure such contributions.



Policy SP 9 - Healthy and Thriving Communities

The Council will, through planning decisions and in fulfilling its wider functions, work with partners to proactively improve the health and sense of wellbeing of the District's population, and reduce health inequalities. The Council will support development of new/enhanced healthcare infrastructure and will aim to ensure that all development contributes to enhanced health and wellbeing outcomes through the following measures:

1. creating high-quality and inclusive environments that support people in making healthy choices, and that make these choices easier by encouraging development proposals to maximise the opportunity for walking and cycling, social interaction, sport and physical activity, whilst providing accessible local services, facilities and jobs, a diverse and useable integrated network of green infrastructure assets and convenient public transport facilities;
2. providing high quality design which ensures that developments consider their lifetime quality, create safe and accessible environments and minimise and mitigate against potential harm from risks such as pollution and other environmental hazards;
3. encouraging the development of decent homes that are adaptable for the life course of the occupiers;
4. carrying out Health Impact Assessments for significant strategic proposals and for proposals that are likely to have a significant impact on the health and wellbeing of the local population, or particular groups within it, in order to identify measures to maximise the health benefits of development and avoid any potential adverse impacts;
5. preparing for extreme weather events by creating environments and communities that are resilient to the impacts of extreme weather, ultimately caused by climate change;
6. protecting and promoting the role of community food growing spaces including allotments, community orchards and community gardens in providing social and mental health benefits and access to healthy, affordable locally produced food as part of Carlisle's role as a Food City; and
7. maximising opportunities for renewable and decentralised energy.

Justification

3.82 The impact of our environment on the health and wellbeing of the population is being increasingly recognised in health plans, strategies and policy statements and in national planning policies. Almost every decision has the potential to impact upon human health and wellbeing and Carlisle's status as a Healthy City adds additional focus to the health and wellbeing benefits that are attainable from sustainable development, in creating environments that allow people to reach their full health potential at all stages of their lives. The potential impacts of development are wide ranging and so due consideration must be given to how spatial planning, urban design, housing and regeneration can enhance the quality of the environment and contribute to addressing the causes of ill-health, improving health and reducing health inequalities.

3.83 The District currently has some significant pockets of deprivation with over 18,000 people living in areas considered to be the most deprived in England (Carlisle Health and Wellbeing Profile 2013). It is recognised that behavioural factors are not the only influences on health. Social and economic circumstances affect how people behave and their health.

3.84 The link between planning and health has been long established. Development can affect health and health inequalities in a variety of ways, including through; the quality of housing and developments, design of neighbourhoods, density of development, mix of land uses, quality and efficient transport systems, opportunities to undertake recreation and experience leisure and cultural activities, opportunities to grow or have access to healthy food, access to green and open space facilities, air quality, noise and exposure to

hazardous substances. It is therefore recognised that the Local Plan has a key part to play in addressing the health inequalities of our District in order to create better environments for people to live, work and play, as well as protecting and improving access to health services at a local level such as GPs and at a larger scale, such as the Cumberland Infirmary.

3.85 Health starts where people live, learn, work and play and so the Local Plan is important in guiding development of different uses, scale and location and striving to ensure that health and wellbeing will not be compromised as a result of new development. Efforts to improve health outcomes through the Local Plan will be maximised by the application of those policies which seek to ensure that new development takes account of access to services and facilities; enables walking and cycling; provides access to formal and



informal community meeting spaces, sports facilities; reduces the fear of crime and supports the development of education and health facilities; as well as seeking to protect health through policies that ensure only appropriate developments are granted within close proximity to populated areas such as policies considering levels of pollution and hazardous substances etc. Health and wellbeing is therefore an underlying theme for consideration when assessing any application for development. It is also recognised that proposals that provide improved social, economic and environmental opportunities can address some of the existing design disadvantage in the District.

3.86 Green infrastructure can play a key role in contributing towards the health of the District. This can include a range of usable, high quality green assets which can be wide ranging in their role and function for the local community. This can include, for example, green spaces for play, areas for food growing,

networks of semi-natural habitats which provide opportunities to interact with nature as well as peaceful and tranquil green spaces in which people can relax.

3.87 Health and wellbeing can be improved by ensuring that homes are accessible, inclusive and incorporate design features which add to the comfort and convenience of the home and support the changing needs of individuals and families at different stages of life, their life-course. This type of development would allow older people to stay in their own homes for longer, reduce the need for home adaptations and give greater choice to disabled people who cannot achieve independent living due to lack of suitable housing. The Local Plan encourages the development of decent homes that are adaptable for the life course of the occupiers, given the numbers of residents in the three oldest age bands (60-74, 75-84 and 85+) are projected to increase (Cumbria Observatory, Spring 2014) across the

plan period. The Council will seek to ensure that consideration will be given to the needs of the community on a site by site basis and an appropriate mix of dwellings agreed through the Development Management process.

3.88 The links between health, education, community and planning are also highlighted by national planning policy which acknowledges the role that the planning system can play in facilitating social interaction and creating healthy, inclusive communities. It emphasises the importance of working with health partners to understand and take account of the health status and needs of the local population, including expected future changes, and barriers to improving health and wellbeing. This policy seeks to ensure that development enhances health and wellbeing and does not have a negative effect on it by ensuring that public health partners are consulted on development proposals.

3.89 Where proposals for development are likely to have a significant impact on health and wellbeing of the local population or particular groups within it, a Health Impact Assessment (HIA) will be required. The HIA should measure the potential health impacts of a development proposal on the wider population. It is a tool to appraise both positive e.g. physical, social and mental wellbeing benefits from the creation of accessible open space and negative e.g. generation of pollution impacts on different subgroups of the population that might result from the proposal being implemented. HIAs will add value and assist decision making in the planning process by maximising the benefits and opportunities from a development to contribute towards creating healthy communities. It allows any necessary mitigation measures to be identified and can help to identify the potentially cumulatively significant effect a proposal could have on health infrastructure and/or the demand for

healthcare services. The Local Plan has itself been the subject of a HIA. The potential need for an HIA in relation to a planning application will be raised with applicants through the pre-application process.

3.90 Good public transport, in combination with cycling and walking, can reduce air pollution, noise and greenhouse gas emissions, energy consumption and congestion, improve road safety and better protect landscapes and urban cohesion, while providing more opportunities to be physically active and socially connected with improved access to educational, recreational and job opportunities. Where there are public green spaces and forests, people can use these to walk, play, and cycle, turning physical activity into an integral part of their daily lives, improving health by reducing stress levels and noise pollution.

3.91 Demonstrating the relationship between sustainable development and health is a powerful argument to support climate change mitigation and adaptation in particular and sustainable development in general. A healthier environment can contribute to better outcomes for all. This involves valuing and enhancing our natural resources, whilst reducing harmful pollution and significantly reducing carbon emissions. By valuing our physical and social environment, we can restore our natural environment and strengthen our social assets, whilst enhancing our independence and wellbeing at both a personal and community level. By doing so, we improve the quality of care, build strong communities and generate conditions where life is valued. One example of developments reducing the impacts of climate change is through tree planting as trees absorb atmospheric pollutants and produce oxygen whilst absorbing carbon dioxide and sequestering carbon, and can also provide urban cooling through natural shading.



3.92 Carlisle District is a founding member of the Sustainable Food Cities Network which strives to create a City where good food flourishes and where we work in partnership to empower change towards a vibrant and inclusive food culture. As part of the commitment to sustainable development, sustainable food production will be promoted in consideration of its contribution to health and wellbeing, environmental sustainability, local commercial enterprise prosperity and strengthening communities. Acknowledging and acting to protect the roles of community growing spaces such as allotments, community orchards, community gardens and farmers' markets in providing access to healthy, affordable locally produced food will assist this aim.

Policy SP 10 - Supporting Skilled Communities

The City Council will work with partners to develop skilled communities in order to underpin future economic growth.

In contributing to this objective the City Council will support developments which relate to the operational needs of and/or expansion of all of the District's higher, further and specialist education establishments including the University of Cumbria and Carlisle College.

Ancillary and related uses such as student housing will also be supported providing it can be demonstrated that such uses are:

1. genuinely linked to the education establishment and its operations;
2. in locations where they are compatible with the surrounding land uses; and
3. in accessible locations which minimise the need to travel.

Where appropriate any new or proposed extensions to existing campuses should be guided by a comprehensive and clear strategy.

Justification

- 3.93** The Economic Review of Carlisle (January 2013) identifies as a priority a need to ensure the availability of “Motivated and skilled people, able and willing to be effective employees and entrepreneurs” in order to underpin Carlisle’s growth.
- 3.94** Carlisle College is the main provider of higher education in the District. It provides education opportunities for students over 14 years of age and vocational and skills training for a growing number of young and mature students and is helping to expand the skills base locally. Significant investment, including physical expansion, has been and continues to be made to the College facilities.
- 3.95** The University of Cumbria has now become well established in Carlisle having brought together many of the previous further education offers in the District. Alongside Carlisle College, the University is at the forefront of looking to strengthen the further education offer across Cumbria resulting in higher student numbers and improved facilities within Carlisle. The University also plays a leading role in terms of fostering business growth and interaction within the wider region, and as a research establishment.
- 3.96** Policy SP 10 provides a clear commitment to work with partners to develop a skilled population and workforce within Carlisle. From a land use planning perspective it provides a clear framework to guide investment decisions, making clear that developments which relate to the operational needs or expansion of higher and further education establishments will, in principle, be supported. This support extends to cover ancillary and related uses which are recognised as essential to the wider attractiveness and ultimately success of these establishments.
- 3.97** Given the nature of such facilities it is important to ensure that these continue to be sustainable from an accessibility perspective and therefore in locations which minimise the need to travel. There is also a need to ensure that they are compatible with surrounding uses which reflects that most existing facilities currently operate successfully in mixed use environments.
- 3.98** The University of Cumbria continues to largely operate from separate premises around the City rather than a single campus. In order to develop a future strategy for higher education the University of Cumbria has been reviewing their existing operations and the use of premises as part of a new Masterplan for their presence in Carlisle. The Council are continuing to work with the University to discuss how their future aspirations can be supported, where appropriate, through



the planning process and will continue to advocate in these and similar circumstances that such intentions are guided by a comprehensive and clear strategy.

4 Economy

Objective

- Foster the right conditions to stimulate inward investment through increasing the working age population, strengthening and expanding the skills base available, diversifying the economy and improving enabling physical infrastructure.
- To create opportunities for economic growth by making land available to meet the current and future quantitative and qualitative needs of the business community and to maintain Carlisle's role as an economic driver for a wider geographical area.
- To focus new retail and leisure floorspace within the City Centre, and take opportunities to strengthen and diversify its offer, in order to enhance its role as a sub-regional service centre and leisure and cultural destination.

Context

The City Council is committed to delivering sustainable economic growth for its residents, businesses and visitors. The Local Plan will be one of the mechanisms to help deliver economic growth by setting out a clear and positive framework which supports and enables the expansion of existing businesses and creates the right environment and conditions to attract new businesses and investment.

Evidence shows that one of the key economic issues to date has been the lack of quality and choice of employment locations for companies to invest. The Local Plan seeks to

address these shortcomings through improving the attractiveness of existing sites, and complementing this offer through the provision of new sites, particularly within the strategically important M6 Corridor which is a recognised Cumbria Local Enterprise Partnership priority.

The Local Plan looks to support and enable the growth of all sectors of the District's economy. The vital and complementary roles played by retail, leisure, tourism and agriculture, as well as by industry, are recognised within the Plan with policies designed to allow each sector to prosper.





Policy EC 1 - Employment Land Allocations

In order to support economic growth and increase the level of high value jobs within the local economy, 45 Ha of land has been allocated, as identified on the Policies Map, at:

- Kingmoor Park/Brunthill (37 Ha) for the development of B1 (Business), B2 (General Industrial) and B8 (Storage and Distribution); and
- Land to the South West of Morton (8 Ha) for the development of a business park (B1 use).

Sui Generis uses may also be appropriate within the above allocations providing it can be demonstrated that employment opportunities are nevertheless being maximised and that there would be no significant adverse impacts on existing or proposed adjoining uses.

Consideration will be afforded to the need for and nature and quantum of land release at Carlisle South, in order to support longer term economic objectives, through acting to masterplan the planned major mixed use development in accordance with Policy SP 3.

Justification

- 4.1** The Carlisle Employment Sites Study (2010) identified that whilst there was sufficient land for employment in Carlisle there were qualitative issues with the sites which were available to fulfil this need. A key element of the Plan's economic strategy is to support investment in existing sites to facilitate their modernisation and reconfiguration, as well as ensuring the potential of residual capacity within these sites is realised. This approach is being complemented by the allocation of an additional 45 Ha of land for employment related purposes.
- 4.2** Brunthill comprises of 37 Ha of undeveloped land within the wider established Kingmoor Park strategic employment location. The site has good access to Junction 44 of the M6. Kingmoor Park is one of a number of strategic locations recognised by the Cumbria Local Enterprise Partnership (LEP) as central with regards to capitalising on the potential associated with the strategic connectivity of the M6 Corridor. The site benefits from a series of permissions which are either outline in nature or full consents which are yet to be implemented. Accordingly the allocation of the site is considered both appropriate and necessary to safeguard it for employment purposes across a longer horizon.

Owing to its location within the heart of Kingmoor Park, future proposals will be required to demonstrate that the development of the site integrates effectively with the remainder of the location.

- 4.3** Land to the South West of Morton comprises of 8 Ha which is well placed to meet economic objectives. Being ideally located directly adjacent to the Carlisle Northern Development Route (CNDR) the site, once developed, will present further job opportunities for residents of the west of the District and importantly ensure a mixed use approach prevails with regards to the development of the wider Morton locality, which includes significant residential development, a new district centre and ancillary community infrastructure including a new primary school. Future proposals will therefore be required to demonstrate that the development of the site integrates

effectively with the wider development and adjoining phases. Whilst the full extent of the allocation currently benefits from outline planning permission for B1 purposes, the allocation of the site is considered both appropriate and necessary to safeguard it for employment purposes across a longer horizon.

- 4.4** Whilst the primary focus of the allocated employment sites will be for B1, B2 and B8 land use purposes, the Policy recognises that in some circumstances Sui Generis uses may also be appropriate. In order to be considered favourably such uses will have to demonstrate that employment opportunities are nevertheless being maximised, through for example the number and nature of jobs inherent in the proposal, as well as demonstrating that the proposed use can co-exist without in any way jeopardising adjacent uses or the effectiveness of

the allocation in its widest sense as a focus for employment related activity. The approach taken by the Plan in these regards responds to the evidence and the need for a flexible approach towards developing land to support economic objectives.

- 4.5** The Carlisle Employment Sites Study (2010) identifies that in employment land terms there is a perceived spatial imbalance with the majority of land and premises to the north of the City away from concentrations of population to the southern areas of the City. Also of relevance is that the Carlisle Economic Partnership Economic Review of Carlisle (January 2013) identifies enhancing and developing key employment sites at Carlisle motorway junctions as a key action, which aligns with wider and well established aspirations to realise the economic potential of the M6 corridor. Policy SP 3 within the Plan identifies Carlisle



South as a broad location for growth for a major mixed use development to meet development needs towards the end of and beyond the plan period. Carlisle South therefore presents an opportunity to act to deliver additional employment land within the south of the City, within the M6 corridor in close proximity to Junction 42, and in doing so to respond to an evidenced need to do so.

- 4.6** Owing to the need to develop Carlisle South in a comprehensive manner which is supported by the timely delivery of the appropriate strategic and local infrastructure, Policy SP 3 commits to developing the location through a masterplan which will be approved as a Development Plan Document (DPD). It is through this process whereby the need for and nature and quantum of employment land release within the South will be considered, subsequent to which additional employment land

allocations within the plan period may be forthcoming. In this latter regard care would need to be afforded to ensuring that the premature release of any land for employment purposes within the South did not compromise current priorities to modernise existing established employment sites, as well as the delivery of the Kingmoor Park and Morton allocations.

Policy EC 2 - Primary Employment Areas

Within Primary Employment Areas, as identified on the Policies Map, proposals for B1, B2 and B8 Uses will be acceptable. Proposals for B1(a), unless clearly ancillary in their nature, will in accordance with national policy be subject to a sequential and impact test. Sui Generis uses may also be appropriate in Primary Employment Areas providing it can be demonstrated that employment opportunities are nevertheless being maximised and that there would be no significant adverse impacts on existing or proposed adjoining uses.

The introduction of non-employment related uses within Primary Employment Areas may be appropriate where such uses are ancillary in nature; of a proportionate scale; and where their introduction would aid the overall attractiveness or sustainability of the employment area.

Trade counters and retailing from employment premises will be restricted in their scale and nature to be ancillary to the main operation of the B1/B2/B8 business. Planning conditions may be imposed to ensure that the use remains ancillary.

Where there is no reasonable prospect of an entire employment site remaining in continued employment use; interventions to improve the attractiveness of the site are not feasible; and its release would not impact on the wider strategy for employment land or the availability of local employment opportunities,

applications for alternative uses of land or buildings will be treated on their merits having regard to market signals and the relative need for different land uses to support sustainable local communities.

Where an existing employment site adversely affects neighbouring residential properties or local amenity, proposals for its redevelopment or change of use will be supported where they would result in the removal of the adverse effect.

In the Sandysike/Whitesyke areas proposals for the redevelopment and extension to existing industrial and warehousing premises will be acceptable subject to careful consideration on any impacts on the landscape owing to their open countryside setting.



Justification

- 4.7** Primary Employment Areas are located across the District and are identified on the Policies Map. They are typically existing industrial and business estates already well established and are home to a variety of large scale strategic employers as well as local employment and small scale business start up units. The wide variety and nature of these areas means that it is difficult to treat them all with equal policy direction. However, they all have varying degrees of similar issues particularly when there is interest from non-traditional employment uses and alternative sites are limited.
- 4.8** Policy EC 2 provides a framework which seeks to safeguard the primary purpose of these areas for employment generating uses (traditionally B1, B2 and B8), in order to provide the wide variety and certainty of sites required to meet the needs of existing businesses or those looking to locate within Carlisle District. The Policy also seeks to encourage investment by making clear that new development such as extensions or the reconfiguration of existing premises for employment related uses within these areas will be appropriate. Proposals for B1(a) (offices), unless clearly ancillary in their nature, will however as a 'main Town Centre' use be subject to a sequential and impact test in accordance with the provisions of Local Plan Policy EC 6.
- 4.9** In response to a need for flexibility, the policy recognises that in some circumstances Sui Generis uses within these areas may also be appropriate. In order to be considered favourably such uses will have to demonstrate that employment opportunities are nevertheless being maximised, through for example the number and nature of jobs inherent in the proposal, as well as demonstrating that the proposed use can co-exist without in any way jeopardising adjacent uses or the effectiveness of the designated area in its widest sense as a focus for employment related activity.
- 4.10** Non employment related uses will only be supported within Primary Employment Areas where proposals are of an appropriate scale and nature which can evidently be seen to be ancillary in nature, and particularly where the introduction of the proposed ancillary use helps to improve the overall attractiveness and/or sustainability of an area. Such flexibility is recognised as paramount within the District given the need to improve the attractiveness of existing employment sites to meet economic growth aspirations in the short to medium term.

4.11 The need to effectively control factory and trade sales from premises within primary employment areas reflects the need to safeguard the City Centre and other recognised retail centres from peripheral and out of centre retail developments. Any proposals which exceed what can genuinely in the circumstances be considered to be ancillary to an existing employment related use will therefore be resisted.

4.12 Where there is no reasonable prospect of a Primary Employment Area or site within being retained for ongoing or future employment use, and interventions to improve the attractiveness of the site are not feasible, development proposals for alternative uses will be considered on their merits. Similarly where the ongoing operation of an existing employment site adversely affects neighbouring residential properties or local amenity, proposals for its

redevelopment or change of use which would act to remove such conflicts will be considered favourably. Such issues are more prevalent in the older and traditional industrial areas of Carlisle City such as Denton Holme, where there is a tight knit pattern of development often with housing and industry in close proximity. Whilst these areas have historically contributed positively towards the supply of employment land within the District, their ability to do so in the future can in some circumstances be genuinely limited or no longer appropriate.



Policy EC 3 - Primary Shopping Areas & Frontages

The District's Primary Shopping Areas, as defined on the Policies Map, will be the focus for new retail development across the plan period, in accordance with the hierarchy set out in Policy SP 2.

Proposals for the change of use of ground floor shops to non-retail uses within Primary Shopping Areas will be supported providing the proposal:

1. would not lead to an unacceptable concentration of such uses and/or undermine the vitality and viability of the area; and
2. includes provision for views into the building or for a window display in keeping with the character of the frontage, in order to retain active frontages.

In order to retain a strong retail core within the City Centre Primary Shopping Area, a number of Primary Shopping Frontages have been defined and are identified on the Policies Map. The impacts of proposals for non-retail uses within a designated frontage will be assessed in the context of the defined frontage as well as the wider area.

Justification

- 4.13** The main policy objective within Primary Shopping Areas is to maintain the vitality and viability of the wider Centres within which they are located, through the retention of high levels of retailing at ground floor levels. This objective is in keeping with national policy which requires competitive town centre environments. Changes of use which would result in concentrations of non-retail uses and the creation of lengths of “dead” frontage, or which would result in a loss of retail provision to the detriment of the overall vitality and viability and attractiveness of the Centre, will be resisted.
- 4.14** Notwithstanding the above it is recognised that the vitality and viability of defined centres is also increasingly dependent on a flexible approach particularly as centres increase their role as destinations for leisure related uses, i.e. eating, drinking and socialising. Accordingly Policy EC 3 sets out the circumstances in which non-retail uses would be acceptable within Primary Shopping Areas.
- 4.15** In order to retain the vitality and viability of the City Centre Primary Shopping Area, it is important that A1 uses continue to dominate the ground floor. The Local Plan seeks to achieve this through the identification of Primary Shopping Frontages. Proposals for non-retail uses within

Primary Shopping Frontages will be subject to an assessment against the criteria specified within Policy EC 3. Importantly such assessments will need to consider any impacts both within the context of the specific frontage designation as well as the wider area.

4.16 Any retail development outside of the Primary Shopping Area should be subject to relevant sequential and impact assessments as consistent with Policy EC 6.



Policy EC 4 - Morton District Centre

Land is allocated at Morton for a District Centre to accommodate a foodstore anchor. Proposals for additional retail, leisure, local services and community facilities will be supported within the District Centre site providing they are of a scale and nature commensurate with its intended catchment and would aid its vitality and viability. Proposals for comparison (Class A1) retail which exceed 500sqm (gross) will need to be accompanied by a retail impact assessment to demonstrate that there would be no significant impact on the City Centre Primary Shopping Area.

Justification

- 4.17** The provision of a District Centre at Morton is important in ensuring that a mixed use and sustainable development approach prevails with regards to the development of the wider Morton locality, which includes a new business park, significant residential development and ancillary community infrastructure including a new primary school. Future proposals will therefore be required to demonstrate that the development of the site integrates effectively with the wider Morton development and adjoining phases.
- 4.18** The Carlisle Retail Study (August 2012) recommends that the District Centre allocation for Morton should be retained in order to provide sufficient policy protection to ensure that the foodstore anchor is delivered. The need for a foodstore reflects the need to address a spatial deficiency in convenience retail provision in the west

and south of the City, and the need for an anchor alongside which a range of complementary retail and leisure uses and community services and facilities can be delivered to meet the needs of existing and future residents. Any complementary uses should be of a scale and nature which is commensurate with the catchment of the District Centre and which do not therefore threaten the vitality and viability of the City Centre and its Primary Shopping Area. Proposals for Class A1 comparison retail will be required to undertake an impact assessment which reflects the need to exercise caution particularly in respect of fashion retailing and the potential negative effect that proposals of this nature may have upon the City Centre Primary Shopping Area.

- 4.19** Any development which would compromise the deliverability of the Morton District allocation will, within the context of Policy EC 6, be resisted.

Policy EC 5 - District and Local Centres

Within District and Local Centres, as identified on the Policies Map, proposals for retail development and other main town centre uses will be acceptable providing that:

1. it is of a scale and nature appropriate to the area served by the centre;
2. it does not adversely affect the amenity of any adjacent residential areas;
3. appropriate access, parking and security arrangements can be achieved; and
4. the design of any new development is attractive and in keeping with the character of the locality.

Non-retail proposals within Local Centres will be supported only where they act to enhance the vitality and viability and overall attractiveness of the centre.

Justification

4.20 The centres of Brampton, Dalston and Longtown are defined as District Centres which reflects that they comprise of groups of shops containing at least one supermarket or superstore, alongside a range of non-retail services, such as banks, building societies and restaurants and other local public facilities such as a library or secondary school. Beyond these there are also a number of Local Centres throughout the District which comprise of clusters of small shops, and often other services and facilities, of a local nature which serve a small catchment. Such centres serve the immediate day to day shopping needs of local residents.

4.21 The following Local Centres have been identified within the District, and are shown on the Policies Map:

Urban Areas

- Blackwell Road, Currock;
- Botchergate South;
- Central Avenue/Pennine Way, Harraby;
- Denton Street;
- Holmrook Road, Whernside;
- Kingstown Road;
- Newlaithes Avenue, Morton;
- Petheril Bank Road, Upperby Bridge;
- Scotland Road, Stanwix;
- Stonegarth, Morton; and
- Wigton Road, Caldewgate.

Rural Areas

- Hallbankgate; and
- Warwick Bridge.



4.22 District and Local Centres often also fulfil a social function bringing members of local communities together. As such it is necessary to protect the vitality and viability of these centres as important attributes of sustainable communities.

4.23 The Policy seeks to enable further retail development or proposals for main town centre uses within defined centres providing the scale and nature of proposals is appropriate and therefore proportionate to the catchment of the area served by the centre. Non retail uses within District or Local Centres will be considered favourably where they act to enhance the vitality and viability and therefore overall attractiveness of the centre, through for example bringing back into beneficial use vacant premises or through appropriately diversifying the mix of uses. Proposals which would result in an unacceptable reduction in shopping facilities and which therefore act to undermine the primary purpose of a District or Local Centre will be resisted.

4.24 Through recognition that District and Local Centres are often within or close to established residential areas, careful consideration will need to be afforded to ensuring that proposals do not prejudice residential amenity. District and Local Centres also play an important role in place shaping and their appearance has an important impact on the perception of the local area itself. Careful consideration should therefore be afforded to the design of any new development to ensure that it is attractive and in keeping with the character of the locality.

Policy EC 6 - Retail and Main Town Centre Uses Outside Defined Centres

Development proposals for new retail and main town centre uses should in the first instance be directed towards defined centres, and for comparison retailing proposals the defined Primary Shopping Areas (where designated) within these centres, in accordance with the hierarchy set out in Policy SP 2.

In line with national policy proposals outside of defined centres will be required to undertake a sequential test. In addition, locally set impact thresholds for retail floorspace have been set for the urban area and will be required for proposals which exceed 1000sqm (gross) for convenience retail and 500sqm (gross) for comparison retail. A separate impact threshold of 300sqm (gross) for convenience and comparison retail proposals has been set for Brampton, Dalston and Longtown.

This approach also applies to proposals for the extension of floorspace (including the use of a mezzanine floor) at existing stores or retail warehouses where these are outside defined centres.

Any proposals for a foodstore will be required, as part of the impact test, to demonstrate that they would not undermine the planned delivery of the Morton District Centre foodstore anchor, or impact on its trading viability.

Justification

- 4.25** Policy EC 6 seeks to ensure that the vitality and viability of defined retail centres is not undermined by proposals for retail and other main town centre uses outside of these centres or where comparison (non-food) retail is concerned out with designated Primary Shopping Areas within these centres. Main town centre uses are defined within the glossary and mirror those currently employed by national policy for retail planning purposes.
- 4.26** The Carlisle Retail Study (2012) found that there was limited spare capacity in the initial years of the plan period and therefore that any development should aim to reinforce the City Centre as the prime retail location. To achieve this, proposals for new retail and main town centre uses will, in line with national policy, have to undertake a sequential test. A locally set threshold has also been established for undertaking retail impact assessments which addresses the requirements of National Planning Policy Guidance (NPPG) and updates the threshold set in the 2012 study.
- 4.27** The Retail Impact Threshold update (September 2015) recommends that in respect of the urban area of Carlisle separate retail thresholds for convenience and comparison retailing should be applied to enable sufficient opportunity to robustly assess the impact of any future edge/out of centre proposal on existing urban centres.



4.28 In respect of the District Centres of Brompton, Dalston and Longtown a threshold has been set in order to reflect the nature of these centres which are occupied by small scale operators orientated towards top up provision.

4.29 The sequential and impact tests should be carried out in accordance with national policy (and in respect of impact test in line with the thresholds set out) with the approach being proportionate to the scale and nature of the proposal being progressed.

4.30 The evidence supports that there is no requirement for new convenience provision in the City, beyond existing commitments including the Morton allocation, over the Local Plan period through to 2030. Accordingly, any proposals elsewhere in the City which would undermine the delivery of the Morton allocation, or impact upon its trading viability, will be resisted.

This position will however be monitored when committed foodstore schemes are trading, and regular main food shopping patterns established.

Policy EC 7 - Shop Fronts

Well designed and appropriate shop fronts, whether original or reproduction, should be retained wherever practicable and if necessary restored when the opportunity arises. Shop fronts should contribute to the creation of a strong sense of place within the local context and relate in scale, proportion, materials and decorative treatment to the relevant façade of the building and, where appropriate, to adjacent buildings and/or shop fronts.

Within conservation areas new and alterations to shop fronts will only be acceptable where their design contributes to the preservation and enhancement of the area's character, appearance and setting, and provided the following criteria are met:

1. any original or period features are retained or where possible restored;
2. the proposal relates well in scale, height, proportions, materials and detailing to other parts of the building, adjoining shop fronts and the street scene generally;
3. the proposal does not involve a single shop front spanning two or more frontages;
4. the proposal does not involve the use of inappropriate modern shop front features; and

5. the proposal contributes to the realisation of specific relevant objectives in any up to date Conservation Area Management Plan.

The use of roller shutters that would obscure displays and architectural features on shop fronts will not be permitted in any location. Applicants wishing to install security measures on shop fronts are encouraged to consider alternative measures and must seek to ensure that, if shutters are to be used, they are well designed and integrated with the frontage, maintaining an active shop front even when the unit is closed.



Justification

- 4.31** Policy EC 7 applies to new or alterations to existing shopping frontages across the District including within defined centres and Primary Shopping Areas.
- 4.32** Shop fronts owing to their nature and prominence have an important role to play in place shaping, and as such should be designed to a high quality to help establish a strong sense of place. Accordingly, design solutions should respond to local character and history, and reflect the identity of local surroundings and materials, although this will not necessarily preclude appropriate innovation.
- 4.33** There are a number of well designed and traditional shop fronts in the District, particularly in the City Centre, Botchergate, Brampton, Dalston and Longtown. Special care is needed when dealing with proposals which might detract from the character of a building and, where it is considered appropriate and pertinent, the traditional features of well designed and high quality shop fronts should be retained whenever alterations are being carried out.
- 4.34** The Council has produced Supplementary Planning Guidance (SPG) on the design of shop fronts which supports the implementation of this Policy. The guidance offers useful information on how people wishing to install new shop fronts or alter existing ones can do so in keeping with the traditional styles of frontages across the City and wider District. Applicants will be encouraged to have regard to the document, and any future successor documents, when progressing development proposals of this type.
- 4.35** Highly visible crime prevention measures such as security shutters can work against the creation of a vital, vibrant and attractive shopping environment, have a detrimental effect on townscape and impact negatively on the overall perception of an area. When closed, solid security shutters present a blank frontage and have a deadening effect on the character of the street. Areas no longer benefit from passive surveillance by shoppers and passers-by, thereby making shops more vulnerable to attack. In order to minimise their impact on the building and the general character of the area, the Council encourages the use of security measures other than solid external shutters. Security is best considered at the early stages of designing a new shop front so that measures can be integrated into the overall scheme, rather than added on as an afterthought.

Policy EC 8 - Food and Drink

Proposals which help to sustain and enhance a vibrant and viable food and drink offer will be supported. Development proposals for uses within Use Class A3 (restaurants and cafes), A4 (drinking establishments) and A5 (hot food takeaways) will be approved provided that:

1. they are in defined centres or, if not, accord with the sequential and impact tests;
2. the amenity of adjacent uses would not be adversely affected;
3. the proposal would not cause unacceptable levels of traffic generation or highway obstruction, particularly where customers are collecting food from takeaways, or jeopardise highway or pedestrian safety; and
4. the proposal would not lead to an unacceptable concentration of a particular use or business type within any given locality.

Opening hours will be imposed having regard to the surrounding uses, the character of the area, possibility of nuisance to residential areas and public safety.

Justification

- 4.36** This Policy seeks to facilitate the creation of a vibrant and viable food and drink offer across the District. The need to do so reflects national policy and the need to support the vitality and viability of City, District and Local Centres through diversifying their offer and encouraging competition and a greater provision of customer choice. The Policy responds to this requirement through enabling the appropriate growth of food and drink related leisure services which in many instances will complement a centre's retail offer, the District's visitor offer and support the evening economy through improving evening activity.
- 4.37** The primary evidence base for this Policy is the Carlisle Retail Study (2012). This highlights that whilst there is an existing restaurant sector that is informally emerging within the City Centre, there exists capacity to expand this restaurant offer, with an eye to attracting larger, nationally recognised restaurant chains. It also recommends that the Council should aim to maintain and effectively manage the existing provision of pubs and other late night establishments within the City through the planning process.
- 4.38** Outside of the City Centre the food and drink offer is largely made up of cafes and pubs during the day, whilst the evening economy largely revolves solely around small town public houses.



4.39 Whilst the principal of such uses is supported, it must be recognised that their nature is such that they can, in certain circumstances, adversely impact upon the character and residential amenity of areas. Careful consideration will therefore need to be afforded to ensure that proposals would not, by way of noise or odour, constitute a nuisance. Proposals also need to ensure that they would not in any way jeopardise highway safety.

4.40 The scope for such uses to constitute a nuisance can be amplified where there is a concentration of them. Concentrations can also adversely impact on the vitality and viability of retail centres through eroding their wider value and through resulting in dead frontages particularly during the day. Accordingly, proposals which would result in an unacceptable concentration of such uses will be resisted.

4.41 In some areas of the District, public houses represent important community facilities which fulfil a broader purpose and social role. Proposals which would result in the loss of a public house should therefore have regard to Policy CM 3 which seeks to prevent the unacceptable loss of valued community facilities.

Policy EC 9 - Arts, Culture, Tourism and Leisure Development

Proposals will be supported where they contribute towards the development and/or protection of the arts, cultural, tourism and leisure offer of the District and support the economy of the area.

Proposals for main town centre uses which are ancillary to established tourist, leisure or cultural attractions will be exempt from the need to undertake a sequential and impact test. New proposals where no attraction currently exists, or those which go beyond what can be regarded as ancillary, will have to have regard to Policy EC 6.

All proposals for arts, cultural, tourism and leisure development must also accord with the following criteria:

1. the scale and design of the development is compatible with the character of the surrounding area;
2. adequate access by a choice of means of transport, including sustainable modes of travel such as cycling or long distance walking, and appropriate car parking is provided; and
3. where relevant, the value and significance of the attraction is not compromised.

Hadrian's Wall World Heritage Site (WHS) is a major attraction for tourism and proposals for new tourism development which are sustainable and aim to promote the enjoyment and understanding of the WHS whilst meeting the above criteria will be permitted.

Justification

4.42 The tourism, arts, cultural and leisure sectors are vitally important to Carlisle as generators of economic prosperity, employment and enjoyment. It is essential that the potential of these sectors is promoted and supported to ensure the continued growth of the economy and cultural horizons of the District. This could include the development of new community centres and sports halls, as well as projects such as an arts centre within the City for residents and visitors alike. Carlisle's heritage and environment is central to its attractiveness as a tourist location with key attractions including Hadrian's Wall Path National Trail crossing the District, the English Coastal Path and the historic City Centre comprising of Carlisle Castle, Tullie House Museum, Carlisle Cathedral Precinct, the City Walls, the Courts, the Market Cross, the Old Town Hall and Guildhall. The importance of access to the natural environment and the benefits and



opportunities that the green and blue infrastructure of the District entails for arts, culture, tourism and leisure development is also recognised.

4.43 Arts, culture, tourism and leisure development (including theatres, museums, galleries and concert halls, hotels and conference facilities) are main town centre uses and, as such, the Council will encourage this type of development within a recognised centre (i.e. the City Centre, District Centres or Local Centres). A sequential test and impact assessment would, in accordance with Policy EC 6, normally be required for this kind of development outside of a recognised centre; however where development is clearly ancillary to an established leisure or cultural attraction, this requirement will be waived. Development outside of a recognised centre that is either too large to be described as ancillary or unrelated to an existing attraction will still be

subject to a sequential test and impact assessment as per standard planning policy.

4.44 Sustainable rural tourism and leisure developments that aid rural diversification will be supported, particularly where they involve the provision and expansion of tourist and visitor facilities in appropriate locations where identified needs cannot be met by existing facilities in nearby local centres. Such development must be of a suitable scale, and design and be sited with great care and sensitivity to its rural location.

4.45 New development should normally be accessible by public transport, walking and cycling. However, for some developments in the rural area this may not be possible, especially if associated with a diversification scheme in an area with poor public transport links. In these cases new development should be able to demonstrate that it has

integrated as much as possible with, or is easily accessible from existing green infrastructure routes, including long distance walking routes such as the Hadrian's Wall or English Coastal paths.

4.46 Proposals that would result in the loss of an art, cultural, tourist or leisure facility would be required to demonstrate that the current use is no longer viable; that there is currently no requirement for an alternative community use; and that there is adequate alternative provision in the locality.

Policy EC 10 - Caravan, Camping and Chalet Sites

Proposals for the development of and extension to caravan, camping and chalet sites will be supported where:

1. clear and reasoned justification has been provided as to why the development needs to be in the location specified;
2. the siting, scale or appearance of the proposal does not have an unacceptable adverse effect on the character of the local landscape, or upon heritage assets or their settings;
3. the site is contained within existing landscape features and if necessary, and appropriate, is supplemented with additional landscaping;
4. adequate access and appropriate parking arrangements are provided; and
5. the potential implications of flood risk have been taken into account where necessary.

In addition, the Council will consider the need to impose planning conditions to avoid continual residential use of such sites or seasonal restrictions where necessary to safeguard the landscape.

Justification

- 4.47** This Policy reiterates support for the sustainable rural tourism and leisure developments that benefit businesses in rural areas, communities and visitors and which respect the character of the countryside in line with the National Planning Policy Framework (NPPF). This includes supporting the provision and expansion of visitor accommodation in appropriate locations where identified needs are not met by existing provision in established settlements.
- 4.48** Proposals for both static and touring caravan sites as well as those for chalets and camping will be judged against the criterion specified in the Policy, which are considered self explanatory in their purpose. In certain circumstances restrictions will be applied through the imposition of planning conditions to avoid the continual residential use of a site. This reflects that there is a need to preserve the supply of visitor accommodation in order to respond to demand, and equally that such sites may not be in a location considered sustainable for occupation as primary residences. Similarly, conditions may also be imposed to restrict seasonal occupancy of sites where considered necessary to safeguard landscape character through, for example, the winter months.
- 4.49** In addition to the need to obtain planning permission, caravan, camping and chalet site operators must obtain a site licence. The site licence covers such matters as the number and standard of spacing of the caravans and hygiene. The City Council's Environmental Health Section issues site licences.



Policy EC 11 - Rural Diversification

Development proposals to diversify and expand upon the range of sustainable economic activities undertaken in rural areas will be supported and encouraged both through the conversion of existing buildings and well designed new buildings. Any new building must be well related to an existing group of buildings to minimise its impact and blend satisfactorily into the landscape through the use of suitable materials, design and siting.

Proposals must:

1. be compatible with their existing rural setting;
2. be in keeping, in terms of scale and character, with the surrounding landscape and buildings;
3. include adequate access and car parking arrangements; and
4. not lead to an increase in traffic levels beyond the capacity of the surrounding local highway network.

Justification

4.50 Whilst the preferred location for new development will be in existing settlements, changes in agriculture over recent decades have resulted in a decline in farm-related jobs. As a result there is now a need to strengthen the economy in rural areas by supporting the sustainable growth and expansion of all types of business and enterprise in rural areas. There are often opportunities for reusing or adapting surplus existing rural land and buildings for commercial, industrial, recreational or environmental uses such as guesthouses, farm shops, rural workshops or other business premises, helping the countryside to diversify, flourish and sustain itself. The City Council recognises the important and changing role of agriculture and the need for new employment in the rural area. New employment opportunities may also be created within the rural area as the provision and availability of rural broadband spreads/expands.

4.51 The use of surplus rural buildings for the provision of tourist holiday accommodation can help to retain buildings in the countryside whilst helping to boost the rural economy. Conversion of rural buildings to holiday accommodation can, when skilfully undertaken, involve minimal alteration and therefore have little impact on the character of the countryside. Nevertheless schemes must be sensitive to their environments and measures must be taken to mitigate any potential environmental impacts. The NPPF supports sustainable rural

tourism and leisure developments where they respect the character of the countryside. This type of development is important in areas where identified needs are not met by existing facilities in rural service centres.

4.52 Traditional, redundant and underused buildings may provide habitats for wildlife such as bats or barn owls. For those species protected by the Wildlife and Countryside Act 1981, the City Council will seek to ensure a survey is carried out and suitable precautions taken for the protection of the species and their habitat before permission will be granted. Other environmental diversification schemes may help to improve the ecological value of the rural area whilst helping to provide local employment.



Policy EC 12 - Agricultural Buildings

Proposals for new agricultural buildings and structures, or extensions to existing ones, which fall outside of Permitted Development rights will be permitted provided that:

1. the building or structure is sited where practical to integrate with existing agricultural buildings and/or take advantage of the contours of the land and any existing natural screening;
2. the scale and form of the proposed building or structure relates to an existing group of buildings, unless otherwise justified;
3. the design and materials used reflect the overall character of the area; and
4. the proposal would not have an unacceptable impact on any adjacent land uses.

Justification

4.53 The development of agricultural buildings and other structures of a certain scale not requiring full planning permission instead require an 'Agricultural Determination' from the City Council. The purpose of this arrangement is to enable the Council to comment on the siting and design of particular proposals, whilst not obliging the applicant to submit formal applications for planning permission.

4.54 The siting of a new agricultural building can have a considerable impact on the surrounding landscape. New buildings should therefore, where possible, integrate with both the surrounding landscape and farmstead as a whole. It may be possible to do this by using natural contours in the land or existing natural screening such as woodland, trees or mature hedgerows. The aim is not to hide a new building from sight, but to soften its outline and integrate it with the surrounding landscape. Any

new planting should therefore reflect the vegetation type already existing in the locality.

4.55 New buildings should normally form part of a group rather than stand on their own and should relate to existing buildings in scale and colour. However, there may be occasions when a large building of modern design is required on a farm largely comprising traditional buildings. To avoid visual conflict, such buildings should be designed to minimise their impact by such measures as breaks in roof slope or differing roof heights and by linking the building into the landscape by planting groups of trees to soften its outline. In exceptional circumstances such buildings may be better sited away from the group.

4.56 In sensitive areas such as within the setting of a listed building, in a conservation area or Area of Outstanding Natural Beauty (AONB),

it will normally be necessary to use traditional or sympathetic materials and the colours chosen should be compatible with the setting or surrounding countryside. Many traditional buildings are also important for protected species including bats and barn owls. Where such species are thought to be present in or adjacent to the existing buildings, a survey should be undertaken to confirm their presence. The adopted North Pennines AONB Supplementary Planning Documents on Building Design Guide (2011) and Planning Guidelines (2011) provide further information on the development of agricultural buildings within the AONB.

4.57 Finally, agricultural activities can impact on the amenity of adjoining land uses and care must therefore be exercised to avoid proposals giving rise to any unnecessary levels of nuisance including by way of noise or odour.



Policy EC 13 - Equestrian Development

Proposals relating to the development of stables, horse riding arenas and/or riding centres will be permitted provided that:

1. there will be no unacceptable impact upon the landscape and character of the area;
2. the building or structure is sited where practical to integrate with existing buildings and/or take advantage of the contours of the land and any existing natural screening;
3. the proposal will not have a detrimental effect upon surrounding land uses;
4. the surrounding roads and bridleways are adequate and safe for the increased use by horse riders, with the roads being suitable for all users; and
5. the scale and intensity of use is proportionate to the equestrian needs and appropriate for the site and character of the area.

Justification

4.58 Horse riding and keeping are popular leisure activities attracting a wide range of people, as well as being an intrinsic part of rural life. Carlisle District has seen an increase in the number of proposals for equestrian development; this trend is likely to continue due to changes in the rural economy providing scope for diversification in rural businesses. The NPPF supports sustainable rural tourism and leisure developments where they respect the character of the countryside. Supporting information and good practice guidance for this type of development is available from the British Equestrian Federation which is the national governing body for horse sports in the UK.

4.59 Horse keeping can be an appropriate use in the countryside provided that care is taken over the siting and location of facilities and that access to roads and bridleways is adequate.

As with all developments care must be taken to ensure the design of the development is appropriate, proportionate to genuine needs and that any proposal would not adversely affect adjoining land uses including through nuisance in the form of noise, odours or light pollution. Associated buildings should be situated in one block or a tight grouping to reduce visual impact on the landscape and means of enclosure should reflect local characteristics. Proposals likely to damage sensitive areas, such as important habitats or landscapes, will not be acceptable.

4.60 Conditions may be imposed upon applicants to ensure that jumps and other equipment are removed and stored out of site to help reduce the visual impact, of the operation, on the landscape. High standards of maintenance and management are required to ensure that the

activities do not adversely affect the countryside and that the horses are well accommodated and cared for. Additionally, in some cases conditions may be placed on this type of development to restrict their use to that of the applicant.

4.61 There is a highways safety issue associated with increasing levels of horse riders on the roads, therefore schemes which would give rise to excessive numbers of horses on the surrounding roads will not be favourably considered unless it can be demonstrated that the safety of all users would not be prejudiced.



5 Housing

Objective

- To enable the development of a range of high quality, energy efficient housing, in a variety of appropriate locations, to meet the aspirations of the existing residents, including those with a need for affordable housing and those wishing to move to the area.
- To boost significantly the supply of housing by making land available, to support economic growth, whilst ensuring new housing supports the creation of thriving communities.

Context

The housing chapter sets out a group of policies which aim to enable development and growth to meet the housing needs of the District for open market, affordable and special needs housing, including provision for Gypsies, Travellers and Travelling Showpeople. To deliver the objective, the Plan focuses new housing development on the City of Carlisle, whilst also making provision for a commensurate proportion of housing to come forward in the rural areas. This chapter sets out specific allocations for housing across the District, and sets out a criteria based approach to enable housing to be delivered in a range of other circumstances such as for rural workers, or through the conversion of redundant rural buildings. Policies also recognise the range of housing circumstances at the domestic scale, and make provision for extensions to, or subdivision of, existing homes, and group housing such as HMOs, student housing, extra-care schemes and to protect the amenity of residential areas.





Policy HO 1 - Housing Strategy and Delivery

Planning permission will be granted for housing proposals that will:

1. deliver the allocations set out in this Policy and contribute to achieving the Plan's housing target. Any unallocated sites which come forward for development and which would prejudice the delivery of this strategy will be resisted; and
2. in bringing forward allocations, developers will need to demonstrate that their proposals contribute to the overall mix of dwelling types, sizes and tenures which help meet identified local housing need and the development of mixed and sustainable communities.

The following table sets out allocated housing sites in the urban and rural areas. These sites are identified on the Local Plan Policies Map. Proposals should be brought forward having regard to and addressing any issues set out in Appendix 1.

Housing delivery will be monitored closely and if the number of houses built is not as expected, interventions will be sought, including bringing forward additional allocations.

Housing Allocations for Carlisle District

Allocated sites Urban Carlisle: Total Capacity (dwellings) 2,779	Area (Ha):	Indicative Yield:	Indicative Plan Period:
U 1 - Land to the south east of junction 44	8.03	217	0 - 5
U 2 - Land north of California Road, east of U 1	6.54	200	6 - 10
U 3 - Site of Pennine Way Primary School	3.57	112	6 - 10
U 4 - Land north of Moorside Drive/Valley Drive	4.96	140	0 - 5
U 5 - Land between Carleton Road and Cumwhinton Road	7.25	204	0 - 5
U 6 - Land at Garden Village, west of Wigton Road	6.08	169	6 - 10
U 7 - Land at Newhouse Farm, south-east of Orton Road	30.19	509	6 - 10
U 8 - Land north of Burgh Road	2.83	66	0 - 5
U 9 - Site of former Morton Park Primary School, Burnrigg	1.67	54	6 - 10
U 10 - Land off Windsor Way	10.60	300	0 - 5
U 11 - Land east of Lansdowne Close/Lansdowne Court	2.50	75	6 - 10
U 12 - Site to the rear of Border Terrier, Ashness Drive/Ellesmere Way	0.40	18	0 - 5
U 13 - Land east of Beverley Rise	1.20	30	6 - 10
U 14 - Land north of Carleton Clinic, east of Cumwhinton Drive	9.3	189	0 - 5
U 15 - Former Dairy site, Holywell Crescent, Botcherby	1.51	66	0 - 5
U 16 - Land at Deer Park, Belah	3.83	100	6 - 10
U 17 - Land to the south west of Cummersdale Grange Farm	2.43	60	6 - 10
U 18 - Land Opposite Rosehill Industrial Estate*	10.50	150	0 - 5
U 20 – Durranhill Road	3.32	70	6 - 10
U 21 – Laing’s site, Dalston Road	1.20	50	6 - 10



Allocated sites Rural Area: Total Capacity (dwellings) 1,409	Area (Ha):	Indicative Yield:	Indicative Plan Period
Brampton R 1 - Land south of Carlisle Road R 2 - Land west of Kingwater Close R 3 - Land north of Greenfield Lane	9.7 2.31 5.66	250 60 140	0 - 5 6 - 10 6 - 10
Longtown R 4 - Site of former Lochinvar School R 5 - Land south of Old Road	3.56 2.9	106 60	6 - 10 0 - 5
Burgh by Sands R 6 - Land west of Amberfield	1.0	25	6 - 10
Cummersdale R 7 - Land east of Cummersdale Road	0.38	14	0 - 5
Cumwhinton R 8 - Land adjacent to Beech Cottage R 9 - Land west of How Croft	0.6 0.76	15 20	0 - 5 6 - 10
Houghton R 10 - Land at Hadrian's Camp	5.1	96	0 - 5
Harker R 11 - Kingmoor Park Harker Estate	10.7	300	6 - 10
Moorhouse R 12 - Land east of Monkhill Road*	0.8	10	6 - 10

Allocated sites Rural Area: Total Capacity (dwellings) 1,409	Area (Ha):	Indicative Yield:	Indicative Plan Period
Rickerby R 14 - Land at Tower Farm	0.8	10	0 - 5
Scotby R 15 - Land north of Hill Head, east of Scotby Road R 16 - Land at Broomfallen Road	3.7 1.5	90 28	0 - 5 0 - 5
Warwick Bridge R 17 - Warwick Bridge/Little Corby North R 18 - Land to the south of Corby Hill/Heads Nook Road	1.55 1.00	45 30	0 - 5 6 - 10
Wetheral R 19 - Wetheral South R 20 - Land west of Steele's Bank	2.2 1.6	60 40	6 - 10 0 - 5
Wreay R 21 - Land west of Wreay School	0.7	10	0 - 5

*There is no site U 19 or R 13.



Justification

5.1 The sites allocated in this policy are detailed in Appendix 1, which sets out site profiles to aid identification, together with some of the main issues associated with the sites.

5.2 The delivery of housing across the District is linked to three important issues of both national and local significance: how to accommodate an ageing population whilst retaining mixed communities; how to promote sustainable growth; and how to provide the physical and social infrastructure that is required to support housing growth. One of the key issues facing the District is the provision of a range of new housing to help meet the needs of the whole community. Planning for a range of housing types (including for the elderly) will enable more balanced communities with a mix of people creating opportunities for better neighbourhoods.

5.3 This Policy has taken into account the following factors:

- the Council has maximised its opportunities for developing brownfield land, and the number of brownfield sites remaining is diminishing;
- a peripheral scattered approach to new housing around the edge of Carlisle may not be the most sustainable option as some sites may be a considerable distance from the centre;
- providing housing development within or on the edge of the city enables good access to existing services and public transport; and
- whilst a small number of housing sites within the Strategic Housing Land Availability Assessment (SHLAA) are located within the City, the majority are on the periphery, with one or two very large sites.

5.4 Policy SP 2 identifies the annual average housing target across the District. In responding to this requirement the focus must be on delivering attractive and sustainable communities and neighbourhoods where people want to live. To achieve this, account must be taken of the implications for infrastructure and services across the whole District.

5.5 A number of significant sites are expected to contribute to the delivery of the housing strategy across the Plan period. Where an existing planning permission is in place and has been implemented, it has not been considered necessary to identify the site as a housing allocation. Significant sites of this nature are shown for information on the Policies Map to aid the identification of future housing growth. To assess the housing capacity of the District, and in accordance with Government requirements, the City Council has prepared a SHLAA.

5.6 With reference to the proposed housing allocations, the assessment of deliverability has been informed by the SHLAA. To be considered deliverable, sites should be available and offer a suitable location for development now, and be achievable with a realistic prospect that housing can be delivered on the site within five years. In particular, development of the site must be viable.

5.7 The September 2014 Strategic Housing Market Assessment (SHMA) update identifies that the latest population forecasts generally show (after factoring in local assumptions about new housing development, growth of the local economy and trends in births, deaths and migration rates) that the population will continue to grow to the end of the Plan period and beyond, although at a much lower level of growth than was seen in previous sub national population projections. The overall conclusions are that an

objective level of need sits somewhere in the range of 480 to 565 homes per annum. The lower figure is based on a reasonable demographic basis for need with the upper figure being based on a need to meet the Experian economic forecast.

5.8 Therefore given the need to plan for employment growth, and to provide housing to meet a broad range of needs, the Local Plan has set an appropriate housing target. Delivery of housing to meet this target will be monitored through the Authority Monitoring Report (AMR), and if the numbers of houses being built is not as expected, the Council will seek to work directly with stakeholders to identify any barriers to development, and consider further interventions including bringing forward further allocations.



Policy HO 2 - Windfall Housing Development

New housing development on sites other than those allocated will be acceptable within or on the edge of Carlisle, Brampton, Longtown, and villages within the rural area provided that the development will not prejudice the delivery of the spatial strategy of the Local Plan and:

1. the scale and design of the proposed development is appropriate to the scale, form, function and character of the existing settlement;
2. the scale and nature of the development will enhance or maintain the vitality of the rural community within the settlement where the housing is proposed;
3. on the edge of settlements the site is well contained within existing landscape features, is physically connected, and integrates with, the settlement, and does not lead to an unacceptable intrusion into open countryside;
4. in the rural area there are either services in the village where the housing is being proposed, or there is good access to one or more other villages with services, or to the larger settlements of Carlisle, Brampton and Longtown; and

5. the proposal is compatible with adjacent land users.

Within rural settlements applicants will be expected to demonstrate how the proposed development will enhance or maintain the vitality of rural communities.

Applicants will be expected to work closely with those directly affected by their proposals to evolve designs that take account of the views of the community.

Justification

- 5.9** Windfall housing is recognised as contributing in a positive way to the supply of housing over the plan period. Within the built up areas of Carlisle, Brampton and Longtown, particularly but not exclusively within the Primary Residential Areas, there are likely to be opportunities for new residential development, either through the development of vacant sites, the conversion of vacant buildings, or as part of a larger mixed use scheme. Residential development in these areas will be acceptable, subject to the stated criteria in the above policy.
- 5.10** The scale of the rural area and the number of villages within it gives a wide choice about where to locate new housing. If housing is located in sustainable locations it can bring many benefits including wider choice for households.
- 5.11** The majority of Carlisle District is rural. The Local Plan only makes housing allocations on sites that can support 10 or more houses. In smaller villages, no allocations have been made as 10 additional houses on one site may be inappropriate in terms of scale. This policy aims to provide a flexible basis with which to make provision for rural housing in smaller villages, which will inherently be smaller in scale, reflective of the fact that sustainability may be an issue.
- 5.12** Most new residential development in the rural area will be focussed in sustainable locations. This means villages which have, or have good access to, for example, a primary school, post office, shop and frequent public transport within 400m walking distance. Other facilities such as a village hall, church, pub, and other local businesses can all add to the overall sustainability of a location.
- 5.13** It is recognised that within many parts of the rural area it will be difficult to achieve all of the above. The National Planning Policy Framework (NPPF) states that in rural areas local planning authorities (LPAs) should be responsive to local circumstances and plan housing development to reflect local needs. It goes on to say that to promote sustainable development in rural areas, housing should be located where it will enhance or maintain the vitality of rural communities.
- 5.14** The local circumstances for Carlisle District are very specific in that there is a large rural area with many villages scattered throughout. The villages vary in size and the level of services that they support. There are some very small villages which support a primary school, for example Raughton Head and Wreay, and some much larger villages with few or no services, such as Brisco and Low Row. There are also



a number of primary schools, churches, village halls and pubs which lie entirely outside any recognised village, for example Stoneraise Primary School, and Blackford Primary School, but which serve a surrounding cluster of villages.

5.15 Accessibility to services will therefore be one consideration in assessing applications for housing under this policy. Housing will also be acceptable where it will enhance or maintain the vitality of rural communities. This will need to be demonstrated by the applicant, and could include, for example, a young family moving to the village, someone wishing to work from home, people moving into a village to support other family already living there.

5.16 Development is more likely to be acceptable on sites that are physically contained by existing landscape features such as hedges, trees, woodland or topography, physically and visibly connected to the village, and do not adversely impact on wider views into or out of a village.

5.17 Applicants will be expected to work closely with those directly affected by their proposals to evolve designs that take account of the views of the community. Proposals that can demonstrate this in developing the design of the new development should be looked on more favourably. As such, applicants will be expected to demonstrate that they have complied with this Policy requirement.

Policy HO 3 - Housing in Residential Gardens

Proposals for housing development in existing residential gardens will be permitted providing that the following criteria are met:

1. the scale, design and siting of the proposal would not result in a cramped form of development out of character with the surrounding environment;
2. a safe and attractive garden area, which reflects that predominant in the area, can be created for both the proposed new house and the existing house;
3. the proposal, by way of design, siting and materials integrates into the surrounding built, natural, and where necessary historic environment;
4. there is no unacceptable loss of living conditions to surrounding properties by overlooking, loss of light, overbearing nature of the proposal or increase in on street parking; and
5. the proposal does not prejudice the development potential of an adjacent site.

Justification

- 5.18** Gardens contribute significantly to the character and quality of housing areas within the City, and also within the market towns and many villages within the rural area. Mature gardens can also help to mitigate factors contributing to climate change, for example trees which absorb carbon dioxide. Proposals for housing development in existing gardens, especially backland development, can often be contentious.
- 5.19** National planning policy makes provision for local plan policy to resist inappropriate development of residential gardens, for example where development would cause harm to the local area. The Natural Environment White Paper (Securing the Value of Nature, 2011) states that natural networks include private gardens and that these can help to conserve wildlife in environments that have become fragmented by human activities.
- 5.20** There will be instances where development of part of a residential garden for housing will be acceptable. However, such proposals also have the potential to cause significant amenity problems to existing properties including loss of privacy, loss of daylight, overlooking, visual intrusion by a building or structure, noise disturbance, reduced space around buildings, loss of car parking, and loss of mature vegetation including screening. There can also be increased surface water run off due to an increase in hard surfaces.



- 5.21** Critical factors which will be taken into account in determining applications will be the size of the site, capacity of the access and impact on adjacent properties.
- 5.22** For sites to be acceptable there needs to be an appropriate plot depth and configuration, in order to allow new housing to be developed which results in a quality environment for both new and adjacent residents. Garden development, especially on rear gardens, on restricted plot depths is unlikely to be acceptable, especially where overlooking issues cannot be overcome.
- 5.23** The form and scale of any new development should respect the local character of the immediately surrounding area. In particular, the scale, number of storeys and massing of new housing development should not exceed that of existing dwellings adjacent to the site.
- 5.24** Backland sites can result in piecemeal proposals being submitted for land which are physically connected to much larger areas with greater potential for a more comprehensive form of development. Proposals which block the development potential of adjacent land, for example through land locking, are unlikely to be acceptable.
- 5.25** This Policy also relates to tandem development. This is a form of backland development where a new dwelling is placed immediately behind an existing dwelling and uses the same access. This type of development is nearly always unacceptable because of the impact on the amenity of the house at the front of the site.

Policy HO 4 - Affordable Housing

In order to achieve mixed and inclusive neighbourhoods, affordable housing provision will be sought in the following circumstances:

1. within Zone A, all sites of six units and over will be required to provide 30% of the units as affordable housing;
2. within Zone B, all sites of 11 units or over will be required to provide 20% of the units as affordable housing; and
3. within Zone C, all sites of 11 units or over will be required to provide 30% of the units as affordable housing.

It will not be acceptable to sub-divide sites and purposely design a scheme to avoid making affordable housing contributions.

The tenure split of affordable housing to be provided should be 50% for social or affordable rent and 50% for intermediate housing. A lower proportion and/or different tenure split may be permitted

where it can be clearly demonstrated by way of a financial appraisal that the development would not otherwise be financially viable or where the proposed mix better aligns with priority needs. Early dialogue with the Council on these matters is essential.

For sites of between six and ten units, the affordable housing contribution will be sought in the form of cash payments which will be commuted until after completion of units within the development. For sites of 11 units or over, the affordable housing should be provided on the application site unless off site provision, or a financial contribution of broadly equivalent value in lieu of on-site provision, can be robustly justified by local or site specific circumstances.

The opportunity to secure affordable extra care housing schemes as part of the wider affordable housing mix on

development sites will be sought where it is considered to meet needs and the site is in an appropriate location.

Policy HO 4 will operate within the context of national policy and will be implemented with regard to any relevant future changes including to the national definition of affordable housing.



Justification

5.26 The NPPF states that in order to deliver a wide choice of high quality homes, local planning authorities should use an evidence base to ensure that their Local Plan meets the full, objectively assessed needs for market and affordable housing. In addition, in order to ensure viability and deliverability, the scale of affordable housing required by this Policy has been calculated following the undertaking of an Affordable Housing Economic Viability Assessment, (AHEVA), which assesses the viability of a range of housing developments across the District using a residual valuation appraisal method. Zones A, B and C (which depict differences in viability within the District) have therefore been defined having regard to the evidence as set out in the Carlisle AHEVA and government policy set out in the Planning Practice Guidance (PPG) regarding the thresholds for seeking planning obligations including

affordable housing. The introduction of PPG, which introduces national thresholds, has necessitated the identification of the built up area of Brampton as Zone C. This reflects that the town of Brampton is not a 'designated rural area' as described under section 157(1)(c) of the Housing Act 1985. However, the viability evidence supports that development sites in Brampton can support 30% of the units as affordable.

5.27 The Policy contains a viability cushion in line with advice in the Harman guidance, 'Viability Testing Local Plans'. Therefore when the requirements of this policy make a site unviable, the Council will expect the developer to submit an appraisal such as the Homes and Communities Agency Development Appraisal Tool or similar, before a departure from the policy will be allowed.

5.28 The SHMA update (Sept 2014) identified that overall in the period from 2013 to 2030 an average of 295 affordable homes per annum are required. Although this demand will be partially met by the private rented sector supported by housing benefit, this policy aims to strike a balance on an appropriate affordable housing requirement.

5.29 Cumbria County Council's Extra Care Strategy estimates the need for 340 extra care units by 2019, across the District, with 234 of those places needed within the City of Carlisle. The opportunity to deliver an element of this housing on appropriate development sites, as part of the overall affordable housing provision, will be sought.

5.30 The maximum proportion of affordable housing on larger housing schemes is an important factor to consider in trying to achieve balanced and mixed communities. Large developments of entirely affordable housing could

potentially lead to community cohesion issues with the surrounding area and also fail to contribute to mixed communities. The siting of affordable housing within a development also needs careful thought to ensure that it is not concentrated within one area of the site, but is integrated throughout the development. This approach will provide greater opportunities for community cohesion.

5.31 In relation to the tenure split of affordable housing 50% should be social or affordable rented with the remaining 50% for affordable home ownership (often referred to as intermediate housing). However, it is important to allow for flexibility to ensure that marginal schemes remain viable. Demand for intermediate housing (such as shared ownership) can vary with market conditions and as a result there may be occasions where an increased proportion of social rented housing will be acceptable.

5.32 Sub-dividing a site to avoid making affordable housing contributions will not be acceptable. The yield generated by the site as a whole will be assessed and used as a basis on which to seek the affordable housing contribution. Therefore affordable housing will be sought on developments below these thresholds if the Council considers that the site is part of a larger development site, particularly where the site is being sub-divided as a way to avoid the affordable housing threshold.

5.33 This will also apply where one site is divided between different developers, or is proposed to be developed in a phased manner. The affordable housing generated by the site as a whole will be assessed and used as the basis on which to seek the affordable housing contribution.

5.34 In determining the type of affordable housing to be provided, the Council's Housing Service will advise developers of the appropriate type and mix of units for each site to ensure local need is being met. This will help deliver the priorities in the Carlisle Housing Strategy 2012-2016, especially the need to work closely with local communities to address their housing needs and preferences, and support community based development initiatives.

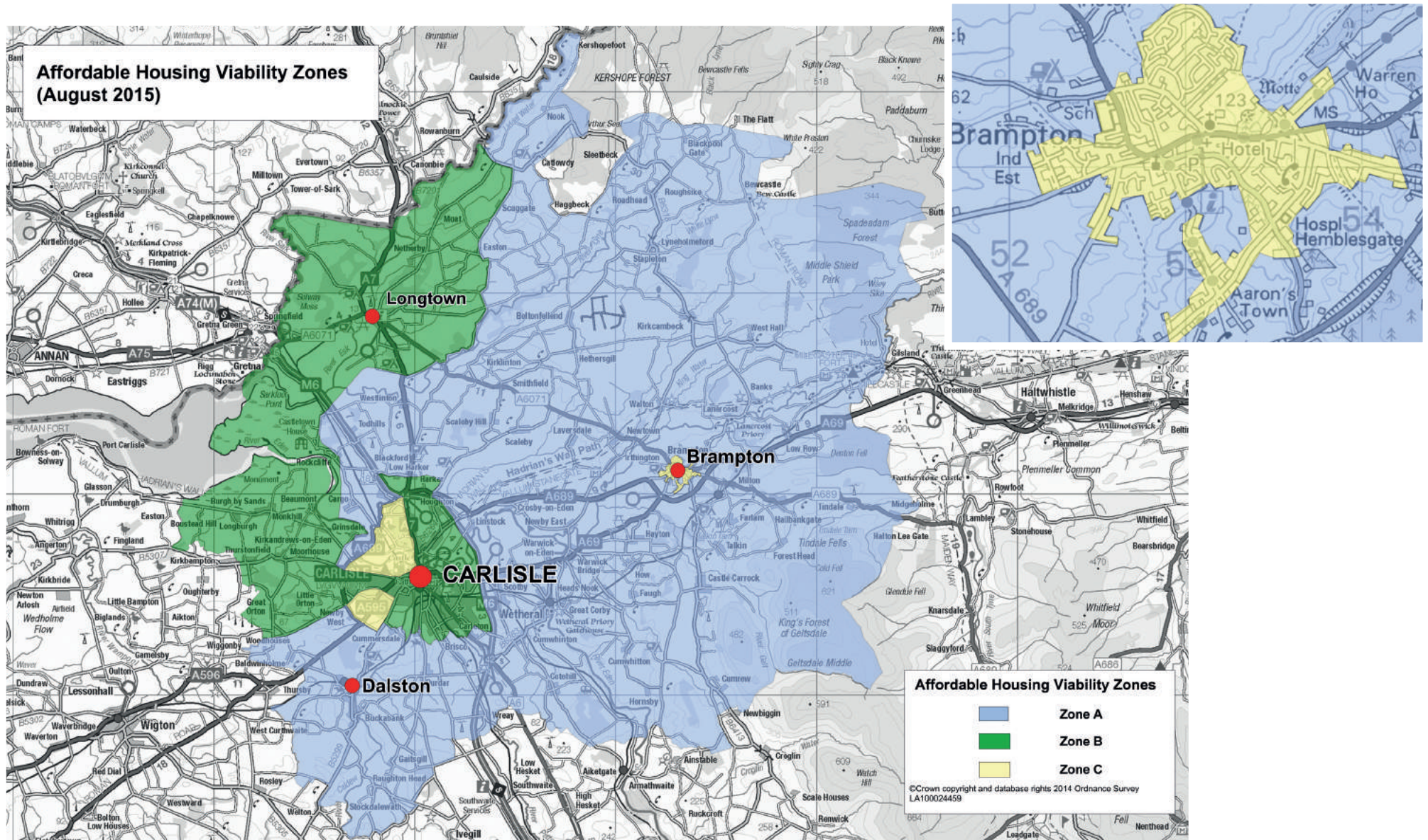
5.35 For sites of eleven units or over the Council's expectation will be that affordable housing will be provided on the application site, in line with the Council's commitment to mixed and sustainable communities, supported by the NPPF. Off-site provision (or financial contributions towards the provision of affordable housing) will only be agreed where such an approach can be robustly justified,



for example to improve or make more effective use of the existing housing stock, where housing need priorities could be better met in an alternative location, or where there is an oversupply of a particular type of affordable housing provision in the immediate area and the agreed approach contributes to the objective of creating mixed and balanced communities.

5.36 Evidence will be required to show that the affordable housing cannot be managed effectively on the site and that providing the affordable housing elsewhere will significantly widen housing choice and encourage a better social mix. Where off-site provision or contributions are agreed, it will be on the basis of the developer providing the same ratio of affordable housing to market housing as would have been provided on-site. Off-site provision should, where possible, be in the same Housing Market Area (HMA) as the application site (Carlisle City, Rural Carlisle East or Rural Carlisle West).

Figure 2





Policy HO 5 - Rural Exception Sites

In the rural area dwellings will be permitted on small sites where open market housing would not be acceptable, subject to the following criteria:

1. the development is for affordable housing to meet an identified local need;
2. the affordable housing will be retained for affordable need in perpetuity;
3. the proposal can demonstrate that the development can be delivered; and
4. the site is very close to, adjoining or within a settlement which provides a range of local services and facilities, or has good public transport links to a larger settlement with a wider range of services and facilities.

In the following exceptional circumstances an element of open market housing will be allowed on rural exception sites:

1. excessive development costs due to site constraints;
2. the Registered Provider can demonstrate that the additional revenue created by the development of open market housing is essential to enable the delivery of affordable housing on the site; or
3. the amount of open market housing is the minimum required to achieve site viability.

Justification

5.37 The purpose of a rural exception site is to address local housing need in order to sustain rural communities. Proposals must include evidence setting out the level of local need and a justification of the particular location to ensure that the scheme is appropriate in terms of scale, tenure and other characteristics. This Policy enables planning permission to be granted for affordable housing on land that would not normally be used for housing because, for example, it is subject to policies of restraint. Hence, an exception is made to normal planning policy to address proven local housing need. However, other planning issues such as site suitability, scale, design etc must still be addressed.

5.38 The rural area can be the least affordable place to live in the District. In 2008, the Government's 'Living Working Countryside' Matthew Taylor review of the rural economy and affordable housing found that while people working in rural areas tend to earn significantly less than those working in urban areas, rural homes are more expensive than urban homes.

5.39 The popularity of rural areas and migration from urban areas add to the pressures on rural housing affordability.

5.40 In the rural area, opportunities for delivering affordable housing can be limited. The AHEVA notes that rural exception sites land values are generally lower, thereby creating an opportunity to deliver affordable housing. Rural exception sites can contribute towards the supply of affordable housing, and help to meet specific identified local needs. Such sites can only be used for affordable housing in perpetuity. The type, tenure and size of the homes must meet an identified local need. Local is defined as within the parish.

5.41 Examples of the type of land that would qualify as an exception site include:

- land within or adjacent to a small village where open market housing would normally be constrained;
- land close to a larger village with a range of services and facilities; or

- the exception site is adjacent to the edge of a village, or is well related to existing residential development and amenities located in, or adjacent to, a clearly identifiable village or settlement.

5.42 The policy aims to ensure that rural communities remain sustainable by making provision for households in local affordable housing need, for example:

- existing residents needing separate accommodation in the area, e.g. grown up children, or growing families;
- workers who provide important services and need to live closer to the local community; or
- people who require family support, e.g. the elderly.

5.43 Villages throughout the District vary enormously in size. It is therefore important that the development of a rural exception site is in scale with its surroundings, and normally only small sites will be considered acceptable.

It is important that the number and type of houses to be developed enables the creation of sustainable, inclusive and mixed communities. Schemes are more likely to be successful with the involvement, support and knowledge of the parish council and the local community.

5.44 The occupancy of the houses will be controlled by a Section 106 agreement to ensure that the affordable housing is available in perpetuity to meet local needs. This prevents the houses being sold or rented at open market rates.

5.45 The S106 must include the name of the parish or parishes within the appropriate area (usually the relevant Housing Market Area) where the local affordable housing need has been identified. It may also include a list of neighbouring parishes, wards or wider geography to be referred to if, at some point in the future, one or more of the houses becomes vacant and there are no applicants from the original parish or parishes.



Policy HO 6 - Other Housing in the Open Countryside

New housing will be allowed in the open countryside in the following special circumstances:

1. where there is an essential need for a rural worker to live at or near their place of work, and evidence is provided to demonstrate need for a full time worker to be available at all times for the enterprise to function properly, provided that:
 - a) the business is established, has been profitable for at least one year, is currently financially sound, and has a clear prospect of remaining so;
 - b) the housing need cannot be met by other housing nearby; and
 - c) the house would be appropriate in terms of size, scale and design for its location.
2. replacement dwellings:
 - a) the dwelling has an existing lawful residential use;
 - b) the development is of a scale appropriate to the size of the plot; and
 - c) the development would reflect the identity of local surroundings and materials in terms of both the new dwelling and any curtilage development such as garages, outbuildings and boundaries.
3. conversion of structurally sound redundant or disused buildings, provided that the development would:
 - a) lead to an enhancement of the immediate setting of the building; and
 - b) be able to access the road network without the need to construct access tracks which would have an unacceptable impact on the landscape.

5.46 There are a number of opportunities within the rural parts of the District to create new dwellings either where there is an essential need for a rural worker to live at or near their place of work, through the demolition and replacement of substandard dwellings, or through the conversion of redundant or disused buildings.

5.47 Rural workers dwellings - most rural workers will live in a variety of locations within and outside the District (and commute to their work) or in existing properties connected to their place of work. However, there will be specific circumstances where the nature and demand of the rural enterprise require a worker to live at the place of business in the countryside.

5.48 The definition of a rural worker is not simply limited to someone employed in agriculture or forestry, but can include, for example, those employed in equestrian or other land based enterprises, water based businesses,

rural arts and crafts, etc. The definition does not apply to someone whose business or occupation is carried out in a wide locality in the rural area, for example a tradesperson who has no requirement for fixed premises.

5.49 Applicants for such dwellings will need to demonstrate that there is a clearly established existing functional need, that the need relates to a full time worker, that the enterprise concerned is an established business, and has been profitable for at least one year. The business should also provide evidence that there is a clear prospect of it remaining financially sound.

5.50 The applicant will also be expected to demonstrate that the need for a dwelling could not be met by existing housing for sale in the area. This would require a basic search for houses for sale in the immediate locality and a brief indication as to why they are not suitable to meet the need for the rural worker, for example, on the grounds of location or price.

5.51 Houses permitted under this policy will be subject to a condition limiting initial and successive occupation to a rural worker solely or mainly employed at their place of work nearby.

5.52 An application for the removal of such an occupancy condition will only be permitted where it can be demonstrated that:

- there is no longer a need for the dwelling in relation to the enterprise/business; and
- the dwelling has been marketed for sale or rent for six months at a price that reflects the occupancy condition.

5.53 Replacement dwellings - proposals for replacement dwellings will need to demonstrate that the dwelling to be replaced has not been abandoned. Development proposals under this policy will generally arise where an existing dwelling is in a poor condition and therefore unsuitable for current living standards.



5.54 Careful consideration will need to be given to the location of the new dwelling within the plot, and sufficient curtilage will need to be retained for adequate garden, parking and circulation space. Any new dwelling should not have a greater adverse impact on character and appearance of the surrounding area than the dwelling to be replaced. The existing house on the site must be demolished on completion of the new dwelling.

5.55 Conversion of redundant and disused buildings - buildings such as barns, mills and old stables make a significant contribution to the character and quality of the countryside around Carlisle. To avoid their loss and to prevent them from becoming derelict eyesores this policy makes provision for their conversion and re-use. Conversions must aim to retain and enhance any architectural quality and character of the building and its rural setting.

5.56 Any building to be converted should be visually worth retaining due to its contribution to the rural landscape. This will exclude modern agricultural or industrial buildings. Buildings to be converted should be structurally sound. Proposals which require the substantial reconstruction of the external walls or roof will not be acceptable. Structural surveys may be required in order to demonstrate that a building is structurally sound.

5.57 Carlisle is the second largest District in England and covers 400 square miles. As such, there are likely to be some very remote rural buildings in areas with poor accessibility, remote from services, facilities and employment, and where the only option for travel is by car. The conversion of redundant or disused buildings in such locations may raise sustainability issues, and any proposals will require additional information to be submitted by the applicant to show the following:

- how the site will access utilities such as energy and water supply;
- how the site will access the road network; and
- how the building will contribute to energy efficiency.

5.58 All proposals under this Policy should seek to optimise the potential to improve the character and quality of the site. A high standard of design will be required resulting in a development which is visually attractive as a result of good architecture and appropriate landscaping. The design of new houses in the open countryside should promote or reinforce local distinctiveness but be open to appropriate innovation.

5.59 In all cases the creation of new dwellings should avoid introducing suburban character or features, such as extensive areas of tarmac or pavements, close boarded timber fencing or leylandii hedges.

5.60 Where a courtyard development of several dwellings is proposed, the gardens and courtyard should normally be left as a single communal space.

5.61 Many rural buildings can be habitats for a variety of wildlife including bats and barn owls. These species are sensitive to disturbance and therefore at risk from building works. They are also protected under the 1981 Wildlife and Countryside Act. An ecological survey will also be required where such species are present. The survey should identify the species present, identify any impacts and consider avoidance, mitigation, and new benefits.



Policy HO 7 - Housing as Enabling Development

Enabling development in the form of new housing, where it would otherwise be contrary to planning policy, that would secure the future conservation of a heritage asset, will be acceptable providing that the following criteria are met:

1. it is necessary as a last resort to resolve problems arising from the inherent needs of the place;
2. any harm caused to the significance of the heritage asset and its setting is outweighed by the public benefits of the proposal;
3. sufficient grant or subsidy to secure the future of the heritage asset is not available from any other source;
4. the proportion of enabling development proposed is the minimum required to secure the long term future of the heritage asset;
5. the development secures the long term future of the heritage asset, and this outweighs the disbenefits of departing from any other planning policies; and
6. the new development makes a positive contribution to local character and distinctiveness.

Justification

- 5.62** Within the District there are a number of buildings which can be considered as heritage assets. Heritage assets for the purpose of this policy are most likely to include historic buildings that are either on the statutory list or the local list.
- 5.63** In many cases the setting of a heritage asset will be significant and must not be compromised as a result of proposals arising under this policy. In particular walled or historic gardens, open parkland or other landscapes can be an integral part of the setting of a heritage asset.
- 5.64** Enabling development in the form of new housing, which would not be supported by any other policies in the Local Plan, should be proportionate to the scale and complexity of the project. Early pre-application discussions will be essential, so that applicants do not waste resources on schemes that are unlikely to be justified.
- 5.65** The impact of the development must be accurately detailed when the planning application is submitted. Outline planning applications will not be acceptable. The design and layout of the enabling development will be critical in determining its acceptability. The proposals must adequately set out how the objective of securing the future of the heritage asset will be achieved, including setting out any timescales, which ideally should secure the restoration of the heritage asset as early as possible in the course of the enabling development, preferably

at the outset, and certainly before the completion and occupation of the dwellings.

5.66 The end use of the heritage asset must not only be compatible with the historic form, character and fabric of the place, but be financially viable. This means either that the place must have a positive market value on completion of repair and return to beneficial use, or there must be clarity about who will take responsibility for it in the long term.



Policy HO 8 - House Extensions

House extensions and alterations should be designed to:

1. relate to and complement the existing building in scale, design, form and materials;
2. be visually subservient to the main building;
3. ensure there is no loss of amenity to surrounding properties by overlooking, overbearing nature of the proposal, or increase in on street car parking caused by the loss of an existing garage or off street parking space;
4. ensure adequate natural light within the building, garden or other outdoor amenity space;
5. maintain the established character and pattern of the street scene and be a positive addition; and
6. retain gaps between buildings where they are characteristic of the area and contribute to the street scene.

Justification

5.67 Many people choose to adapt their existing homes to cater for changes in lifestyle rather than move house. House extensions are usually defined as any extension of the living space, including basements, roof conversions and conservatories. Planning permission will be refused for development of poor design that fails to take the opportunities available for improving the character and quality of an area and the way it functions.

5.68 The design of an extension should respond to the characteristics of the specific site, as well as the distinctiveness of the wider setting. The aim should be to reflect the style of the existing building, especially in conservation areas and for listed buildings. However, extensions of a more contemporary design may be appropriate, provided they are of the highest standard of design, and innovative in nature, together with significantly enhancing the immediate setting. Consequently, any proposal will need to demonstrate that through its scale, density, layout, siting, character and appearance, it has been designed to respect the property and its surroundings.

5.69 Most proposals should be visually subservient to the existing property. The scale of the extension that is likely to be acceptable will depend on the size of the plot, the size of the original dwelling and the impact on neighbours and the

street scene. Further detailed policy is contained in the adopted 2011 Supplementary Planning Document (SPD) Achieving Well Designed Housing.

5.70 Not all house extensions require planning permission. Permitted development rights allow householders to improve and extend their homes without the need to seek planning permission. The Government has produced technical guidance on permitted development for householders which can be found on the Planning Portal website.

5.71 This policy will therefore apply to all applications for development which are not covered by permitted development rights, although it also provides useful guidance, together with the SPD Achieving Well Designed Housing, for extensions being constructed under permitted development rights.



Policy HO 9 - Large Houses in Multiple Occupation and the Subdivision of Dwellings

Proposals for the subdivision of dwellings and the creation of houses in multiple occupation will be acceptable providing that:

1. such proposals do not lead to the unacceptable loss of good quality family housing;
2. effective measures are proposed to minimise the effects of noise and other disturbance to neighbouring residential properties;
3. adequate space is provided for the storage of refuse and recycling bins;
4. the proposal would not adversely affect the character of the building or the surrounding area, for example through increased on-street parking; and
5. the proposal does not lead to the creation of substandard units of accommodation.

Within the rural area, proposals for the subdivision of larger houses into two or more units of accommodation must demonstrate either that there are services in the village where the house is located, or that there is good access to one or more other villages with services, or to the larger settlements of Carlisle, Brampton and Longtown.

Justification

5.72 A Large House in Multiple Occupation (HMO) is a house with more than six people sharing. These are unclassified by the Use Classes Order and in planning terms are described as being sui generis. This Policy applies to large HMOs. The General Permitted Development Order gives Permitted Development rights for change of use from dwelling houses to small scale houses in multiple occupation. Small scale is defined in Circular 08/2010 as small shared houses or flats occupied by between three and six unrelated individuals who share basic amenities.

5.73 The Housing Act 2004 definition of an HMO is as follows:

- three or more unrelated people are sharing facilities;
- buildings comprising non-self-contained flats;
- houses converted to self-contained flats before 1991 and not in accordance with the 1991 Building Regulations; and

- a self-contained flat converted to 1991 Building Regulations standards (or later), if occupied by more than three unrelated persons.

5.74 The Act also makes provision for mandatory licensing of certain HMOs and for such licensing schemes to be operated by the City Council.

5.75 Under the Act, HMOs which need to be licensed are those where:

- the HMO or any part of it comprises three storeys or more;
- the HMO is occupied by five or more persons; and
- these persons are living in two or more single households.

5.76 Where an HMO is situated in a part of a building above business premises, each storey of the business premises is included when calculating the number of storeys for the HMO.

5.77 Because of the shared occupancy of the properties, HMOs, such as bedsits and shared houses, require a higher standard of management than other private rented property and are subject to additional regulation. Some of these regulations relate to the management of the HMOs and this helps safeguard the health and safety of people who live in them who can be amongst the most vulnerable and disadvantaged members of the community. This type of housing is a valuable housing option for many people.

5.78 HMO licensing has been operated in Carlisle since 2006. For more information on HMO licensing, please contact the Private Sector Housing Team at the City Council.

5.79 Certain areas in Carlisle have a concentration of HMOs, in particular Warwick Square/Aglionby Street/ Warwick Road, Stanwix, and Chatsworth and Portland Squares.

Whilst the nature of the buildings in these locations (three storey Victorian houses) can be successfully converted, there are often problems with lack of parking or sufficient outdoor space for storage of bins and recycling bags. This can have an unacceptable impact on the amenity of neighbours, and on the character of the street scene.

5.80 This policy also applies to proposals to subdivide larger houses into two or more dwellings. This can provide additional smaller units of housing, often at less cost than new build, and can often preserve the life of an older building. Such proposals must ensure adequate internal living space, as well as complying with other policy criteria. Where such houses are located in the open countryside, proposals must demonstrate that there is good access to local services and facilities, or to the larger settlements of Carlisle, Brampton or Longtown.



Policy HO 10 - Housing to Meet Specific Needs

The Council and its partners will work together to enable the delivery of specialist housing for vulnerable people including for the ageing population and those with physical and learning disabilities, such as extra-care accommodation, and which take account of the need to provide for a variety of care needs and flexibility to accommodate differing requirements of care.

Proposals for new development to meet a particular housing need, e.g. older people, supported or other specialist accommodation will be acceptable where they are in appropriate sustainable locations, for example, close to a range of services and facilities.

Justification

- 5.81** The age profile for Carlisle District is slightly older than found regionally or nationally, with a greater proportion of people in all age groups from 45 onwards. Within the rural area there is a much larger proportion of people aged 45 and over than in the urban area. Nearly 30% of the population of each rural HMA is aged 60 or over. Cumbria County Council has produced an 'Extra Care Housing Strategy 2011-2029', which identifies that 340 extra care units are required in the District up to 2019. There will be continuing dialogue with the County Council on how this can be delivered.
- 5.82** These figures have implications for the delivery of housing over the plan period and therefore it is essential to ensure that the needs of older people are met over the plan period. New specialist housing for vulnerable people should aim to give all people who require provision of care more choice and control over where and how they live and how they receive care.
- 5.83** This Policy encourages the provision of housing to maximise the independence and choice of older people and those members of the community with specific needs. When assessing proposals for the development of residential care homes, extra care housing and other similar schemes the Council will have regard to the local need for the accommodation proposed, and the ability of future residents and staff to access a range of local services such as shops, community facilities and public transport.

5.84 Older people or others with specialist housing needs often want to stay within the community in which they have been living, or move to be close to family or others who are able to help support them. Whilst such locations may not benefit from local services and facilities, they are still considered sustainable in terms of the community/family support for the particular housing need.

5.85 The Council will also support evidence based proposals for annexes or extensions to existing houses to accommodate an elderly, disabled or otherwise dependant person.

5.86 Proposals for the development of homes that are adaptable for the life course of the occupiers in line with Building Regulations M4 (2) (Accessible and adaptable dwellings), and M 4 (3) (Wheelchair user dwellings), will help to ensure a supply of adaptable and accessible homes that can respond to

the changing needs of individuals and families. Adaptable homes are intended to add to the comfort and convenience of the home, and support the changing needs of those who live there at different stages of their lives. They are designed to create and encourage better living environments for everyone, from small children to coping with temporary or permanent disability, or reduced mobility in later life.

5.87 Housing for people with a range of special needs will also be necessary. The Cumbria County Council 'Adult Social Care in Carlisle District Plan 2012-14' identifies extra care housing as a key form of support. Carlisle has a number of such schemes where people are offered support in extra care schemes, rather than residential care, enabling them to stay at home for longer. Burnside Court in Stanwix provides 44 flats for people with care needs, and is provided by Anchor

Housing, and Heysham Gardens, Belle Vue, provides 60 units (Eden Housing).



Policy HO 11 - Gypsy, Traveller and Travelling Showpeople Provision

The Council and its partners will work together to meet the accommodation needs of Gypsies, Travellers and Travelling Showpeople.

Land has been allocated adjacent to Low Harker Dene for nine permanent residential pitches and up to 15 transit pitches to meet identified needs over the Plan period for Gypsies and Travellers provision.

Proposals which contribute to achieving additional provision of transit and permanent residential pitches, and sites for Travelling Showpeople, in addition to the sites allocated will be considered favourably where they meet the following criteria:

1. the location, scale and design would allow for integration with, whilst not dominating or unacceptably harming, the closest settled community to enable the prospect of a peaceful co-existence between the site and the local community;
2. the site has reasonable access to key services and facilities including schools, shops, doctors' surgeries and health care and other community facilities;
3. there are opportunities to access these facilities by public transport, walking or cycling;

4. adequate utilities can be provided or are already available;
5. the site is well planned to be contained within existing landscape features, or can be appropriately landscaped to minimise any impact on the surrounding area;
6. satisfactory living conditions can be achieved on the site and there would be no unacceptable impact on the amenity of adjacent land uses including residential uses;
7. any ancillary business uses that are intended to be carried out on the site will not have an unacceptable impact on the residential use of the site, any adjacent land uses or the visual amenity of the area; and
8. the site should have, or be able to provide, adequate access and turning space for large vehicles and caravans.

The redevelopment or change of use of existing sites for Gypsies, Travellers and Travelling Showpeople to alternative uses will not be supported whilst there remains a proven need for provision within the District.

Justification

5.88 The Housing Act 2004 places a duty on local authorities to carry out an assessment of the accommodation needs of Gypsies and Travellers in the District. Government policy on travellers is contained in the Communities and Local Government (CLG) document 'Planning Policy for Traveller Sites' which also states that local planning authorities should make their own assessment of need for the purposes of planning. This will help in identifying land for sites and will also ensure that both plan making and decision taking help to reduce the number of unauthorised developments and encampments and make enforcement more effective.

5.89 The Cumbria Gypsy and Traveller Accommodation Assessment (GTAA) (November 2013) sets out an up to date picture of accommodation needs across Cumbria on a district by district basis up to 2030. This will ensure that

any under provision can be addressed to ensure that an appropriate level of supply is maintained in places where Travellers can access education, health, welfare and employment.

5.90 The total pitch requirement across the District, based on the current supply of pitches, and views expressed by Gypsy and Traveller households, is 17 pitches up to 2030. It is acknowledged that the need for pitches should be regularly reviewed to determine the extent to which this requirement is changing over time.

5.91 There are currently a number of licensed Gypsy sites in the District including: Low Harker Dene; Hadrian's Park and Atchin Tan. In addition, there are also a number of pitches provided through personal consents to cater for the needs of single family units. There is also a permanent site for people of the Showman's Guild at Willowholme in Carlisle.

5.92 In addition to the need for permanent provision, the GTAA also makes an assessment of the need for pitches for short term use while in transit. Such sites are intended to be authorised, and usually permanent, but there is a limit on the length of time residents can stay.

5.93 Within the District, based on Gypsy, Traveller and Travelling Showpeople surveys, and the broad scale of unauthorised encampment activity, the GTAA identifies that up to eight additional transit pitches would help offset the incidences of unauthorised encampment activity in Carlisle. This is not an annual requirement, but rather an overall requirement which helps to address on-going unauthorised encampment activity. The transit allocation adjacent to Low Harker Dene provides sufficient land to accommodate up to 15 pitches.

Any additional proposals for transit provision will be assessed against the criteria in the policy.

5.94 With regards to provision for Travelling Showpeople, the GTAA does not identify any need for new permanent sites over the Plan period. Any proposals coming forward for provision for Travelling Showpeople will be assessed against the criteria in the policy.

Policy HO 12 - Other Uses in Primary Residential Areas

Primary Residential Areas are identified on the Local Plan Policies Map. The amenity of residential areas will be protected from inappropriate development. Planning applications for non-residential uses will only be permitted providing that:

1. such uses maintain or enhance the overall quality and character of the immediate area;
2. there is no detrimental effect on residential amenity either through noise, nuisance, damage to visual amenity or increase in traffic; and
3. the proposed use will provide a beneficial service to the local community.

Support will be given for schemes which include the redevelopment or refurbishment of previous non-conforming uses in the area.

The character and residential amenity of the area should not be compromised by the cumulative impact of such proposals, either through increase in traffic or the intensity or intrusive nature of such proposals.

Justification

5.95 This Policy aims to ensure a good standard of amenity for all existing and future occupants of land and buildings. The City Council therefore aims to protect and maintain the residential character of the areas identified as being primarily in residential use, as shown on the Local Plan Policies Map. The Policy coverage will extend to include all consented residential schemes once implemented.

5.96 Within residential areas it is necessary to prevent development that would be detrimental to the amenity of those who live there. In order to protect residential amenity, the City Council will resist any planning application which seeks to introduce a use which is clearly non-conforming and threatens the residential character of an area.

5.97 Certain proposals for non-residential uses within established residential areas including small local shops, public houses, health care facilities, and small businesses including B&Bs may be acceptable provided the applicant can demonstrate that the benefits of the scheme will be in the community's interest.

5.98 There are uses, however, either through the type of use, its scale, or because it would generate an unacceptable level of traffic, noise or other adverse effects such as impact on the safety or health of residents that would result in an overall loss of amenity. Such development is not acceptable in residential areas and will not be permitted.



6 Infrastructure

Objective

To ensure the provision of efficient and integrated infrastructure networks and their timely delivery, including sustainable transport, where needed to support new and existing development, facilitate economic growth and deliver the Plan's strategy.

Context

Infrastructure can take many forms and is essential to support the delivery of the objectives within the Local Plan of increased housing provision, economic growth and creating thriving and sustainable communities. The policies in this chapter aim to ensure key infrastructure provision is in place, or can be put in place, to allow new development to be brought forward and function in a sustainable way.

The implementation of the policies within this chapter will be supported through evidence in the form of the Infrastructure Delivery Plan (IDP) which identifies what infrastructure currently exists across the

District, highlighting any deficits and likely funding arrangements that will be needed to address them, ultimately to help ensure that infrastructure provision keeps pace with growth. Where deficits exist, this chapter establishes a framework through which developments can help to address them using planning obligations where appropriate and viable to do so.





Policy IP 1 - Delivering Infrastructure

New development must ensure that sufficient infrastructure is in place in order to support it. Where this is not the case, or where proposals would place an unacceptable strain on existing infrastructure networks, development will not be permitted unless arrangements can be made to ensure the timely delivery of required infrastructure improvements.

Where a development requires the creation of new infrastructure the Council will require it to be secured through planning obligations. If adopted, the Community Infrastructure Levy (CIL) may also be used to help address infrastructure deficits identified in the Carlisle Infrastructure Delivery Plan (IDP).

Early engagement at pre-application stage by all parties with infrastructure providers will be encouraged for all development proposals. Applicants proposing major development must be able to demonstrate they have engaged in pre-application discussions with relevant infrastructure providers.

Where land is earmarked for infrastructure development, it will be protected from development proposals with the potential to compromise its delivery. Where necessary, the Council will act to safeguard land for new and emerging infrastructure proposals that may arise over the lifetime of the Plan.

Justification

- 6.1** The timely delivery of infrastructure is fundamental to the delivery of the Plan. Co-ordinating development with the delivery of infrastructure will be necessary in some instances.
- 6.2** Key infrastructure likely to be necessary to co-ordinate with the delivery of development within Carlisle includes:
- primary and secondary school placements;
 - adequate highway capacity and achievable access;
 - health and social facilities or improvements;
 - flood risk and surface water management infrastructure and improvements;
 - transport facilities and improvements;
 - foul water drainage and network capacity;
 - energy supply; and
 - clean water supply.
- 6.3** Other infrastructure requirements may also need to be addressed before development can commence. These requirements will vary from location to location, and may cover a wide range of social and environmental needs, based on local circumstances.

6.4 The Infrastructure Delivery Plan (IDP) will continue to be used to identify any infrastructure deficits that may impact upon proposals for new development. In this regard the IDP will support the implementation of this Policy through providing evidence for seeking developer contributions from applicants where a specific infrastructure issue would directly affect and/or result from a development proposal. Issues may also be raised during consultation on a planning application by relevant infrastructure bodies. New development which would place unacceptable strain on existing infrastructure, or which is proposed in an area where essential infrastructure does not exist, will only be approved once the applicant has demonstrated how and when infrastructure requirements will be met.

6.5 The IDP will also provide information and evidence to support the introduction of a Community Infrastructure Levy (CIL), which would seek contributions from applicants towards known strategic infrastructure deficits that have been identified across the District. If CIL is subsequently introduced by the City Council, the use of planning obligations would be scaled back in accordance with the regulations governing the use of CIL.

6.6 In order to reduce disruption caused by connecting development sites to infrastructure networks such as gas, water, sewage, electricity and broadband fibre i.e. where development may need to close highways to carry out work, developers will need to co-ordinate with infrastructure providers to ensure that works on multiple utilities are carried out, wherever it is possible to do so, at the same time. This will help to avoid situations where lengthy

road closures are incurred on multiple, separate occasions over the course of construction as different utilities are installed, to the inconvenience of existing communities.

6.7 The Council will seek to ensure that land required to accommodate new infrastructure provision is, where necessary, protected from unrelated and potentially compromising development. In some cases it may be necessary to formally allocate or safeguard land for the development and delivery of new infrastructure. If the need to do so arises throughout the life of the Plan the Council will consider the need for a partial review of the appropriate element of the Plan or consider the need to bring forward an additional Development Plan Document (DPD).



Policy IP 2 - Transport and Development

All new development will be assessed against its impact upon the transport network. Development that will cause severe issues that cannot be mitigated against will be resisted. Development likely to generate significant levels of transport within isolated and poorly accessible areas will be resisted unless a clear environmental, social or economic need can be demonstrated.

New development that will be accessible to the public will be required to prioritise safe and convenient access for cyclists and pedestrians, and to take opportunities to contribute to the creation and enhancement of an integrated and continuous sustainable transport network. All new development must demonstrate/provide convenient access to public transport, although a more flexible approach may be justified in rural areas where public transport options are more limited.

Proposals that would facilitate a modal shift in freight transport from road to rail and/or air will be supported where the impact on the surrounding road network and land uses can be accommodated without significant adverse effect.

Travel Plans and Transport Assessments:

Development which through reference to national guidance requires the submission of a Transport Assessment and/or Travel Plan, should, in addition to responding to national guidance, demonstrate how:

1. the needs of cyclists and pedestrians will be met and prioritised on site;
2. the development will help to reduce the need to travel, particularly by private motor car;
3. the movement of freight and goods by rail will be maximised where possible and appropriate;

4. the site will safely and conveniently connect to public and green transport routes, and contribute to creating a multifunctional and integrated green infrastructure network;
5. the accessibility needs of more vulnerable people have been taken into account;
6. the impact of heavy goods vehicles accessing the site, where this is a required aspect of operations, will be minimised, including restrictions on operating hours and how route plans involving the movement of HGVs will avoid residential areas where possible; and
7. all other sustainable transport concerns will be addressed.

Sustainable Vehicle Technology:

Developers will be encouraged to include sustainable vehicle technology such as electric vehicle charging points within proposals.

Justification

6.8 Through recognition that all new developments can potentially impact upon the transport network, it is important that the extent of these impacts are fully understood and considered when determining planning applications. Policy IP 2 seeks to achieve this via providing a framework through which likely impacts can be assessed. The overriding objective of the Policy, which builds upon the Strategic Transport Policy at the outset of the Plan, is to ensure that development proposals that will compromise the safe or effective operation of any element of the District's transport network will be resisted.

6.9 New development should be planned in such a way that reduces the need to travel and prioritises the movements of pedestrians and cyclists and other sustainable transport uses in order to achieve safe and secure access for

all. Residential developments should in this context pay particular regard to the importance of safe walking routes to school. New development should capitalise upon and enhance links to existing green infrastructure and rights of way networks wherever possible or should seek to create new networks if none are present. Similarly opportunities should be taken to maximise connectivity with public transport.

6.10 Travel Plans and Transport

Assessments will be used to make sure that new development conforms to the principles of sustainable transport. The circumstances when such assessments will be formally required are set out in the Planning Practice Guidance as too is the intended scope of such assessments. In summary however such assessments will generally be required to demonstrate that:

- the wider impact of development on the transport network has been considered;
- pedestrians and cyclists have been given the highest consideration in terms of accessing the site and there is good access to the public transport network;
- road and street layouts are designed to be safe and secure and minimise the conflicts between traffic and pedestrians and cyclists;
- the needs of vulnerable people, such as children, people with disabilities, the elderly, and parents with prams/young children have been addressed;
- convenient and safe walking routes to schools and other services and facilities can be achieved;



- the delivery and movement of goods and supplies is as efficient as possible (i.e. by rail) and that all reasonable efforts have been taken to reduce the potential nuisance caused by HGV movements; and
- opportunities to incorporate facilities for electric vehicle charging points have been considered.

6.11 The Manual for Streets was produced by the Department for Transport in 2007 and continues to provide valuable guidance on how to achieve accessible and well designed streets and neighbourhoods. In order to ensure a high quality living environment for residents, the Council will encourage its use within development proposals. In keeping with the Manual for Streets, the Council will expect new development to integrate well with existing development particularly regarding cycle and pedestrian access and connections. Foot and cycle paths

will need to be both convenient and safe, not only from a traffic point of view, but also through ensuring that neither a sense of fear is created nor crime encouraged through the isolating of the route from other activities and street users, especially at night.

6.12 The Council will continue to work with the Local Highway Authority to ensure that new estate roads and streets, particularly those designed using the Manual for Streets, are of a standard that can be adopted.

6.13 Whilst electric vehicle technology is still in its infancy, there is a strong push from national Government to encourage the development of infrastructure to support its growth. The provision of electronic car chargers within car parks is slowly growing within the City and wider District. As such consideration should be afforded to increasing electric charging provision wherever appropriate and possible.

Policy IP 3 - Parking Provision

Where appropriate, proposals for new development will be expected to provide a minimum number of parking spaces per new dwelling/m² of floor space depending on the type and location, in consultation with the Local Highway Authority and in accordance with any local standards in operation.

In areas suffering from significant on-street parking problems, greater provision will be sought where possible, or alternative measures to address the issues will be required. In all areas the need to encourage the use of alternative means of travel, other than the private car, shall be an important consideration when applying parking standards.

Provision for convenient and secure bicycle parking will also be expected to be provided in line with standards. A minimum standard for disabled parking spaces within new development will also be applied.

Off and on street parking provision will be required to be well designed, safe and appropriate for the street scene. Proposed car parking provision that would have a significant adverse impact upon the character of an area will be resisted. The Council will expect developers to have regard to the Manual for Streets when considering parking design.

Justification

6.14 National policy now makes clear that parking standards should be determined at the local level in response to local circumstances. The Council, working with the Local Highway Authority, will produce a Supplementary Planning Document (SPD) to set minimum parking standards for the District. A minimum requirement for parking as opposed to a maximum allowance is considered a logical response to local circumstances and specifically an increase in on street parking. Experience supports that more spaces are needed in new development, and new standards, depending on the type, location and scale of development will reflect this. New development will be expected to be in line with the standards presented within the SPD once formally adopted.

6.15 In the interim, standards will be decided on a case by case basis, in consultation with the Local Highway Authority, ensuring that all new development provides adequate parking provision. In doing so standards and therefore requirements will be informed by:

- the type, mix and use of the development;
- the accessibility of the development;
- the availability of and the opportunities for public transport;
- local car ownership levels;
- the availability and number of parking permits within the locality; and



- an overall need to reduce the use of high-emission vehicles.

6.16 For commercial and leisure areas, it may be acceptable for different uses to share parking space which can count towards meeting the required spaces for both businesses, assuming it can be adequately demonstrated that anticipated peak usage will occur at different times of the day as to avoid conflict.

6.17 There is an issue with increasing levels of on street parking in some residential areas within the District and there is therefore a need to look at more appropriate off street parking solutions. When considering proposals, it must be noted that garages that are less than 6m in length and 3m in width are not considered large enough to comfortably accommodate the average modern family car and will not be counted as car parking spaces.

6.18 Conversely it is acknowledged that there is virtually no off-street parking provision in some parts of the City, such as on and around Warwick Road, and this can result in significant issues with inappropriate on street parking. There are also parking problems on the Kingstown Industrial Estate in the north of the City, where piecemeal take up of units has meant that insufficient parking spaces have been provided leading to congestion issues on the estate roads as people struggle to find a place to park. Beyond the City, issues also arise due to a lack of parking in the other larger settlement centres, particularly in Brompton where town centre spaces are used largely by workers rather than visitors or shoppers, with issues owing to commuter parking also known in Dalston and Longtown. A more flexible approach to parking standards in such areas may be required.

Policy IP 4 - Broadband Access

New development must be able to demonstrate how it will contribute to and be compatible with local fibre or internet connectivity. Applicants will be expected to demonstrate the anticipated connectivity requirements of the development, known nearby data networks and their anticipated speed, and realistic assessments of connection potential (fixed copper, 3G, 4G, fibre, satellite, microwave, etc) or contribution to any such networks.

All new development should aim to enable a connection to the internet with a minimum symmetrical speed of 10Mbps, aspiring towards 25Mbps where possible and viable. Where this cannot be achieved, proposals should still include, where possible, suitable measures to enable a superfast broadband connection at a future date.

Applicants proposing major development schemes are encouraged to engage with local broadband groups and Parish Councils, where present, to explore how superfast broadband can be provided to benefit the local community; establish whether any community broadband projects are active within the local area; and understand how development may contribute to and integrate with them.

Within the City Centre, Brampton and Longtown proposals to expand the free public Wi-Fi network will be supported.

Justification

- 6.19** The expansion of high speed broadband across the District will be supported, particularly in rural areas where there has been a market failure regarding the viability of providing high speed and holistic connectivity.
- 6.20** The Fibre to the Home Council Europe (FTTH) reported that in 2012/13 the UK had not yet achieved 1% household coverage of superfast, fibre optic broadband (100Mbps), falling dramatically behind other European countries. The Government has expressed its intention to invest in broadband networks across the country, aiming to ensure every household has access to at least 2Mbps and that 90% of homes have access to at least 25Mbps by 2015. It is widely recognised however that speeds of at least 100Mbps will be required to ensure the functionality of emerging workplace practices such as cloud computing.
- 6.21** Across the District current levels of broadband access vary significantly. Parts of the City, in have access to fibre optic cable broadband technically capable of speeds of up to and above 75Mbps. Rural parts of the District can have generally much lower connection speeds, though this is improving as access to fibre broadband is rolled out across the County.



6.22 This Policy seeks to balance the viability of new development with that of ensuring the wider, long term viability of the District from a socio-economic perspective in terms of access to superfast broadband. It also seeks to support community broadband initiatives. Provision needs to be made to ensure new development contributes towards the Government's target of 24Mbps to 95% of UK households by 2017. However, it would be remiss not to consider the likely requirements of homes and businesses over the 15 years of this Plan and encourage applicants to consider ways of allowing for future upgrades to networks within their plans. Applicants will be required to actively demonstrate that they have considered broadband connectivity within their proposals and, where necessary, justify why a 10Mbps connection at the site could not be achieved. Where a 10Mbps connection is not currently possible, applicants

should demonstrate the efforts taken to ensure that their development is ready to embrace superfast broadband once it is available by ensuring measures such as ducting, capable of carrying fibre cables, is provided up to the public highway or any community led broadband networks in the area.

6.23 A free public Wi-Fi network is currently being rolled out by the City Council across the City Centre and within parts of Brampton and Longtown, for the benefit of residents, visitors and businesses. Proposals to expand these networks or to create similar new ones will be supported providing the necessary infrastructure is incorporated into the street scene as subtly as possible.

Policy IP 5 - Waste Minimisation and the Recycling of Waste

All new development should follow the principles of sustainable waste management and must include details of facilities for the storage, collection and recycling of waste produced on-site for both during and after construction. On new housing estates of 20 or more new dwellings developers will be encouraged to make provision for collective, accessible and secure waste and recycling areas that create a single, sheltered point for waste storage and collection to serve a number of dwellings.

Developers will be expected to provide waste storage units for every new dwelling or unit within a new development, either as large euro-bins for collective waste areas or smaller wheelie bins for individual dwellings. These bins must meet Council standards for quality, size, colour and design, and must be in place before any dwelling is occupied. Where necessary this requirement will be secured through the imposition of planning conditions and/or planning obligations.

Justification

- 6.24** The principles for sustainable waste management are clearly established at the national level. Similar principles are set out in the Cumbria Minerals and Waste Local Plan, which forms part of the Development Plan for the District of Carlisle. Planning authorities should seek to reduce the amount of waste going to landfill. This means ensuring that every possible step has been taken by new development to ensure sustainable methods of waste disposal are encouraged and, on larger sites, required through planning policy.
- 6.25** Carlisle City Council currently aims to have at least 50% of all household waste disposed of sustainably either through recycling or composting by 2020. The Council is well on track to meeting this target with around 43.5% of all household waste in 2013/14 being recycled or composted. This figure has seen a significant increase in recent years with only 25.73% of waste being recycled or composted in 2004/5. To ensure that this trend is maintained all new development must be required to follow the principles of sustainable waste management.
- 6.26** Developers will be encouraged to set aside areas on new housing estates for collective waste storage in order to provide a single point for collection. This should make it easier for refuse collection services to work on an estate and also alleviate levels of disturbance to residents that may arise from refuse trucks travelling door to door. Collective waste



sites must be accessible to refuse trucks and must also be secure to prevent fly tipping; sheltered from the elements to prevent pollution; and free from animal interference. Recycling provision should also, where possible, be provided alongside these collective waste areas.

6.27 Collective waste areas should be accessible and larger estates may require multiple sites. One euro-bin should be provided for every 12 households using the storage area, or every eight if recycling facilities are not available. Collective waste sites should be within easy walking distance from any given front door on an estate and special arrangements will need to be put in place to assist people with mobility issues.

6.28 When considering how waste should be stored on a property where collective waste points will not be available, developers must be able

to demonstrate that this has been considered within a design and access statement. Where possible, waste storage areas should be discreetly located outside and afforded some protection from the elements. When considering how waste should be located for collection, developers must ensure that kerbside placement is achievable.

6.29 Developers will be expected to provide bins for each new dwelling or unit within a new development. These bins, either euro-bins or smaller wheelie bins for individual dwellings, must meet Council standards for design, quality, colour and size. They must also bear the Council's logo to ensure they can be immediately recognised by the refuse teams. It is recommended that developers order their bins through the Council's waste services team. Bins must be provided before dwellings/units are occupied on site.

Policy IP 6 - Foul Water Drainage on Development Sites

Where there are concerns that inadequate foul water treatment and drainage infrastructure exists to serve a proposed development, or where such provision cannot be made within the time constraints of planning permission, it is the responsibility of the developer to demonstrate how foul drainage from the site will be managed. In some circumstances, it may be necessary to co-ordinate the delivery of development with the delivery of infrastructure. In certain circumstances, a new development will be required to discharge foul water to the public sewerage system at an attenuated rate.

The first presumption will be for new development to drain to the public sewerage system. Where alternative on-site treatment systems are proposed, it is for the developer to demonstrate that connection to the public sewerage system is not possible in terms of cost and/or practicality and provide details of the responsibility and means of operation and management of the system for its lifetime to ensure the risk to the environment is low.

Justification

- 6.30** Foul and surface water drainage are managed through two different systems and must be considered separately. Policy IP 6 sets out the expected approach with regard to foul water drainage but should, where necessary, be read alongside Policy CC 5 which relates to surface water management. Policy IP 6 requires applicants to ensure that the impact of development on infrastructure has been considered in liaison with the statutory sewerage undertaker.
- 6.31** United Utilities manage and monitor capacity within the waste water treatment network. The Council relies on feedback from them in order to ascertain whether sufficient capacity exists within the network to accommodate new development or where it may be necessary to co-ordinate development in line with any upgrading work. This will be dependent on detailed proposals and developers are encouraged to speak to United Utilities at the earliest opportunity.
- 6.32** Specific issues that may arise within the waste water infrastructure network will also be picked up through the Infrastructure Delivery Plan. The Council will continue to work with United Utilities to ensure the impact of development on infrastructure is appropriately managed.



6.33 The quality of groundwater and surface waters and associated water-based recreation, fisheries and nature conservation must be protected against the risk of pollution from the inadequate provision of foul water sewerage and sewage treatment facilities. Development proposals which necessitate the use of septic tanks and sewage treatment package plants may, if not designed correctly or located appropriately, result in an increased risk of pollution to groundwater and surface waters. Such systems will only be permitted if it can be demonstrated that connection to the public foul water sewerage system is not feasible, taking into account cost and/or practicability, and where it can be demonstrated that they accord with environmental standards. The discharge from such systems will also need to comply with the Environmental Permitting Regulations.

Policy IP 7 - Carlisle Airport

Within the boundary of Carlisle Airport, development that is related to airport activities will be acceptable.

In addition, enabling development that would facilitate the ongoing or further operational development of the Airport, and which would not compromise other elements of the Local Plan's overarching spatial strategy, will be acceptable. Applicants will be required to provide clear evidence as to how any such enabling development will ensure the ongoing viable operations of the Airport for aviation.

Justification

- 6.34** There is a continuing requirement to support the development of the Airport for aviation uses through recognition of its role as a unique component of the District's strategic transport infrastructure. National policy makes clear that when planning for airports, plans should take account of their growth and role in serving business, leisure, training and emergency service needs.
- 6.35** The extent of the boundary of the airport is defined on the Policies Map. Development proposals within the boundary which relate to Airport activities will be supported, subject to conformity with other policies within the Local Plan where relevant.
- 6.36** Enabling development that would facilitate the ongoing or further development that is essential or conducive to the operation of the Airport, will be acceptable, subject to the clear provision of evidence to demonstrate how any such development is proportionate to and relates to the ongoing viable operations of the Airport. Proposals for enabling development must also demonstrate through reference to their scale and nature that the Local Plan's overarching spatial strategy would not be compromised.



Policy IP 8 - Planning Obligations

Carlisle City Council will work with partners to identify and deliver infrastructure, services and community facilities to improve the sustainability of its communities.

In the first instance new development will be expected to provide infrastructure improvements which are directly related to and necessary to make the development acceptable. These will be identified through the development management process and secured through planning conditions and obligations.

The Infrastructure Delivery Plan (IDP) will, through consultation with relevant partners and infrastructure providers, assist in the identification of the infrastructure, services and facilities that new development may be required to contribute to within the life of the Plan. Such infrastructure could cover a wide range of economic, social and environmental provision.

If a Community Infrastructure Levy (CIL) is introduced by the Council, planning obligations will not be sought for infrastructure funded by CIL.

Certain forms of development, where prescribed by national policy and guidance, will be exempt from any tariff-style planning obligations.

Where a developer seeks to depart from any planning obligations sought, it will be necessary for them to demonstrate that such contributions are nevertheless being maximised as far as it is viable to do so, and that ultimately the wider economic, social and environmental benefits to be realised from approving the proposal in the absence of such contributions outweigh the harm of doing so.

Justification

6.37 There are a number of policies in the Plan which aim to improve the local environment for existing residents of the District and new occupants. In order to ensure that any new development proposals are integrated a number of measures will be considered. Planning obligations are one way of integrating new development into the surrounding environment especially where development proposals may have a direct impact on others. Given the wide range of local issues which may arise, the City Council will consider setting out its priorities for planning obligations in a separate document. Notwithstanding this, it is recognised that ultimately the scope of obligations will need to be considered on a site by site basis, informed through local circumstances and the nature of development proposed.

6.38 The Carlisle IDP identifies known deficiencies in infrastructure provision within the District, having regard to planned and therefore cumulative levels of development, and also highlights what funding arrangements are required to address these. Where there are gaps in funding, it is likely that developer contributions will be needed to ensure infrastructure is provided where and when it is needed. Planning obligations may be used, where appropriate, to secure such contributions.

6.39 In the future the Council may seek to adopt a CIL. The need for CIL will be informed through the IDP process and subject to a separate process of preparation which would entail consultation opportunities and a separate examination. In accordance with the regulations which govern the use of CIL, if introduced, the approach to the use of planning obligations alongside CIL will be clearly set out.

6.40 In accordance with national policy and to ensure that the Plan remains deliverable, it is recognised that the use of planning obligations must not over burden developers or compromise the viability of development proposals. The Plan and the policy requirements within have therefore been informed through the Local Plan Viability Study and development proposals will be assessed in accordance with the tests set out in paragraph 204 of the National Planning Policy Framework.

7 Climate Change and Flood Risk

Objective

To reduce emissions of greenhouse gases, including through securing energy from renewable sources, and avoid inappropriate development in areas at risk of flooding in order to ensure that the District is more resilient and less vulnerable to the effects of climate change and can successfully adapt to its effects.

Context

Carlisle City Council recognises that the planning system has a central role to play in ensuring the resilience of our communities into the future. It is therefore clear that the policies contained within this chapter emphasise the importance of protecting our natural environment whilst making the most effective use of our natural resources through renewable energy generation, energy efficient design and effective water management. Central to this is ensuring that the District is resilient to the effects of climate change.





Policy CC 1 - Renewable Energy

Proposals for renewable energy development will be supported where they can demonstrate, through identifying and thoroughly appraising any potential individual and cumulative effects, that any associated impacts are or can be made acceptable. This presumption will apply where proposals:

1. do not have an unacceptable impact on the location, in relation to visual impact caused by the scale of development, on the character and sensitivity of the immediate and wider landscape, townscape or heritage assets and their settings;
2. do not have an unacceptable impact on local amenity and can successfully mitigate against any noise, smell or other nuisance or pollutants likely to affect nearby occupiers and neighbouring land uses;
3. ensure that any waste arising as a result of the development is minimised and dealt with using a suitable means of disposal;
4. do not have an unacceptable effect on existing services such as highways infrastructure and telecommunications; and

5. do not have an unacceptable effect on civil or military aviation and/or other defense related installations, including RAF Spadeadam and Eskdalemuir Seismic Recording Station.

In addition to the criteria set out above, applications for wind energy development should accord with Policy CC 2.

In all cases proposals will be required to demonstrate that appropriate operational requirements have or are capable of being satisfied (including accessibility and suitability of the road network, ability to connect to the grid and the proximity of any feedstock where relevant) and that appropriate measures are put in place for the removal of structures and the restoration of sites should they become non-operational.

Where mitigation is required to make any identified impacts acceptable these will, where necessary, be secured through condition or planning obligations.

Justification

7.1 The City Council recognises the importance of protecting our natural environment whilst making the most effective use of our natural resources through renewable energy generation. Renewable energy is the collective term used for repeatedly occurring natural energy sources. These include energy from wind, biomass, waste, hydropower, solar, heat pumps, woodfuel and others as technologies develop. This criteria based Policy will be used to ensure that renewable energy development is sited in the most appropriate locations, be that large scale or micro-renewable schemes (where planning permission is required). Policy CC 2 'Energy from Wind' must also be satisfied when considering applications for the development of wind energy. Certain combustible industrial, agricultural or domestic waste materials and anaerobic digestion plants are also regarded as renewable sources of

energy however applications for this type of renewable energy development which import off-site waste materials would come under the remit of Cumbria County Council as the Waste Planning Authority.

7.2 The Government is committed to sourcing 15% of its total energy (across the sectors of transport, electricity and heat) from renewable sources by 2020 alongside a UK carbon budget to reduce emissions by 80% from 1990 levels by 2050. Renewable energy sources can help to diversify energy supply and reduce harmful emissions to the environment, however most forms of renewable energy require specific environmental conditions and therefore can only be developed where the resource exists. The Overarching National Policy Statement for Energy (EN-1) advises that a diverse mix of all types of power generation is beneficial so that we are not dependent on

any one type of power generation, therefore ensuring security of supply. Additionally, the value of renewable energy generation is recognised as a means of achieving a low-carbon economy. The Planning Policy Guidance (PPG) includes a strong message that local authorities should promote and encourage, rather than restrict, the development of renewable energy sources.

7.3 The Cumbria Renewable Energy Capacity and Deployment Study (September 2011) considers a range of renewable energy sources, translating potential into realistic deployable capacity up to 2030 in order for Cumbria to meet Government energy targets. It states that Cumbria needs to significantly increase its current level of deployment (of all types of renewable energy) if it is to meet the target figure considered deployable by 2030.



The study looks at the overall potential technical capacity from wind, biomass, energy from waste, hydropower, solar and heat pumps. Applicants should have regard to this and any future studies in the formulation of development proposals.

- 7.4** It should be noted that within Carlisle District there are a number of additional landscape and functional constraints that may limit renewable energy development in certain locations, including within the North Pennines and Solway Coast Areas of Outstanding Natural Beauty (AONB), Hadrian's Wall World Heritage Site and buffer zone, Carlisle Airport Safeguarding area, Eskdalemuir Seismic Recording safeguarding area and the Ministry of Defence (MOD) safeguarding zone. Within sensitive landscapes reference must be made to the relevant Management Plan(s) when considering proposals which could have an impact upon these designations. The Cumbria Landscape Character Guidance

and Toolkit 2011, or any successor documents, should be used to assist in identifying areas that are capable of successfully integrating renewable energy developments.

- 7.5** The Council will seek to foster community involvement in larger scale renewable energy projects, and recommends that developers of renewable energy projects engage in active consultation and discussion with local communities at an early stage in the planning process. The Council will also seek to consider, where appropriate, the opportunity for developing renewable energy projects in association with new large-scale developments, for example district heating networks. It will also positively support community-led initiatives for renewable and low carbon energy where they are in line with this Policy, for example community-led anaerobic digestion schemes.

- 7.6** It is recognised that micro-renewables can make an important contribution to renewable energy and carbon reduction, especially in reducing carbon emissions from both domestic and commercial buildings. Micro-renewables refers to installations of less than 50Kw and includes technologies such as solar panels and wood-fuelled heating. In some cases due to scale and site constraints, planning permission will be required for micro-renewable energy schemes, as such the criteria of this Policy will be used to assess such applications.

- 7.7** Proposals for renewable energy developments may inevitably have some local environmental implications. Any significant adverse impact will be weighed against the wider social, economic and environmental benefits including those of reducing emissions. Some renewable energy projects may be subject to an Environmental Impact Assessment (EIA). This will be the case where a scheme is likely to have

significant environmental implications for the surrounding area during its development and/or operation. Further information on EIA can be found online in the PPG.

- 7.8** Proposals will be required to demonstrate that they have considered the environmental effects of the distribution lines between the development and the point of connection to the National Grid. Consideration should also be given to the environmental impact of access tracks where these are required to construct and maintain the proposed development, as well as the appropriateness of the local highway network to gain access to the site in these terms and for the purposes of restoration.



Policy CC 2 - Energy from Wind

Proposals for the development of wind turbines will be supported where they accord with national policy and guidance, and where it can be demonstrated, through identifying and thoroughly appraising any potential individual and cumulative effects, that any associated impacts are or can be made acceptable. This presumption will apply where proposals do not have;

1. an unacceptable impact on the location, in relation to visual impact caused by the scale of development, on the character and sensitivity of the immediate and wider surrounding landscape and townscape;
2. an unacceptable impact on local amenity in relation to noise, amplitude modulation, shadow flicker, low frequency sound or vibration. In the interests of residential amenity and safety, turbines over 25m to blade tip will be required to be located a minimum of 800m away from residential properties. It is recognised that in some cases due to site-specific factors such as orientation of views, landcover, other structures and topography that it may be appropriate to vary this threshold, where it can be demonstrated through evidence that there would nevertheless be no unacceptable impacts on residential amenity or safety;
3. an adverse effect on any nature conservation features, biodiversity and geodiversity, including designated sites, or priority habitats and species;
4. a significant adverse impact on the significance of heritage assets including Hadrian's Wall World Heritage Site and conservation of its Outstanding Universal Value, Scheduled Ancient Monuments, listed buildings, historic parks and gardens, battlefields, conservation areas or undesignated heritage assets included in a local list including their settings;
5. an unacceptable effect on existing services such as highways infrastructure and telecommunications; and
6. an unacceptable effect on civil or military aviation and/or other defence related installations, including RAF Spadeadam and Eskdalemuir Seismic Recording Station.

Justification

The criteria listed above will also be used as a basis for future identification of suitable area(s) for wind energy development.

In all cases proposals will be required to demonstrate that appropriate operational requirements have or are capable of being satisfied (including accessibility and suitability of the road network, ability to connect to the grid and the proximity of any feedstock where relevant) and that appropriate measures are put in place for the removal of structures and the restoration of sites should they become non-operational.

Where mitigation is required to make any identified impacts acceptable these will, where necessary, be secured through condition or planning obligations.

7.9 The Local Plan has a duty to encourage the use of renewable energy sources as a means of reducing greenhouse gas emissions and providing positive resilience to the impacts of climate change. The Climate Change Act (2008) set legally binding carbon budgets for the UK which aim to reduce UK carbon dioxide emissions by 34% by 2020 and, in line with European guidelines, at least 80% by 2050. The UK Renewable Energy Strategy 2009 includes a national target to provide 15% of electricity and heat from renewable and low carbon sources by 2020. Accordingly the National Planning Policy Framework (NPPF) requires local planning authorities to promote and support the delivery of renewable and low carbon energy and associated infrastructure in moving towards a low carbon economy.

7.10 The Cumbria Renewable Energy Capacity and Deployment Study (September 2011) considers a range of renewable energy sources, translating potential into realistic deployable capacity up to 2030 in order for Cumbria to meet Government energy targets. It states that Cumbria needs to significantly increase its current level of deployment (of all types of renewable energy) if it is to meet the target figure considered deployable by 2030 and encourages the continued deployment of commercial wind as it provides the cheapest option for energy generation and gives the highest carbon savings. Wind energy proved to be the largest single resource in Cumbria with Carlisle having a significantly lower capacity than other Districts. In relation to landscape capacity, the study identifies that Carlisle has 9% of the wind energy capacity for Cumbria. Despite this, Carlisle is identified as having



the highest potential capacity for accessible small scale resource 'micro-renewables', due to the urban nature of the District.

7.11 In order to ensure that only appropriate development takes place, the Policy sets a positive criteria based approach to encourage acceptable proposals to come forward to help meet national renewable energy targets. This approach sees each proposal determined on its merits, and will work in conjunction with other local plan policies to ensure the maximum level of resource is harnessed while ensuring that any impacts are, or can be made acceptable, reflecting both national planning policy and local evidence.

7.12 In addition to the criteria set out in Policy CC 2 wind energy development will be required to follow national policy and therefore, as appropriate, it will be necessary to define suitable areas for wind energy development. Furthermore, applications should

demonstrate that they have addressed the planning concerns of the local community and therefore have their backing. Using this evidence the Council will consider the extent to which the applicant has addressed community concerns and make a judgment of the community backing.

7.13 Until such time as the suitable areas are identified in a subsequent development plan document (on a district basis or through collaboration with adjoining districts) or neighbourhood development plan, proposals for wind energy development will be considered against other local plan policies, together with national policy and guidance.

7.14 In identifying and considering the impacts of any proposal, such assessments will be required to also take into account the impact of any singular or cumulative development on the landscape and other matters

from known proposals in the planning system, extant planning approvals or other existing renewable energy developments within and adjacent to Carlisle District, including across the border in Scotland. Such an approach is imperative in ensuring that the cumulative effects of proposed developments are understood.

7.15 Proposals for wind energy developments will almost always have some local environmental implications. Any significant adverse impacts will be weighed against the wider social, economic and environmental benefits including those of reducing emissions and greenhouse gasses. Some renewable energy projects may be subject to an EIA. This will be the case where the scheme is likely to have significant environmental implications for the surrounding area during its development and/or operation. Further information on EIA can be found online in the PPG.

7.16 Proposals for the development of wind turbines will be expected to provide supporting evidence proportionate to their scale and nature and the key issues they give rise to, including Landscape, Visual and Environmental Assessments. In developing proposals regard should be had to the Cumbria Wind Energy - Supplementary Planning Document (SPD); Cumbria Renewable Energy Capacity and Deployment Study (2011); the Cumbria Landscape Character Guidance and Toolkit (2011) and/or any related documents. Additionally, the City Council have worked with Cumbria County Council and other Cumbrian authorities to develop a Cumulative Impact of Vertical Infrastructure Study. This study is valuable in that it assesses the cumulative effect of a number of tall structures in the landscape (turbines, pylons, telecoms, masts etc) and assesses instances where it is considered that the landscape has reached the point of saturation. This

study will therefore be used when determining applications of this type.

7.17 From a landscape perspective the Cumbria Wind Energy SPD was adopted by the City Council in 2007 to help guide the siting and design of turbines and to indicate the capacity of each landscape character type within Cumbria for wind energy. It reiterates that wind energy development can have wider landscape and visual effects than other forms of renewable energy development. This SPD is therefore used to guide development of this kind and will support the implementation of this Policy.

7.18 It should be noted that within Carlisle District there are a number of additional landscape and functional constraints that may limit wind related developments in certain locations, including within the North Pennines and Solway Coast AONBs, Hadrian's Wall World Heritage Site and buffer zone, Carlisle Airport Safeguarding

area, Eskdalemuir Seismic Recording safeguarding area and the MOD safeguarding zone. Within sensitive landscapes reference must be made to the relevant Management Plan(s) when considering proposals which could have an impact upon these designations.

7.19 Within aviation or military installation safeguarding areas, where proposals may have an effect on and compromise their safe and effective operation, an assessment of potential effects should be set out in an Environmental Statement (as outlined in EN1- Overarching National Policy Statement for Energy). Similarly it must be demonstrated that proposals would not inhibit the safe operation of existing services including highways and public rights of way nor impede telecommunications networks.

7.20 A key objective of the Policy is to protect amenity and particularly residential amenity and safety.



Whilst the PPG is clear that Local Planning Authorities should not rule out otherwise acceptable renewable energy developments through inflexible rules on buffer zones or separation distances, the inclusion of an 800m separation distant is considered entirely justified within the District in response to the most up to date evidence on these matters and importantly to ensure a consistent approach on this strategic cross boundary issue particularly with the adjoining Borough of Allerdale and Scotland. Through recognition that the local context including factors such as topography, the local environment and near-by land uses can influence the extent to which distance itself is likely to determine whether the impact of a proposal is acceptable, flexibility has been built in to permit a departure from the 800m threshold where it can be clearly demonstrated that residential amenity and safety would not be compromised. Such an approach accords entirely with that advocated by the PPG.

7.21 Any impacts on the District's biodiversity, geodiversity and heritage assets will be considered in the context of the relevant policy coverage set out elsewhere within the Plan. The RSPB will be consulted where development has the potential to impact significant populations of sensitive bird species or their habitats.

7.22 Proposals will be required to demonstrate that they have considered the environmental effects of the distribution lines between the development and the point of connection to the National Grid. Consideration should also be given to the environmental impact of access tracks where these are required to construct and maintain the proposed development, as well as the appropriateness of the local highway network to gain access to the site in these terms and for the purposes of restoration.

7.23 Where it is identified that a proposal would give rise to any significant adverse impacts, measures will be required to be put forward to demonstrate that such impacts can be satisfactorily mitigated and that such measures can be appropriately secured through the imposition of planning conditions or use of planning obligations.

7.24 The Council will seek to foster community involvement in wind energy projects, and recommends that developers of renewable energy projects engage in active consultation and discussion with local communities at an early stage in the planning process. The Council will also seek to consider, where appropriate, the opportunity for developing community-led initiatives for wind energy schemes where they are in line with this Policy.

Policy CC 3 - Energy Conservation, Efficiency and Resilience

New development should make the fullest contribution to creating environments which enable carbon reduction and are resilient to the effects of climate change.

Development proposals must take into account the need for energy conservation and efficiency in their design, layout and choice of materials. The principles should be introduced in the early stages of the design process in order to consider the orientation of buildings to maximise solar gain and introduce options for alternative methods of heating. The efficient and effective use of land, including the reuse of existing buildings and the use of environmentally sustainable and recycled materials is also expected within the design.

Proposals which incorporate other micro-renewable sources of renewable energy like photovoltaic cells will be supported in accordance with other policies in the Plan.

The Council will encourage all major developments to explore the potential for a District Heating Network or Decentralised Energy Network. Proposals for renewable, low carbon or decentralised energy schemes will be supported provided they do not result in unacceptable harm which cannot be successfully mitigated. This includes support for community-led renewable energy schemes.

Justification

7.25 It is important to be clear that as well as planning to mitigate and reduce the impacts of climate change, we must also recognise that some level of climate change is now unavoidable. There is therefore a need to start adapting to the predicted impacts we are likely to see in the future. The Council therefore seeks to ensure the high quality of development proposals and to promote energy efficiency and sustainable sources of energy supply. This Policy sets out a supportive framework for delivering low and zero carbon energy infrastructure to demonstrate the Council's commitment to supporting the delivery of energy security and climate change initiatives. The Council is committed to ensuring that all new development maximises energy efficiency in its design and materials used, in line with the NPPF.

7.26 It is acknowledged that buildings, which are energy efficient and hence cheaper to run, have enhanced market appeal. The layout, location and design of a development can have a fundamental impact on energy efficiency. Higher density developments and south facing aspects can both help to produce milder urban microclimates as well as maximising natural light. Design should aim to maximise solar gain (where appropriate) as well as natural ventilation, utilising appropriate materials, micro-renewables and increasing opportunities to recycle heat (through air/ground source heat



pumps) and rainwater. Energy efficient housing also has health benefits through providing warmer housing in winter months. Development should also consider the use of micro-renewables in reducing carbon emissions from both domestic and commercial buildings.

7.27 Applicants should be able to demonstrate how they have attempted to minimise energy use and heat loss through careful and imaginative design, location and construction techniques. The Council has produced a SPD on Energy Efficiency (March 2011) which provides further detailed guidance on energy conservation for developers in the consideration of development proposals.

7.28 The NPPF recognises the important role of planning in supporting a move to a low carbon future. Building Regulations set the minimum standards for the design and construction of new buildings (and extensions) with energy

efficiency standards dealt with under Part L. Progress towards 'zero carbon' will be made through progressive tightening of Building Regulations. Changes to Building Regulations and the move to zero-carbon buildings will increase energy efficiency and encourage greater use of decentralised and renewable energy. Development proposals will be assessed against the relevant Building Regulations prevailing at the time. The Council will support proposals which seek to build to a higher energy level than is currently required by Building Regulations through the aforementioned methods in order to further reduce carbon emissions.

Policy CC 4 - Flood Risk and Development

The Council will seek to ensure that new development does not result in unacceptable flood risk or drainage problems.

Most new development should be located in Flood Zone 1 and development within Flood Zones 2, 3a and 3b (with the exception of water compatible uses and key infrastructure (as defined in the PPG)) will only be acceptable when they are compliant with the NPPF and when the sequential test and exception test where applicable have been satisfied.

Development should:

1. be supported by a Flood Risk

Assessment for all proposals of 1 hectare or greater in Flood Zone 1 or in an area within Flood Zone 1 which has surface water concerns or is listed as an area of concern in the Lead Local Flood Authority local flood risk management strategy; all proposals for new development (including minor development and changes of use)

in Flood Zones 2 and 3; and where proposed development or a change of use to a more vulnerable class may be subject to other sources of flooding; to establish:

a) whether a proposed development is likely to be affected by current or future flooding from any source, taking into account the increased risk associated with climate change;

b) whether it will increase flood risk elsewhere or interfere with flood flows;

c) that no other lower risk alternative site exists;

d) whether appropriate mitigation measures are proposed to deal with potential risks and effects;

e) how access and egress can reasonably be maintained at times of flood risk;

f) that adequate floodplain storage capacity can be provided and that

the capacity of the water supply, drainage and sewerage networks have been considered in liaison with the relevant statutory bodies for water and wastewater, to establish the impact of development on infrastructure; and

g) that where flood defences exist the residual risk of flooding that remains behind defences has been considered. This should include reference to overtopping of defences in extreme events and possible breach analysis evidence.

2. take account of the Council's Strategic Flood Risk Assessment (or the most up to date flood risk information available) along with any evidence from the Lead Local Flood Authority (Cumbria County Council) and the Environment Agency.

Where mitigation is required to make any identified impacts acceptable these will, where necessary, be secured through condition or planning obligations.



Justification

7.29 The Council recognises the risk that flooding poses for parts of the District, including the potential for flood events to occur more frequently as a result of climate change. The most significant flood event in recent years occurred in January 2005, when flooding affected approximately 2,700 residential properties across the catchment of the River Eden, with Carlisle City being badly affected. As well as high flood risk in the urban area, there is also significant risk of flooding in the rural area. It is therefore important that planning policies provide a framework to ensure that flood risk to people, including their health and property is not increased as a result of development. This Policy aims to steer new development away from flood risk areas where possible, in line with the NPPF and associated PPG. Where development is considered to be acceptable in these areas, opportunities to reduce the causes and impacts of flooding will be taken.

7.30 The primary source of flood risk in Carlisle District is fluvial flooding (where flooding occurs in the floodplains of rivers when the capacity of rivers is exceeded as a result of rainfall or snow and ice melts within catchment areas further upstream). Carlisle City is vulnerable from the River Eden, River Petteril and the River Caldew, both independently and, in wider flood events concurrently. Carlisle is also at risk of flooding from a number of main watercourses, namely Dow Beck, Gosling Sike, Parham Beck and Wire Mire Beck. The main urban areas at risk of flooding are: Denton Holme, Willowholme, Carlisle City Centre, Etterby Terrace, Rickerby, Warwick Road and Harraby Green. There are also parts of the rural area that are at risk, for example River Roe at Stockdalewath.

7.31 Within the District the floodplain areas of the Rivers Eden, Caldew, Esk, Lyne, Irthing and Petteril, and their tributaries, have remained largely undeveloped. Therefore future development will continue to be directed away from floodplains and wider flood risk areas. Further information on the risk of flooding is available on the Environment Agency's website and is regularly updated. Flood risk at any specific location may be influenced by local factors such as existing formal or informal flood defences and the capacity of existing drainage systems or road/rail culverts. Flood defence works have been completed within the City along the Rivers Eden, Caldew and Petteril and in the rural area along the River Eden at Crosby-on-Eden. Elsewhere there are maintained flood embankments at Low Crosby and some privately owned flood embankments at Warwick Bridge.

7.32 Extensive areas of the District (both urban and rural) are within Flood Zone 3 (High Probability of Risk or Functional Floodplain). The safeguarding of the floodplains is all the more important because of concerns about climate change which may, in all probability, result in an increased frequency of severe weather events, increased winter rainfall and sea level rise which could affect the coastline and Solway Firth estuary and main rivers.

7.33 New developments usually result in an increase in impermeable surfaces, including roofs and paving where they replace existing permeable surfaces. These changes can reduce percolation and increase volumes and rates of surface water run-off while decreasing the response time with the potential to either create or exacerbate flooding problems elsewhere. Developments should be sustainable and use building methods that promote the use of permeable surfacing. However, in order

to provide solutions to the potential negative effects of new development, a site-specific flood risk assessment (FRA) will be required. The FRA should follow the guidance in the PPG and the Environment Agency and Lead Local Flood Authority Standing Advice. Proposals for development in all areas should always seek to include permeable surfaces in order to reduce the potential impact of surface water run-off. Additionally, the natural environment and trees in particular can play a huge part in helping to absorb surface water run-off. The creation of hedges, tree belts, landscaped and wooded areas helps soak up rainfall and slow down water run-off.

7.34 The outcome of a FRA may identify that mitigation will be required. The City Council will encourage the use of Sustainable Drainage Systems (SUDS) as a means of reducing the overall flood risk, controlling pollution from urban run-off and, where possible,

creating new wildlife habitats and amenity space.

7.35 In certain circumstances it is necessary for a Sequential Test to be undertaken in order to steer new development to areas with the lowest probability of flooding. Here, development should not be allocated or permitted where there are reasonably available sites that are appropriate for the proposed development in areas with a lower probability of flooding. Where the Sequential Test has been undertaken but no suitable sites have been found in zones of lower probability of flooding, and there is an exceptional need for the development, the Exception Test should be applied as outlined within the NPPF. Allocated sites within the Local Plan have been sequentially tested and therefore a separate Sequential Test will not be required.



7.36 A Strategic Flood Risk Assessment (SFRA) has been produced for the whole District with a Stage 2 SFRA carried out for those parts of the City Centre that benefit from flood defences in order to provide some indicative breach modelling of the flood defences. The City Council will discourage more vulnerable development proposals in areas of close proximity to flood defences, where the risks would be highest during a breach or overtopping flood event. The SFRA should be used during the preparation of FRAs in order to assess the risk of flooding to a site from all sources. There are restrictions on development in close proximity to existing flood defences under the Environment Agency's Flood Defence Byelaws. There is a requirement to obtain consent from the Environment Agency for development within eight metres of the foot of any artificial river embankment serving as a flood protection barrier or, if there is no

embankment, within eight metres of the top of the bank or wall which confines the river. Additionally, when development takes place on land adjoining a main river or ordinary watercourse it has become common practice for planning authorities to require the developer to leave a strip of land, at least 5-8m wide, free from development along one or both sides of a watercourse, in order to provide access for future maintenance and space for the watercourse in flood. The Environment Agency is responsible for providing Flood Defence Consent for works in or near main rivers. Similarly, Cumbria County Council as Lead Local Flood Authority (LLFA) is responsible for providing Ordinary Watercourse Flood Defence Consent for works in or near ordinary designated watercourses.

7.37 With regards to coastal areas, the Marine Management Organisation is responsible for issuing marine licenses under the Marine and Coastal Access Act

2009. A marine licence may be required for activities involving a deposit or removal of a substance or object below the mean high water springs mark or in any tidal river to the extent of the tidal influence. Any works may also require consideration under The Marine Works (Environmental Impact Assessment) Regulations 2007 (as amended), therefore early consultation with the Marine Management Organisation is advised.

7.38 When considering potential flood risk associated with development, the Environment Agency's flood maps should be consulted to ensure that the most current information has been taken into account.

Policy CC 5 - Surface Water Management and Sustainable Drainage Systems

Development proposals should prioritise the use of sustainable drainage systems. Surface water should be managed at the source, not transferred; and discharged in the following order of priority:

1. into the ground (infiltration at source);
2. attenuated discharge to a surface water body;
3. attenuated discharge to surface water sewer, highway drain or another drainage system; and as last resort
4. attenuated discharge to a combined sewer.

The approach to surface water drainage should be based on evidence of an assessment of site conditions and any surface water discharge solution should reflect the non-statutory technical standards for sustainable drainage (March 2015) or any subsequent replacement national standards. Measures intended to assist with surface water management should be made clear as part of any submission.

Where there is no alternative option but to discharge surface water to a combined sewer, applicants will need to demonstrate why there is no alternative and submit clear evidence that the discharge of surface water will be limited to an attenuated rate, including an allowance for climate change, agreed with the appropriate bodies.

Where SUDS are incorporated, a drainage strategy should be submitted detailing:

- a) the type of SUDS and/or measures proposed;
- b) hydraulic design details/calculations;
- c) pollution prevention and water quality treatment measures together with details of pollutant removal capacity as set out in the CIRIA SUDS Manual C697 or equivalent and updated local or national design guidance; and
- d) the proposed maintenance and management regime.

Drainage requirements including detailed maintenance and management arrangements for the lifetime of the development will be secured by way of planning conditions and/or planning obligations.



Justification

7.39 Surface water management is a key principle of sustainable development. SUDS aim to reduce flooding by using devices or a series of complementary devices to control surface water run-off as near to its source as possible. The Flood and Water Management Act 2010 defines a SUDS as: ‘a structure for dealing with rainwater that is not a sewer or watercourse’. Development increases impermeable surfaces which increase the risk of downstream flooding. Underground piped systems have focussed on the rapid removal of surface water from sites to the receiving watercourse or sewer with little consideration to the downstream environment. SUDS seek to replicate natural drainage flow patterns with retention of peak runoff and additional flow volumes on site. This ensures that the risk of flooding is not increased. The natural processes which happen in many SUDS techniques trap and

passively treat many pollutants and help to prevent the settlement of contaminants such as dust, oil, litter and organic matter which otherwise tend to flow rapidly into the sewer system, by mimicking natural features that slow down the rate that water drains away thereby reducing the amount of surface run-off entering into sewers.

7.40 SUDS can also help to reduce the need for investment in flood management and protection measures by mitigating any additional flood risk that new development might generate. The Council’s SFRA advocates that SUDS should be considered and given priority for every new development site, in line with the NPPF and associated PPG. It provides advice relating to the use of SUDS and has identified the permeability of the soil within Carlisle is mainly low with some small areas

of medium and high permeability soils. This will have an effect on the appropriateness of SUDS techniques employed.

7.41 The use of SUDS should be considered at the earliest possible stage in the preparation of a design solution, in conjunction with a landscaping scheme. Key considerations at this stage should be:

- layout;
- density;
- site access;
- topography;
- ground conditions; and
- discharge destinations.

7.42 Examples of SUDS techniques include porous surfaces, filter drains and strips, trenches, ponds, wetland basins, soakaways, green roofs and swales or wide, shallow depressions. SUDS solutions will be appropriate on most types of development where the area or impermeable surface is to be increased, particularly in areas of the District where culvert capacity and floodplain constraint problems exist. The City Council will also support retrofitting of SUDS within existing developments to achieve integrated water management. SUDS can help to create enjoyable and high quality environments which encourage biodiversity and amenity, benefit water resources, reduce pressure on the sewer network and help to mitigate the negative impacts of climate change. They work effectively in both rural and urban areas and help support new

development without adding to the risk of flooding or pollution. They will also contribute to achieving improvements to comply with the Water Framework Directive.

7.43 It is recommended that pre-application discussions take place before submitting an application to the local planning authority. In the context of the Policy, the appropriate bodies are Cumbria County Council as LLFA, Environment Agency and United Utilities.

7.44 United Utilities will continue to work with landowners and developers to limit the extent of surface water entering the sewerage system as a result of new development to most appropriately manage the impact of growth on infrastructure. Proposals should clearly demonstrate with evidence, how they have applied the surface water drainage hierarchy outlined in this

Policy. Applicants will be required to demonstrate that surface water disposal will be controlled so that pre and post development run-off rates are at least equivalent.

7.45 A discharge to groundwater or watercourse may require the consent of the Environment Agency or Cumbria County Council as LLFA. In accordance with national policy, the Council will work with the LLFA seeking their advice on all major scheme designations consisting of 9 houses or more on sites greater than 0.5ha, or locations where local flooding affects land to be developed. Early pre planning discussions with the LLFA is strongly advised with regard to the risk of flooding from any proposed development and the suitability of a more sustainable drainage approach to the disposal of surface water.

7.46 Standards for dealing with Sustainable Drainage are outlined within the non-statutory technical standards for sustainable drainage (March 2015) (or any subsequent replacement national standards). Reference should also be made to Cumbria County Council's SUDS Requirements document when published.

8 Health, Education and Community

Objective

To create a thriving, successful and healthy community for all by promoting cohesive mixed communities and ensuring that everyone can have a decent home, in a safe environment, with good access to health care, educational provision and other community facilities by sustainable modes, including walking and cycling.

Context

The policies contained within the plan aim to facilitate social interaction and create healthy, inclusive and sustainable communities by ensuring that they would not be compromised as a result of new development. For example, through the Local Plan, new development will provide opportunities to: enable walking and cycling; create formal and informal community meeting spaces; sports facilities and green spaces; provide local shops; reduce the fear of crime and support the development of education and health facilities. Health and wellbeing is therefore an underlying theme which will be considered when applications for any type of development are assessed.

The Council recognises the importance of protecting and enhancing the health and wellbeing of the District's population and the benefits that are attainable from good design and development. This is further enhanced by Carlisle's status as a World Health Organisation (WHO) Healthy City. A Healthy City is one that continually creates and improves its physical and social environments and expands the community resources that enable people to mutually support each other in performing all the functions of life and developing to their maximum potential. Since becoming a Healthy City in 2009, the Council has worked closely with partner organisations. It has gained from the Healthy City approach and network to improve the health and wellbeing of the District's residents.





Policy CM 1 - Health Care Provision

Proposals for the development of health care facilities will be supported where the scale and location of the proposal is appropriate for the catchment it is intended to serve and is or can be made accessible by walking, cycling and public transport.

Development at the Cumberland Infirmary for hospital, health care and related ancillary uses will also be supported. Non-health care related development at this location will be supported on surplus land subject to the compliance with other relevant policies within the Plan.

Justification

- 8.1** In order to contribute towards the objective of enhancing health and wellbeing, new development will be supported in line with this policy which provides a framework against which proposals will be assessed.
- 8.2** In recent years, planning approval has been granted for the development of the North Carlisle Medical Centre in the Stanwix area of the City. The new medical centre is also home to Carlisle Partnership NHS Foundation Trust and includes provision for a pharmacy. This model may be replicated across the plan period as public health services continue to be reconfigured and the existing estate rationalised. In addition to this there has been an indication that a site for a replacement medical centre will be required in Brampton over the course of the plan period. The opportunity has therefore been taken to promote the delivery of such a facility in tandem with the delivery of new housing on a site allocated for residential purposes off Carlisle Road in Brampton.
- 8.3** It is important that sites for the provision of health care facilities are accessible by public transport. Where there is not currently bus service provision existing routes may need to be amended, where it is possible to do so, to serve new developments in order to improve their accessibility. In such cases those promoting new health facilities should engage with public transport providers.
- 8.4** It is acknowledged that over the plan period there is likely to be a requirement for some redevelopment and reconfiguration at the Cumberland Infirmary. This may result in some land and/or buildings being identified as surplus to current and future health care requirements. This policy is supportive of development and

reconfiguration at the Cumberland Infirmary, particularly where this will enable the hospital to meet future health needs of the City and deliver improved facilities. Redevelopment of surplus land and/or buildings, identified through the process of an asset review, will be supported for alternative non-health care uses subject to compliance with other relevant policies within the Plan.



Policy CM 2 - Educational Needs

Proposals for the development of new educational facilities as well as for the expansion, alteration and improvement of existing educational facilities will be supported where they are well related to the catchment they will serve.

Where there is a need for new educational facilities outside of an existing site, the location should be close to the intended catchment in order to minimise travel in line with sustainable development principles.

Specifically in relation to primary and secondary school provision, Carlisle City Council will continue to work with the Education Authority to identify what new demand will be generated from development as well as helping to identify suitable new education sites should this be required.

To assist in the delivery of additional school places, where required, to meet the needs of development, contributions will be sought.

Justification

8.5 This Policy aims to respond to the need to ensure that there is sufficient choice of school places available to meet the needs of existing and new communities. There are currently 48 Primary schools within the District, 18 are located within the urban area with 30 located in the wider rural area. There are two additional schools currently planned within the urban area in response to large scale housing developments at Crindledyke and Morton. Most rural primary schools are located within villages, however there are a number located in the open countryside which serve wide, yet sparsely populated rural communities.

8.6 In relation to secondary school provision, there are currently six secondary schools within the District. Four are located within the City itself with one school located in Brampton and one in Dalston, both serving the wider rural area. In addition to this there

are also two privately run secondary schools in the District. Over the last few years, significant changes, investment and reorganisation have been made to the District's secondary schools in pursuit of greater efficiency and higher educational attainment.

8.7 Cumbria County Council, as the responsible Education Authority, has highlighted the potential need for more primary and secondary school places in different parts of the District in order to keep pace with the demand generated by new housing developments. The process of the Infrastructure Delivery Plan (IDP) will continue to ensure that the need for additional school places is identified in response to housing developments and that the necessary measures are put in place to ensure their timely delivery.

- 8.8** There are two options to overcome the issue of school capacity, either supporting the expansion of existing schools or securing the construction of an entirely new school to meet any need arising from significant levels of new development. Where housing developments or the cumulative impact of a number of housing developments in an area gives rise to the need for extensions, refurbishment and/or remodelling to provide additional capacity (including nursery capacity, as appropriate) at existing schools, or the construction of a new school, the County Council will look to the landowner/developer or a consortium of landowners/developers to fund the cost of providing the additional capacity or additional school at the appropriate time, including the cost of acquiring additional land if necessary.
- 8.9** This Policy also applies to higher and further education provision in the District.



Policy CM 3 - Sustaining Community Facilities and Services

Proposals which involve the loss of valued community facilities such as shops, public houses and other facilities of value to the local community will only be permitted where it can be demonstrated that:

1. its current use is no longer viable or there is adequate alternative provision in the locality to serve the local community;
2. all options for their continuance have been fully explored, including any scope for alternative community uses; and
3. any asset listed on a Community Asset Register has satisfied the requirements under this obligation.

- 8.10** Planning has a social role to play in supporting strong, vibrant and healthy communities, by ensuring there are accessible local services that reflect the community's needs and support its health, social and cultural wellbeing, by for example promoting the retention and development of local services and community facilities such as local shops, meeting places, sports venues, cultural buildings, public houses and places of worship and guarding against their unnecessary loss, particularly where this would reduce the community's ability to meet its day-to-day needs.
- 8.11** One of the major challenges facing communities, and which is often exacerbated in rural settlements, is their ability to retain local services and facilities which are essential for maintaining thriving and sustainable communities. This policy seeks to retain facilities and services of value to the local community through ensuring that their loss constitutes a valid material consideration in the determination of any development proposals affecting them.
- 8.12** Community facilities are important for delivering a valuable service and social focus for the local community both in rural villages and urban environments, particularly for those without access to private transport. Whilst it is often difficult to define 'locality' as this varies across the District, it is generally accepted as being where there is an identifiable local population that a service or facility serves. It is however recognised that in more sparsely populated rural areas this may be more difficult to define.

8.13 It will not always be possible to prevent the closure of community facilities and services when it is uneconomic or unsustainable for their use to continue. Proposals involving their loss will only however be permitted where the Council is satisfied that the existing use is no longer viable and, where appropriate, there is no market for the business as a going concern, or for any alternative community uses. Proof of advertising in these terms for a reasonable period of time, usually not less than six months, will be required to substantiate that this is the case. Such evidence should include for example, a record of numbers of enquiries to take over the facility/service, evidence of viability and proof that the property has been adequately marketed at an appropriate value.

8.14 It is recognised that some local facilities such as community centres, village halls and schools provide a valuable

social role for the local community in providing multi-functional meeting and recreation spaces. Where the redevelopment of such sites, either in existing use or where their last use was for such, is proposed, consideration should be given, where possible, to the incorporation or retention of valued provisions such as community meeting space within the new development.

8.15 Operating alongside this policy is the Community Right to Bid. This right was introduced through the Localism Act and gives community groups the right to prepare and bid to buy community buildings and facilities that are important to them including, for example, shops, pubs and community centres if made available for sale. The City Council maintains a Community Asset Register to hold all of these 'assets of community value'. If an owner of a listed asset wants to sell it they have to notify the local authority.

The local authority then, in turn, has to notify any interested parties. If local groups are interested in buying the asset they have six months to prepare a bid to buy it before the asset can be sold. This initiative is governed by separate regulations out with the planning process.



Policy CM 4 - Planning Out Crime

New development should make a positive contribution to creating safe and secure environments by integrating measures for security and designing out opportunities for crime.

Proposals should be designed with the following principles in mind in order to create secure environments which deter crime:

1. developments should be laid out and buildings positioned with the intention of creating active and vibrant neighbourhoods and maximising natural surveillance opportunities;
2. public and private spaces should have clearly defined boundaries, utilising appropriate physical treatments and promoting the concept of defensible space;
3. footpaths and cycleways should be designed to maximise legitimate use and consideration should be given

to the route to avoid presenting direct opportunities for concealment, unobserved access, or an excess of routes that could aid escape;

4. effective lighting should be recognised as essential to deterring criminal and anti-social activity, but care should be taken to avoid nuisance, annoyance and unnecessary spill or pollution; and
5. careful consideration should be afforded to landscaping schemes to ensure that they do not create secluded areas, impede surveillance opportunities, or position elements that could be exploited as climbing aids.

Applicants will be expected (where appropriate) to demonstrate how the above principles have been adhered to.

The deployment of CCTV (Closed Circuit Television) may be considered necessary in certain circumstances.

Justification

8.16 It is widely acknowledged that good design plays a key role in creating safe and secure environments. This policy seeks to ensure that developments create environments where crime and disorder, and the fear of crime, do not undermine quality of life or community cohesion. Developers should, at the earliest stage possible, consult the Police Crime Prevention Design Advisor for advice on measures to be incorporated for designing out crime. Advice will be given based on current crime trends or particular crime risk, in accordance with Secured by Design principles. The Council will also encourage applicants to apply to Cumbria Constabulary for the Secured by Design and/or the Park Mark Safer Parking Award(s), where appropriate.

8.17 The planning system can be instrumental in producing environments that are well managed, lively and attractive, which discourage crime

and anti social behaviour, for example through overlooking and active frontages. Developers will therefore be expected to adopt designs for new development that take fully into account the security of property and people but which are also sensitive to local circumstances. It is evident that insensitive approaches to crime prevention can result in an increased fear and perception of crime by creating environments which appear threatening and as such are avoided. Clearly therefore a careful balance needs to be struck to successfully achieve the objective.

8.18 In 2009 the City Council adopted a supplementary planning document (SPD) entitled 'Designing Out Crime'. The SPD seeks to improve the safety and security of developments and aims to strike a balance between the need to reduce crime and creating a high standard of appearance in the

design and layout of developments. This document provides advice to applicants relating to incorporating safety and security measures into developments and is used to assess and determine planning applications. A further adopted SPD 'Achieving Well Designed Housing' (April 2011) focuses on the development of/within residential areas and also emphasises that designing out crime is a key consideration at the concept stage of any development. It seeks to promote safe and secure environments and to design spaces and networks which minimise opportunities for crime or anti-social behaviour.

8.19 Additional guidance on creating successful spaces and achieving good design is detailed within Manual for Streets and Manual for Streets 2 produced by the Department for Transport or successor documents.



Policy CM 5 - Environmental and Amenity Protection

The Council will only support development which would not lead to an adverse impact on the environment or health or amenity of future or existing occupiers. Development will not be permitted where:

1. it would generate or result in exposure to, either during construction or on completion, unacceptable levels of pollution (from contaminated substances, odour, noise, dust, vibration, light and insects) which cannot be satisfactorily mitigated within the development proposal or by means of compliance with planning conditions;
2. it would cause demonstrable harm to the quality, quantity and associated ecological features of groundwater and surface waters or impact on human health;
3. it is on contaminated or unstable land which would pose an unacceptable risk

to human health or the environment, unless suitable mitigation and/or remediation is or can be carried out to ensure safe development;

4. it would be subject to unacceptable risk from existing hazardous installations; and/or
5. proposals for new hazardous installations (e.g. certain gases, liquids and explosive chemicals) pose an unacceptable risk to the health or safety of users of the site, neighbouring land and/or the environment.

Proposals may be required to submit detailed assessments in relation to any of the above criteria to the Council for approval.

Where development is permitted which may have an impact on such considerations, the Council will consider the use of conditions or planning obligations to ensure any appropriate mitigation measures are secured.

Justification

8.20 Development that poses a risk to the environment or human health will be carefully considered in conjunction with the City Council's Environmental Health team and any relevant external agencies. New development for sensitive uses (such as residential development) should be located an appropriate distance away from existing operational uses with the potential to generate unacceptable levels of noise, odour or pollutants. This will ensure that new development would not negatively prejudice either use. Unless potential risks can be removed in their entirety or successfully mitigated, development proposals which would compromise the environment or human health will be resisted.

Construction and Demolition Sites: Noise, Dust and Light Management

8.21 It is essential to have effective noise and dust emission control measures in place for every activity carried out on site. In order to successfully control demolition and construction activities, it is important to evaluate the risk from pollutants emitted from site. Applications for development proposals which, by virtue of the nature and/or scale are considered by the Council to be likely to give rise to an adverse impact during construction, demolition and/or generate construction waste, will be expected to be accompanied by a Construction Management Method Statement.

Planning and noise

8.22 Effective land use planning can help prevent or mitigate potential noise impacts. Where noise may be an issue, a noise impact assessment will

be required and will be sought at the earliest possible stage of the planning process. By avoiding the location of noise sensitive uses near to noise-producing premises, noise problems can often be prevented. Where this is not possible, noise controls will need to be incorporated into new noise-producing developments and mitigation measures may be prudent for new noise sensitive developments.

Air Quality

8.23 The Environment Act 1995 established the current framework for the National Air Quality Strategy and placed statutory duties upon local authorities in respect of Local Air Quality Management. Since 1996 Carlisle City Council has been monitoring air pollution levels and comparing the results with the national air quality objectives. For the majority of key pollutants measured across the District the concentrations have been found to

be well below the government's health based objectives. However, six Air Quality Management Areas (AQMAs) have been declared in Carlisle since 2005 as a result of NO₂ exceedances. The declaration of these AQMAs placed a duty on Carlisle City Council to draw up an Air Quality Action Plan, which details the local measures from which air quality improvements can be realistically achieved.

8.24 Developers must have regard to the air quality implications of new developments. Large new developments may require the preparation of an Air Quality Impact Assessment to accompany the planning application. Further information on when an Air Quality Assessment will be required and a guide for developers is available on the City Council's website. Developers must consider all aspects of the development including emissions to



air and the increased traffic volume that the development may generate. Planning applications should include mitigation measures to offset the negative impacts.

Artificial Light

8.25 There are three main types of light pollution: sky glow, glare and light trespass. Intrusive light can adversely impact residential amenity as well as causing road safety problems and harming wildlife. Applications involving significant external lighting such as floodlights for sports pitches or arenas must be accompanied by a robust lighting report and strategies as part of their submission for planning permission. Landscaping measures such as mounding and planting may in some situations help to protect residential amenity and reduce light spillage and glare.

Insects

8.26 Some forms of development may give rise to a greater risk of insect nuisance. Where this is suspected, applicants may need to demonstrate appropriate strategies are or will be put into effect to mitigate the risk, the implementation of which may be secured through the imposition of planning conditions.

Groundwater Quality

8.27 The Environment Agency has statutory responsibility for managing water resources and has developed a strategy for the proper management and protection of the groundwater resource ('Underground, Under Threat - The State of Groundwater in England and Wales'). This (or any successor documents) will be used as a guide to determine the suitability of developments in relation to groundwater impact. The Environment Agency has also established Source Protection Zones for public water supply and other human consumption uses.

Contaminated/Unstable Land

8.28 Within the District there are many historic and current land uses that have impacted or have the potential to impact the quality of the land and result in land contamination or land stability concerns.

8.29 It is important to identify potential contamination and ground stability problems at an early stage, since remediation of land contamination or instability can incur significant costs. It is strongly recommended that pre-application advice is sought from the Council's Environmental Health Department regarding potential contamination/stability issues.

8.30 The Coal Authority has defined high risk areas, where the legacy of past coalmining activity poses a potential risk to land stability and new development. Most planning applications for non-householder development within high risk areas will need to be accompanied by a Coal

Mining Risk Assessment, prepared by a competent person. Further information on these requirements can be found at: www.gov.uk/government/organisations/the-coal-authority

8.31 The requirement for a development to be sustainable and viable also extends to the remediation technology to be applied. For some developments, the technology required may impact on the design of the proposed development. If potential land contamination/stability issues are not identified and an assessment of the risks not undertaken this may result in refusal of permission.

8.32 The Council must be satisfied that:

- where there is information available which suggests the possibility of contamination or land instability or of unacceptable risk, these concerns have been addressed within the supporting information submitted with any application;

- any unacceptable risks identified can be adequately dealt with in order that the completed development is suitable for its intended use and no unacceptable risks remain either to human health or the wider environment; and
- any steps needed to deal with unacceptable risks are either already in place or can be secured through suitable planning conditions or obligations.

8.33 The assessment of potentially contaminated sites should be carried out through a phased process. Ongoing dialogue with the City Council at each phase is recommended to ensure that the work undertaken is sufficient and necessary. Where development is proposed on a site known to be contaminated or has the potential to be contaminated as a result of industrial activity (e.g. gasworks, petrol stations, filled ground, steelworks, railway land) a preliminary risk assessment will be required.

Hazardous Substances

8.34 Within the Plan area there are a number of notifiable hazardous substance installations, including high pressure pipelines and major hazard sites. Whilst these are subject to stringent controls under existing health and safety legislation it is considered prudent to control the kinds of development in the immediate vicinity of such installations, or where proposed new development would result in an additional safety hazard.

8.35 Applicants should have regard to Planning Advice for Developments near Hazardous Installations (PADHI) which provides the Health and Safety Executive's advice on land use planning near hazardous installations. The aim of this is to manage population growth close to such sites to mitigate the consequences of a major accident should one occur. When determining applications for development around major hazards the Council will consult with the Health and Safety Executive.

Policy CM 6 - Cemetery and Burial Grounds Provision

Proposals for the development of new cemetery or burial grounds or extensions to existing sites will be assessed against the following criteria:

1. the site is in an appropriate location, away from flood risk and with suitable ground conditions;
2. the use of the site and its operation is acceptable in terms of impact on adjoining uses;
3. the design approach, including the layout and any proposed landscaping act to minimise any adverse impacts on the landscape and/or townscape; and
4. there is a clear rationale for the size of the site proposed, including all necessary ancillary elements.

Justification

8.36 This policy will enable the delivery of cemetery grounds/burial grounds or the extension of existing facilities across the District to meet identified future needs. A stand alone policy is considered necessary given the specific nature of this land use. The policy sets out a criteria based approach and highlights the key issues that will be required to be satisfied.

9 Historic Environment

Objective

To conserve, enhance and promote Carlisle's heritage and important historic landscapes whilst ensuring that development proposals respect and enhance Carlisle's historic assets.

Context

Carlisle possesses a rich historic environment comprising of many assets which range from international through to local significance. These assets are recognised as playing a key role in reinforcing the District's distinctive identity and sense of place, as well as underpinning a strong tourism offer, opportunities for education and the wider economy through job creation and environmental quality. The policies within this chapter build on the strategic direction at the outset of the Plan to promote and protect this finite heritage resource.





Policy HE 1 - Hadrian's Wall World Heritage Site

There is a presumption in favour of preserving the fabric, integrity and authenticity of archaeological sites that form part of the Outstanding Universal Value of Hadrian's Wall World Heritage Site.

New development will not normally be permitted on currently open land on the line of the wall.

New development within the Hadrian's Wall World Heritage Site and its buffer zone which enhances or better reveals its significance, or which accords with the approved Management Plan will be supported.

Proposed development in the buffer zone should be assessed for its impact on the site's Outstanding Universal Value and particularly on key views both into and out of it. Development that would result in substantial harm will be refused.

Proposed development outside the boundaries of the buffer zone will, where appropriate, be carefully assessed for its effect on the site's Outstanding Universal Value, and any that would result in substantial harm will be refused.

Where development proposals would result in less than substantial harm to the site's Outstanding Universal Value, this harm will need to be assessed against the public benefit by way of reference to the above objectives.

Justification

- 9.1** A World Heritage Site (WHS) is a designated heritage asset of the highest significance. Accordingly such sites are afforded the strongest degree of protection through the planning system. The overriding objective of the planning system in this regard is to ensure that the Outstanding Universal Value of such sites is in no way undermined by development.
- 9.2** Hadrian's Wall was designated a WHS by the United Nations Educational, Scientific and Cultural Organisation (UNESCO) in 1987 in recognition that it comprises the most complex and best preserved of the frontiers of the Roman Empire. It also forms part of a wider WHS designation known as the 'Frontiers of the Roman Empire'.
- 9.3** The wall is an internationally known icon of the north of England and a unique part of the District's identity. It is valued by those who live and work in the area as part of their geographic and social identity, and visitors to the area. It has significant historical and archaeological value as well as being important from recreation, social and economic perspectives. The associated Hadrian's Wall Path National Trail and the Hadrian's Cycleway also provide significant access opportunities for large numbers of cyclists and walkers.
- 9.4** The extent of the WHS designation is identified on the Policies Map, as too are the extents of the site's buffer zone.

- 9.5** There is a statutory requirement to have and work to a five year rolling management plan for world heritage sites. The current plan for Hadrian's Wall covers the period 2015 - 2019 and provides an essential framework for the management of the site to ensure its preservation for present and future generations.
- 9.6** The buffer zone for Hadrian's Wall World Heritage Site was established in the 1996 Management Plan as a means of helping to protect the site's Outstanding Universal Value. Within the City this buffer highlights areas where non-scheduled archaeological remains can be given focussed protection, which reflects that those parts of Hadrian's Wall that are not scheduled are not formally included within the WHS designation. The buffer also serves to protect the visual setting of the site.
- 9.7** It must equally be recognised that in certain circumstances proposed development out with of the buffer zone may potentially impact on the WHS and its setting. In these circumstances any potential impacts will need to be understood and will weigh heavily in determining such proposals.
- 9.8** Development proposals (where appropriate) should be accompanied by an archaeological assessment and/or evaluation of the site to demonstrate the impact on the

Outstanding Universal Value of the Wall and its setting. A formal Environmental Impact Assessment (EIA) will be required for significant developments affecting Hadrian's Wall WHS and its buffer zone.



Policy HE 2 - Scheduled Ancient Monuments and Non-Designated Archaeological Assets

Development will not be permitted where it would cause substantial harm to the significance of a scheduled monument, or other non-designated site or assets of archaeological interest, or their setting.

Proposals that affect non designated assets will be judged on the significance of the assets and the scale of likely harm to establish whether the development is acceptable in principle. The preferred approach will be to seek to avoid damage to such remains through their preservation in-situ. When in-situ preservation is not justified, the developer will be required to make adequate provision for excavation and recording and analysis of assets. Where possible and appropriate opportunities should also be taken to promote and interpret assets.

Where there is knowledge that there are archaeological remains, or where there are reasonable grounds for the potential of unknown assets of archaeological interest to be, proposals should be accompanied by an assessment of the significance of the asset and how it will be affected by the proposed development including where their significance, extent and state of preservation is not clear. The level of information required will be proportionate to the asset's significance and to the scale of impact of the proposal, and may require, where necessary, archaeological desk-based assessment and field evaluation.

Justification

- 9.9** Scheduled and non-designated archaeological assets are valuable as a resource for research, education, leisure, tourism, and for their influence on perceptions of identity and sense of place. They are also a finite, irreplaceable and fragile resource and are vulnerable to a wide range of human activities and natural processes.
- 9.10** The Ancient Monuments and Archaeological Areas Act 1979 makes provision for the designation of scheduled monuments. Once included in the schedule, a monument (together with land in or on which it is situated, plus any land essential for its support and preservation) has legal protection.
- 9.11** It is important to acknowledge that where a monument is not designated as a scheduled monument, that this does not necessarily imply that it is not important. As such proposals affecting important but non-scheduled monuments will also be subject to the

provisions of this Policy, as too will those affecting sites within the District which are known to be of, or likely to be of, archaeological interest but are not scheduled. This approach is entirely in keeping with national policy.

9.12 The overriding objective of the Policy is to ensure that both designated and non-designated assets are preserved in perpetuity. Where in-situ preservation is not deemed to be appropriate, adequate provision for excavation and recording and analysis will be expected. This information will need to be made publicly accessible in the County's Historic Environment Record and published appropriately if the results merit this. Where possible and appropriate opportunities should also be taken to implement interpretation schemes at or close to the site.

9.13 Works affecting a scheduled monument will also require Scheduled Monument Consent (SMC) which is separate from the statutory planning process. However, the two processes may run in parallel when the granting of planning permission is required. Development affecting the setting of a scheduled monument is dealt with wholly under the planning system and does not require SMC.



Policy HE 3 - Listed Buildings

Listed buildings and their settings will be preserved and enhanced. Any harm to the significance of a listed building will only be justified where the public benefits of the proposal clearly outweighs the harm.

Applications for works to listed buildings including alterations or extensions, changes of use, or new development within the curtilage and/or its setting must have regard to:

1. the significance of the heritage asset, including its intrinsic architectural and historic interest and its contribution to the local distinctiveness and character of the District;
2. the setting of the asset and its contribution to the local scene;
3. the extent to which the proposed works would result in public benefits;
4. the present or future economic viability or function of the heritage asset; and
5. the preservation of the physical features of the building, in particular scale, proportions, character and detailing (both internally and externally) and of any windows and doorways.

Development within the locality of a listed building should preserve or enhance its character and setting, and be sympathetic in scale, character and materials.

The demolition or total loss of the significance of a listed building will only be permitted in exceptional circumstances where it can be clearly demonstrated that the tests set out in national policy can be met. Such proposals must also be accompanied by clear details of the proposed redevelopment.

Policy HE 4 - Historic Parks and Gardens

Proposals that harm the significance of a designated park and garden or its setting will not be permitted.

Proposals affecting a historic park and garden or its setting should ensure that development does not detract from the enjoyment, layout, design character or appearance of that landscape, cause harm to key views from or towards these landscapes or, where appropriate, prejudice their future restoration.

Opportunities for their conservation and enhancement will be supported.

Policy HE 5 - Historic Battlefields

Proposals affecting the Registered Historic Battlefield of the Battle of the Solway Moss will not be permitted where it adversely affects its significance including the historic, archaeological or landscape interest of the site including potential for interpretation. Any opportunities for interpretation will be supported.

Justification

- 9.14** A listed building is a building or structure that has been placed on the Statutory List of Buildings of Special Architectural or Historic Interest. Inclusion on the list reflects that the importance of these assets are of national significance. Accordingly, the City Council will give careful consideration to development proposals which affect a listed building or its setting. The overriding objective of doing so is to ensure that the character and setting of listed buildings is preserved.
- 9.15** The setting of a listed building will vary greatly and often extends well beyond the building's own curtilage to encompass a number of other properties and public space. Occasionally the setting may incorporate extensive areas of townscape and landscape. In urban areas it should be noted that the setting of listed buildings often owes its importance to the harmony produced by a particular grouping of buildings, and to the quality of spaces between them.
- 9.16** Development proposals affecting listed buildings will be required to demonstrate an understanding of their significance and show how proposals will minimise any adverse impacts on the asset and its setting. This should be set out in the form of a Heritage Statement to support any application for planning or listed building consent.



9.17 Listed buildings in keeping with other heritage assets are an irreplaceable resource which should be conserved in a manner appropriate to their significance. The destruction of historic buildings is very seldom necessary for reasons of ‘good planning’, and is more often the result of neglect, or of failure to make imaginative efforts to find new uses for such buildings or to incorporate them into new development. Accordingly permission will not be given for development proposals involving the demolition of a listed building without clear and convincing evidence that all reasonable efforts have been made to sustain existing uses or find viable new uses, in accordance with the tests set out in national policy regarding the loss of heritage assets. In addition any proposed redevelopment must be able to demonstrate that substantial public benefits would clearly outweigh the loss resulting from demolition.

9.18 The District contains several parks and gardens of visual and/or historic interest. These include the grounds of Corby Castle, which are listed in Historic England’s Register of Parks and Gardens of Special Historic Interest. Historic England also hold a Register of Historic Battlefields of Special Historic Interest which includes an area of land within the District, close to the settlement of Longtown, identified as being the site of the Battle of the Solway Moss. The significance of these assets will be protected and unless development proposals affecting them and their settings are consistent with the preservation or enhancement of their character, historical significance and appearance they will not be permitted.

Policy HE 6 - Locally Important Heritage Assets

Throughout Carlisle District there are a number of buildings and structures of historic and architectural significance that, whilst not statutorily protected, help create the locally distinctive character of the area. The Council recognises the positive contribution these structures make to streetscape and/or landscape and will therefore designate such assets through the Local List to strengthen the presumption in favour of their retention when considering development proposals.

Development which would remove, harm or undermine the significance of a locally listed asset, or its contribution to the character of the area, will only be permitted where robust evidence can demonstrate that the public benefits of the development would clearly outweigh the harm.

A number of buildings on the Local List have also been included on the basis that together, and sometimes alongside statutory listed heritage assets, they make a particularly strong and positive contribution to the 'townscape' character of an area. These 'key townscape frontages' are identified on the Policies Map. Development proposals which would erode the significance of these frontages will be resisted.

Only in exceptional circumstances will the loss of a locally listed asset be permitted. Where this is the case the following may be required:

1. an appropriate level of survey and recording which may also include archaeological excavation;
2. provision of replacement buildings of comparable quality and design; and
3. the salvage and reuse within the replacement development of special features.



Justification

9.19 Across the District there can be pressure for redevelopment potentially resulting in the loss of unlisted structures that whilst not of national importance (and therefore not eligible for inclusion on the statutory register of listed buildings) may be of local heritage or townscape significance. This reflects that many of these structures make an important contribution to the streetscape and/or landscape of a particular area, or that they are of local historic or architectural interest.

9.20 The Council is committed to maintaining a list of such assets which is to be known as the list of locally important heritage assets or the 'Local List'. The list will recognise those structures which play an essential role in protecting and reinforcing a sense of local character, distinctiveness and identity, or which have significant local historic connections. The Local

List will continue to be added to and monitored against assessment criteria guided by Historic England's Good Practice Guide for Local Listings, to ensure a consistent approach is applied in the identification and management of Carlisle's local heritage assets of significance. The most up to date list will be published on the Council's website.

9.21 A number of locally listed heritage assets have been listed on the basis of their collective value as part of a 'key townscape frontage'. These frontages are identified on the Policies Map.

9.22 There will be a presumption against development proposals which would result in substantial harm or the loss of any assets included on the Local List, or which erode the significance of key townscape frontages.

Policy HE 7 - Conservation Areas

Any new development and/or alterations to buildings in conservation areas should preserve or enhance the special character and appearance of the conservation area and its setting.

Specifically proposals should:

1. seek to harmonise with their surroundings and be sympathetic to the setting, scale, density and physical characteristics of the conservation area;
2. preserve or enhance features which contribute positively to the area's character or appearance, in particular the design, massing and height of the building should closely relate to adjacent buildings and should not have an unacceptable impact on the townscape or landscape;
3. not have an unacceptable impact on the historic street patterns/ boundaries, roofscape, skyline

and setting of the conservation area, important open spaces or significant views into, out of and within the area;

4. not, other than as a last resort, result in demolition and redevelopment behind retained facades;
5. wherever practicable, draw on a local pallet of materials to reinforce the distinctiveness of an area;
6. retain individual features of interest e.g. doorways, windows, shopfronts, garden walls, railings, cobbled or flagged forecourts, sandstone kerbs, trees and hedges etc. Where this is not possible or practical any replacement should match the original; and
7. not generate a significant increase in traffic movements, heavy vehicles or excessive parking demands where these would be prejudicial to the character of the conservation area.

Proposals to utilise vacant land for car parking for interim or longer term use within conservation areas, will be resisted except in exceptional circumstances.

Development which would result in harm to a public or private open space that contributes positively to the character of a conservation area will be permitted only where this harm is outweighed by the public benefits of the proposals.

There will be a presumption in favour of the retention of buildings and/or features which make a positive contribution to the special character and appearance of a conservation area. Demolition or other substantial loss of these assets will only be permitted where it can be clearly demonstrated that the tests set out in national policy can be met. Such proposals must also be accompanied by clear details of the proposed redevelopment.



Justification

9.23 Carlisle City and parts of the wider District have evolved organically over centuries to become areas of special architectural and historic interest. This is reflected in many of the rural settlements and parts of the urban area being designated as conservation areas.

9.24 The Council will continue to review existing and designate new conservation areas to ensure that the areas continue to justify their conservation area status through their special architectural and historic interest thus ensuring the concept of conservation is not devalued through the inclusion of areas lacking special merit. In order to promote the enhancement of conservation areas the City Council will carry out appraisals for each area, highlighting its special characteristics as well as any existing problems and make suggestions regarding their solution.

A series of management plans for each conservation area will also, as far as resources allow, be prepared setting out the way in which development pressure and neglect will be managed to ensure the specific character of each area is maintained.

9.25 There are many opportunities for the enhancement of conservation areas and these should be taken wherever possible. For example, the repair and refurbishment of buildings, revitalising vacant and underused buildings, or the carrying out of tree planting and paving works and other public realm improvements. Development proposals in conservation areas should be of high design quality and should be developed to complement and enhance their context.

9.26 Planning permission for redevelopment proposals involving the demolition of an unlisted building in a conservation area will only be given if such proposals accord with the tests set out in national policy relating to the loss of heritage assets and furthermore are in detail. This latter requirement seeks to avoid the situation of derelict gap sites appearing in conservation areas in advance of development proposals being drawn up.

10 Green Infrastructure

Objective

To protect, enhance and increase the provision of the green and blue infrastructure across the District to create and maintain multifunctional, interconnected and attractive recreational and ecological networks for the benefit of residents, businesses, visitors and the wider natural environment.

Context

Green infrastructure is a broad concept that put simply refers to the District's collective network of green spaces and environmental features. Coverage ranges from individual components such as street trees through to strategically planned parks and open spaces and even the rolling, open landscapes of the rural area.

The policies in this chapter aim to deliver the objectives of the Carlisle Green Infrastructure Strategy: The Big Green City, which recognises the fundamental role green infrastructure and the natural environment play in creating an identity for the District and their contribution to creating a successful place where people want to live and work.

The aim of the policy framework is to protect and enhance green infrastructure assets and the functions they perform, ultimately for the sake of their own natural value, but also through recognition of the many wider social and economic benefits they perform, including: the opportunities they present for positively improving the health and wellbeing of the population; for sustainable travel; for mitigating and adapting to climate change and for their amenity value. Furthermore the framework seeks to secure qualitative improvements and to connect areas of fragmentation in order to create a continuous right of way network and integrated ecological system throughout the District and beyond.





Policy GI 1 - Landscapes

All landscapes are valued for their intrinsic character and will be protected from excessive, harmful or inappropriate development, particularly those areas less able to accommodate significant change. Where the opportunity arises, measures should be taken to enhance or restore valued landscapes.

Proposals for development will be assessed against the criteria presented within the Cumbria Landscape Character Guidance and Toolkit (or successor documents) with regard to a particular Landscape Character Area's key characteristics, local distinctiveness and capacity for change. The relevant landscape features described within the toolkit should be reflected in the detailed design of individual sites.

Landscapes valued for their intrinsically dark skies, such as the area around Kershope Forest in the rural north-east of the District, will be protected from the adverse impact of artificial light pollution.

Justification

- 10.1** The District is characterised by high quality and diverse landscapes from the remote upland moors and forests in and around Bewcastle, which offer some of the most intrinsically dark skies in Europe, to the lowland river valleys and farmland around Carlisle, all of which are valued and worthy of some degree of protection and enhancement. There are also two Areas of Outstanding Natural Beauty (AONB) within the District, the Solway Coast AONB and the North Pennines AONB.
- 10.2** In 2011, Cumbria County Council, in association with the Cumbrian district planning authorities, produced a Landscape Character Guidance and Toolkit for the whole of Cumbria. This toolkit provides decision makers with a means to assess the impacts of a development on any of the different landscape character areas found across Cumbria. The core principle is that all landscapes matter, not just those that form part of national designations. Every landscape character area is important and, whilst some may be more sensitive to change than others, the planning process should seek to protect all landscapes from harmful development. It is important to note, however, that this does not mean that development which incurs changes to landscapes should be resisted; rather that new development should be appropriate to its surroundings and be suitably accommodated within the landscape.

10.3 The Policy also seeks to limit the impact of light pollution from artificial light on intrinsically dark landscapes. Northumberland National Park and Kielder Water & Forest Park have been designated a Gold Tier Dark Sky Park, one of the largest in Europe. As Carlisle District bounds these areas, it is important that planning policy preserves the dark sky status on the periphery of the park. Whilst every effort to reduce light pollution should be made across the District, particular care should be taken in the areas north of Gilsland up and around Kershope Forest and Bewcastle. Under no circumstances should lights that beam light upwards or which would allow excess light to seep into the night sky be permitted in these areas.



Policy GI 2 - Areas of Outstanding Natural Beauty

Development proposals within the North Pennines or Solway Coast AONBs must conserve and enhance the natural beauty of the areas. Natural beauty includes landform and geology, plants and animals, landscape features and the history of human settlement. Development in the AONBs will be expected to protect the special characteristics and landscape quality of the areas and ensure that:

1. the scale, siting and design of the proposal is appropriate to the landscape setting; and
2. existing landscape features are incorporated in a way which preserves or enhances the character of the area and, where appropriate, mitigates the effects of the development.

Development in both AONBs must ensure that it is in accordance with the objectives of the AONB Management Plans. Proposals within the Solway Coast AONB will be expected to have regard to the Solway Coast AONB Landscape Character Assessment.

Planning permission will only be given for major development in exceptional circumstances and where it can be demonstrated to be in the public interest. Such developments will be considered against national policy.

Justification

- 10.4** AONBs are designated under the Countryside and Rights of Way (CROW) Act (2000). They are designated in order to conserve and enhance an area's natural beauty (which includes landform and geology, plants and animals, landscape features, and the rich history of human settlement over the centuries). The CROW Act also introduces the duty of local authorities to prepare management plans for AONBs within their boundaries.
- 10.5** Whilst aiming to ensure that development conserves and enhances the natural beauty of the AONBs, account should be taken of the needs of agriculture, forestry, other rural industries and of the economic and social needs of local communities. Promoting recreation is not an objective of AONB designation. However, the demand for recreation can be met so far as this is consistent with the conservation of natural beauty and the needs of agriculture, forestry and other uses.
- 10.6** There are two AONBs in the District; The Solway Coast and the North Pennines. Both AONBs have adopted and up to date Management Plans. Proposals for development that are in line with or actively working towards delivering the objectives and outcomes of the Solway Coast and North Pennines AONB Management Plans will be considered favourably. A Landscape Character Assessment has been carried out for the Solway Coast AONB, which should be used when assessing the potential landscape impact of a scheme. The core principle of

this document is that all landscapes within the AONB are important and, whilst some may be more sensitive to change than others, the planning process should seek to protect all landscapes within the AONB from harmful development. It is important to note, however, that this does not mean that development which incurs changes to landscapes should be resisted; rather that new development should be appropriate to its surroundings and be suitably accommodated within the landscape.

10.7 Two adopted Supplementary Planning Documents (SPDs) provide detailed planning policy guidance within the North Pennines AONB (Planning Guidelines SPD and the AONB Building Design Guide). Appropriate development, in line with the aims and guidance in these documents, will be supported.

10.8 Protection of the landscape and scenic beauty of AONBs is given great weight when considering development proposals in these areas. Only in exceptional circumstances should major development be approved within an AONB and only when it can be demonstrated that the development is in the public or national interest.



Policy GI 3 - Biodiversity & Geodiversity

Biodiversity assets across the District will be protected and, where possible, enhanced. All proposals for development should protect and (where possible) enhance any priority habitats, European and nationally protected species, and priority species as defined in the England, Natural Environment and Rural Communities Act (2006). Development proposals should also maintain and (where appropriate) enhance any recognised geodiversity assets identified in the Local Geodiversity Action Plan for Cumbria which may be affected by the development.

When considering planning applications and the need to conserve and enhance biodiversity, the following principles apply:

1. permission for development will be refused if significant harm resulting from development cannot be avoided, adequately mitigated or, as a last resort, compensated for;
2. proposals where the primary objective is to conserve or enhance biodiversity will be approved;
3. the incorporation and integration of wildlife corridors and other habitats in and around development sites will be required, wherever the opportunity arises;
4. species appropriate provision will be sought on development sites to encourage an increase in biodiversity and;
5. development which would result in the loss or deterioration of irreplaceable habitats, including ancient woodland and the loss of aged or veteran trees found outside ancient woodland will be refused unless the need for, and the benefits of, the development in that location clearly outweigh the loss.

Internationally Designated Sites:

internationally designated sites identified under the Natura 2000 network (European Sites) which consist of Special Areas of Conservation (SAC), Special Protection Areas (SPA) and Ramsar Sites will be afforded the highest levels of protection, as they are of exceptional importance in respect of rare, endangered or vulnerable natural habitats and species.

Development which is likely to have a significant effect on the integrity of such sites, and is not directly connected with or necessary to the management of the site will be resisted unless an overriding public interest can be demonstrated and no alternative solutions are available and necessary compensatory measures are taken to ensure that the overall coherence of Natura 2000 is protected. Proposals which may have an impact upon a Natura 2000 site must be accompanied by a Habitats Regulation Assessment (HRA).

Where the HRA identifies the need for an Appropriate Assessment, the presumption in favour of sustainable development will not apply.

Nationally Designated Sites: any proposal which is likely to have an adverse effect on the special interest features of a Site Of Special Scientific Interest (SSSI) will only be permitted where the benefits of the development clearly outweigh both the impacts that the development is likely to have on the special interest features of the site, and any broader impacts on the national network of SSSIs.

Locally Designated Sites: local wildlife designations such as County Wildlife Sites, Local Nature Reserves and Ancient Woodlands, as well as Regionally Important Geological/Geomorphological Sites (RIGGS) and other, locally important and irreplaceable habitats including lowland raised mires, lowland valley mires and ancient meadow sites will be protected

from development which would result in the loss or deterioration of the site, unless the need for, and benefits of, the development in that location clearly outweigh the loss.

Species and habitats surveys should be provided where the potential to impact upon bio or geodiversity exists. Species and habitats surveys must be carried out at an appropriate time of year by a qualified ecologist.

Mitigation: Where the need for mitigation or compensatory measures has been identified this will be secured, through appropriate habitat creation, restoration or enhancement on site or elsewhere, via planning conditions, agreements or obligations.



Justification

10.9 The Plan aims to promote the preservation, restoration and re-creation of priority habitats, ecological networks and the recovery of priority species populations. The protection of geological conservation interests will also be considered in response to new development proposals. It is the duty of both the local planning authority and the potential developer/landowner alike to ensure every effort is taken to protect and enhance biodiversity as part of new development.

10.10 This Policy sets out a clear hierarchy for the protection of important wildlife and nature conservation designations, which have also been identified on the Policies Map. It should be recognised that many of these designations do not stop at the District's boundary. Biodiversity should be planned for at a landscape-scale, across local authority boundaries, through cross-working initiatives with neighbouring authorities and other key stakeholders.

10.11 Any development likely to have a significant adverse effect on sites protected under the Birds and Habitats Directives would not be sustainable under the terms of the presumption in favour of sustainable development. If development is proposed on an internationally protected site, consent may only be granted if no suitable, less harmful alternative sites or solutions are available and an over-riding need, as defined in Regulation 62 (2) of the 2010 Habitats Regulations (as amended), can be demonstrated.

10.12 The Cumbria Biodiversity Data Centre has drawn up a list of key species and habitats for the county, detailing how they should be protected, preserved and enhanced.

Key and endangered species present within Carlisle include:

- bats (all species);
- red squirrel;
- water vole;
- hen harrier;
- reptiles (all native species);
- otter;
- barn owl;
- pink-footed geese;
- barnacle geese;
- whooper swan;
- song thrush; and
- great crested newt.

10.13 It is a criminal offence to harm or disturb protected species, including the destruction of nests, roosts and dens. As such, the protection of these species should be given a high priority within planning policy. Further to this, principal species as listed in Section 41 of the England NERC Act (2006) will also be strictly protected.

10.14 The extent of important habitats across the District has been mapped by the Cumbria Biodiversity Data Centre (CBDC) team based at Tullie House Museum. Key habitat is important to protecting and enhancing biodiversity, and can be important to animal species beyond the key protected species listed above. Its loss should be prevented. Where resources allow the Council may, in consultation with Natural England, the CBDC and other relevant stakeholders, identify sites of significant biodiversity value or for the restoration and/or creation of new habitat to assist in revitalising key species within the District. Such sites will be protected from inappropriate development. Applicants are encouraged to access data from the CBDC to inform their planning application and/or any ecological surveys they are required to produce.

10.15 There are also two Local Nature Partnerships (LNPs) currently operating within the plan area that have been established to provide local support and expertise on natural environment issues. The Council will continue to engage with both the Cumbria and the Northern Upland Chain LNPs and will actively consult with them on planning applications involving biodiversity and geodiversity issues.



Policy GI 4 - Open Space

Development affecting Open Space

Within areas of Open Space, proposals that relate to and complement the existing leisure use, or would be ancillary to it (such as changing rooms for sports pitches), and are appropriate in character and scale to the surroundings, will generally be acceptable. Development that would result in a partial or total loss of, an area of Open Space to non-sport or recreation uses, or would otherwise detract from the role and function an open space is valued for (be it visual amenity, noise attenuation, or other community use), will not be permitted unless:

1. an up-to-date needs assessment has been completed and clearly shows a surplus of open spaces within a given locality;
2. it can be demonstrated that alternative provision of the same or greater size, quality and accessibility will be provided nearby;
3. development of a small part of the area of open space would enable investment to improve the quality of the rest of the site;
4. there is a strong and justifiable social or economic need for development and the open space is otherwise of low quality and has little community value; or

5. statutory obligations have been fulfilled if it is proposed to dispose of statutory open space (such as statutory allotment land).

Open Space within new development

New housing developments of more than 20 dwellings will be required to include informal space for play and general recreational or amenity use on site according to the size of the proposal. The developer will be required to ensure that appropriate measures are put in place for the future management and maintenance of such spaces. On smaller housing sites, where on site provision is not appropriate the developer may be required to make commuted payments towards the upgrading of open space provision in the locality, especially if a deficit has been identified.

All new dwellings should have safe and convenient access to high quality open space, capable of meeting a range of recreational needs. Where deficits are identified, new development will be expected to contribute towards the upgrading of an existing open space to improve its accessibility or the creation of a new one within the immediate locality.

Standards for open space provision will be informed by an assessment of need and demand for the various types of open space, ensuring there is an adequate supply of accessible

and high quality spaces across the District. The Council's Playing Pitch Strategy (2013) (or successor documents) will be used to inform decisions for proposals involving or impacting upon sports pitches.

Justification

10.16 In line with national policy, existing open space, sports and recreational buildings and land, including playing fields, should not be built on unless:

- an assessment has been undertaken which has clearly shown the open space, buildings or land to be surplus to requirements; or
- the loss resulting from the proposed development would be replaced by equivalent or better provision in terms of quantity and quality in a suitable location; or
- the development is for alternative sports and recreational provision, the needs for which clearly outweigh the loss.

10.17 The National Planning Policy Framework (NPPF) highlights the importance of having an open space needs assessment as part of the evidence base for the Local Plan. A needs assessment is vital in identifying both deficits and surpluses of particular open space types across the District.

Data regarding the need and demand for sports pitches and grounds is set out in the Playing Pitch Strategy (May 2013). Further work will be carried out to assess the need and demand for other types of open space. Such an assessment will identify areas of both surpluses and deficits in open space provision, and will also attempt to anticipate how demands for new areas of recreational land will grow over the course of the plan period. In advance of this work, applicants can conduct a needs assessment to support any application. Such assessment must be conducted using an appropriate methodology that has been agreed by the Council.

10.18 Open space includes:

- parks;
- gardens;
- areas of trees and woodland;
- natural and semi-natural areas;
- amenity green space;



- playing fields, including artificial grass pitches;
- play areas;
- outdoor provision for teenagers and young people;
- allotments; and
- cemeteries and churchyards.

10.19 An audit of open space across the district was completed in 2005, though this now needs updating it can still be considered indicative of provision.

10.20 In some cases, where local deficits in open space provision exist, contributions may be sought from new development. However, the establishment of a new area of open space may not always be appropriate within a development site or land nearby may not be available to be used as open space. In these cases a developer may be asked to contribute to upgrading existing local space to improve either its

quality or accessibility. This could involve planting, path laying, new play equipment, new foot/cycle paths connecting the space to the proposed development, or other improvements recommended by the Council. Contributions to open space (be they either the creation of a new site or the upgrading of an existing) should be made in consultation with the Council's Green Spaces team to ensure any work is in line with their strategies and plans.

10.21 New housing development will be expected to set aside informal space for play and general recreation, depending on the size of the proposal. These sites will be designated as Open Space, and may be expected to provide appropriate equipment, or less formal opportunities for natural play and space for games. Such areas must be designed to avoid conflict with residents through issues

with noise, but must also remain overlooked to ensure the safety of children using the site and discourage anti social behaviour.

10.22 In the urban area there is currently in the region of 3.6 hectares of land per 1,000 population of informal and formal grassed, wooded or landscaped land and small amenity areas of open space, and 1.86 hectares of playing pitches per 1,000 population. The Council will ensure that any new development does not lead to a reduction in these standards.

Policy GI 5 - Public Rights of Way

New development will be expected to ensure that all public footpaths, bridleways, cycleways and other rights of way are retained. Development proposals that would affect existing rights of way will not be permitted unless an alternative route is available, or can be made available, which is safe, attractive, is well integrated with the existing network and is not significantly longer than the original route.

Where opportunities arise, local improvements and extensions to the rights of way network may be sought as part of development proposals.

Justification

10.23 Carlisle District has an extensive system of public footpaths, cycleways and bridleways which form an integral component of the District's Green Infrastructure (GI). These rights of way are a valuable resource fulfilling essential leisure, wildlife and transport functions, and as such will be protected and where possible enhanced.

10.24 Development proposals likely to impact upon a right of way should aim to maintain existing routes unchanged. Only if this can be demonstrated to be impossible or impractical should the rerouting of the right of way be considered. When an alternative route is proposed as part of an application for new development, the application will only be approved once it is clear that the route has been (or will be) established, and that the route is safe, convenient, of similar or better quality to the original, well integrated with the

development and its setting, and not significantly longer than the original route.

10.25 Development proposals may sometimes present opportunities to provide new rights of way or improve existing ones in order to bring them to a standard suitable for use by all. Agreement will be sought between the Council and the developer(s) to explore such opportunities should they arise.



Policy GI 6 - Trees and Hedgerows

Proposals for new development should provide for the protection and integration of existing trees and hedges where they contribute positively to a locality, and/or are of specific natural or historic value. Planning conditions requiring protective fencing around trees to be retained, in line with the current and most up to date British Standard: BS 5837 will be used to ensure adequate protection of valued trees during construction.

Tree Surveys: Where trees and hedges are present on a development site a survey, in accordance with the current and most up to date British Standard: BS 5837 must be carried out by a qualified arboriculturist and presented as part of the planning application.

Layouts will be required to provide adequate spacing between existing trees and buildings, taking into account the existing and future size of the trees, and their impact both above and below ground.

Proposals which would result in the unacceptable or unjustified loss of existing trees or hedges or which do not allow for the successful integration of existing trees or hedges identified within the survey will be resisted.

Ancient Woodland: Development which would result in the loss of any areas of recognised ancient woodland, or plantations on ancient woodland sites, will normally be resisted unless strong, overriding social or economic benefits or need can be demonstrated that clearly outweighs the potential harm.

Landscaping and Replanting: Any proposals for onsite landscaping schemes should seek to incorporate the planting of native tree species where practicable. Where trees are lost due to new development, the Council will require developers to replant trees of an appropriate species on site where it is practicable to do so, or to contribute

via planning conditions and/or legal agreement, to the replanting of trees in an appropriate, alternative location. The extent of replanting required will be representative of the age, number and size of trees, or length of hedgerows, originally lost.

All new development should also have regard to the current Trees and Development Supplementary Planning Document.

Justification

10.26 Trees and hedges add considerable value to our urban and rural environments, and are natural features in an ever-changing landscape. They can soften the impact of buildings and hard surfaces, contribute to the overall character of the development, help to hide unsightly views, provide shade, absorb noise and provide a screen from the wind. In addition, mature trees can give identity to an area, creating a real sense of place within communities.

10.27 Ancient woodland and veteran trees found outside of ancient woodland will be protected, in line with the NPPF, as irreplaceable habitat. Development that would result in their loss or deterioration should not be approved, unless an overriding social or economic need or benefit would outweigh the loss.

10.28 Carlisle City Council has adopted the Trees and Development SPD. This document provides guidance on how trees and hedgerows should be incorporated into development schemes in a way that can both protect and enhance both the trees themselves as well as the overall natural quality of a development.

11 Monitoring and Implementation





11.1 Monitoring is an integral part of the planning process and an important tool to help understand the wider social, environmental and economic issues affecting an area, and the key drivers of spatial change. The Local Plan needs to not only be able to respond to changing circumstances across the District over its intended duration, but to know when action needs to be taken. There also needs to be a way of measuring the effectiveness of policies and sites within the Local Plan, and that they are meeting the Plan's strategic objectives and ultimately its vision. If a policy is not contributing to these objectives, or if a site simply isn't being delivered, there needs to be a way of recognising this in order to instigate remedial actions. Depending on the scale and/or nature of the ineffectiveness actions may include:

- reviewing the circumstances and engaging with stakeholders as appropriate;
- reviewing the policy(ies) concerned and their implementation mechanisms which may lead to a formal partial review of the Plan and/or the supporting evidence base;
- in the case of take up of development land, consider interventions which may assist in overcoming barriers if identified; and/or
- identify reasonable alternative land through further Development Plan Documents and/or Neighbourhood Development Plans.

11.2 A monitoring framework has been devised for the Local Plan in order to enable the effectiveness of the policies and proposals within it to be monitored. This framework can be found at Appendix 2.

11.3 For policies with clear quantitative outputs, for example in relation to housing delivery, there are specific targets in the monitoring framework against which it will be easy to see whether delivery is on track and therefore whether the appropriate policies and site proposals are proving effective. For policies with qualitative outputs such as design, heritage or landscape impact, monitoring of their effectiveness and whether they are delivering their underlying objectives, will require analysis of the policy use, its outcomes and what the significant effects are to enable an assessment to be made of its effectiveness. Data will be gathered on assessing, for example, how often a policy is used by Development Management in decision making, and the number of appeals upheld or dismissed and the reasons for this.

11.4 The Monitoring Framework has a clear objective for each individual policy within the Local Plan and it makes clear what indicators will be used for monitoring purposes. It also identifies what circumstances may trigger a review and what remedial actions may be pursued as a consequence. The monitoring framework also identifies which Sustainability Appraisal (SA) objectives individual policies support.

11.5 The results of monitoring will be reported annually within the Council's Authority Monitoring Report (AMR), through which the need to review any policy or proposal within the Local Plan will be raised. The AMR will also be the process through which any significant effects on the SA objectives are reported.

11.6 The effectiveness of some policies and many of the site allocations within the Local Plan will ultimately depend on the timely and co-ordinated delivery of new and upgrades to

existing infrastructure. In this regard monitoring whether or not the delivery of infrastructure identified as necessary is keeping pace with development is of equal importance to understanding whether the Local Plan is on track to achieve its intended objectives and vision. This will be achieved through drawing on information within the Local Plan Infrastructure Delivery Plan (IDP), and reporting on this annually in the AMR. This reflects that the IDP is a 'living' document which will be updated as and when new information on investment in infrastructure or any pressures become known, or previously identified schemes are delivered.

11.7 Both the implementation and monitoring of the effectiveness of the Local Plan will be supported through continued co-operation with a host of other public and private sector agencies and organisations under the Duty to Cooperate. Such co-operation has helped to shape the Local Plan, in doing so ensuring that its vision is

shared, and in this regard the Council consider that they have an excellent track record of meaningfully engaging with others particularly where to do so is mutually beneficial or in the public interest. The Council's continued engagement under the Duty to Cooperate will be reported in the AMR.

12 Glossary

NOTE: This list is intended only to provide a general explanation of terms used in the Local Plan and does not constitute precise definitions in law.





A

Affordable housing - Social rented, affordable rented and intermediate housing, provided to eligible households whose needs are not met by the market. Eligibility is determined with regard to local incomes and local house prices. Affordable housing should include provisions to remain at an affordable price for future eligible households or for the subsidy to be recycled for alternative affordable housing provision.

Social rented housing is owned by local authorities and private registered providers (as defined in section 80 of the Housing and Regeneration Act 2008), for which guideline target rents are determined through the national rent regime. It may also be owned by other persons and provided under equivalent rental arrangements to the above, as agreed with the local authority or with the Homes and Communities Agency.

Affordable rented housing is let by local authorities or private registered providers of social housing to households who are eligible for social rented housing. Affordable

Rent is subject to rent controls that require a rent of no more than 80% of the local market rent (including service charges, where applicable).

Intermediate housing is homes for sale and rent provided at a cost above social rent, but below market levels subject to the criteria in the Affordable Housing definition above. These can include shared equity (shared ownership and equity loans), other low cost homes for sale and intermediate rent, but not affordable rented housing.

Homes that do not meet the above definition of affordable housing, such as “low cost market” housing, may not be considered as affordable housing for planning purposes.

Affordable Housing Economic Viability Assessment (AHEVA) - An assessment of the costs of any requirements likely to be applied to development, focussing on the implications of developers having to provide affordable housing and to ensure that planning policies would not render schemes unviable.

Air Quality Management Area (AQMA) -

Where a national air quality standard or objective is not likely to be met, the relevant Council is required to declare an Air Quality Management Area and produce an Action Plan outlining how they intend to improve the air quality within that area.

Allocations of Land - The allocation of sites for specific purposes including housing, employment, retail and open spaces.

Amenity - A positive element or elements that contribute to the overall character or enjoyment of an area. For example open land, trees, historic buildings and the inter-relationship between them, or less tangible factors such as tranquillity.

Amenity Open Space - The Local Plan identifies areas of land within settlements which make so significant a contribution to their character and to the amenity and enjoyment of nearby residents and the public at large as to warrant long term retention as open space. Such designation does not

signify that such areas are available for public access and use although this may be the case in some instances. Rather, it indicates an intention that proposals for built development which would encroach on identified areas will not normally be granted planning permission.

Amplitude Modulation - A technique used in electronic communication, most commonly for transmitting information via a radio carrier wave.

Ancient Woodland - Natural England is responsible for compiling the inventory of ancient woodlands in Cumbria. The term is applied to woodlands which have existed from at least medieval times to the present day without being cleared for uses other than timber production. The inventory includes ancient semi-natural woodland which is defined as woodland which does not originate from planting, the distribution of species generally reflecting natural variations in site and soil.

Authority's Monitoring Report (AMR) - Monitoring report recording the delivery of policies in the adopted plan.

Area of Outstanding Natural Beauty (AONB) - Relatively large areas of land designated under the National Parks and Access to the Countryside Act 1949 by the Countryside Commission. The primary objective of designation is conservation of the natural beauty of the landscape. AONBs differ from National Parks in that the promotion of recreation is not an objective of their designation, though these areas should be used to meet the demand for recreation so far as that is consistent with the conservation of natural beauty, and the needs of agriculture, forestry and other uses.

B

Backland - Land (usually landlocked) that lies to the rear of an existing property that often, but not always, fronts onto a road. Such land may be within the existing curtilage of a house, or adjacent to the curtilage.

Best and Most Versatile Agricultural Land - To assist in assessing land quality, the then Ministry of Agriculture, Fisheries and Food developed a method of classifying agricultural land by grade. There are five grades with grade 3 divided into two grades (3a and 3b). The best and most versatile agricultural land falls into grades 1, 2 and 3a. This land ranges from excellent (grade 1) to good quality (grade 3a).

Biodiversity - Refers to the variety of plants and animals and other living things in a particular area or region. It encompasses habitat diversity, species diversity and genetic diversity. Biodiversity has a value in its own right and has social and economic value for human society.

Blue Infrastructure (BI) - The network of aquatic components that lie within and between cities, towns and villages which provide multiple social, economic and environmental benefits. The physical components of blue infrastructure include waterways such as rivers, streams, marshes and lakes.



Brownfield Land - Previously-developed land which is or was occupied by a permanent structure, including the curtilage of the developed land and any associated fixed surface infrastructure.

Business Park - High quality employment sites aimed at light industrial and office developments, particularly those related to high-tech industries.

C

City Centre - The highest level of centre identified in development plans. In terms of hierarchies, they will often be a regional centre and will serve a wide catchment (as is the case in Carlisle). The centre may be very large, embracing a wide range of activities and may be distinguished by areas which may perform different main functions.

City Centre Development Framework (CCDF) - Sets out principles to guide the consideration of future development opportunities and interventions in the City Centre to 2030.

Climate Change - Term used to describe changes in weather patterns which threaten our environment and the way we live our lives both now and in the future. It is a coherent and internally consistent description of the change in climate by a certain time in the future, using a specific modelling technique and under specific assumptions about the growth of greenhouse gas and other emissions and about other factors that may influence climate in the future. Climate change is sometimes referred to as global warming because it is currently concerned with rises in global temperatures.

Community Infrastructure Levy (CIL) - A local charge on new developments. The money raised will be spent by the local authority on infrastructure. The justification for the charge is that new buildings have an impact on infrastructure need (i.e. new roads and schools), and should therefore contribute towards that provision.

Comparison Shopping - The provision of items not obtained on a frequent basis. These include clothing, footwear, household and recreational goods.

Condition (or 'planning condition') - Requirements attached to a planning permission to limit, control or direct the manner in which a development is carried out.

Convenience Shopping - The provision of everyday essential items, including food, drinks, newspapers/magazines and confectionery.

Conservation - The process of maintaining and managing change to a heritage asset in a way that sustains and where appropriate enhances its significance.

Conservation Areas - 'Areas of special architectural or historic interest the character or appearance of which it is desirable to preserve or enhance'. Such areas are designated by Local Planning Authorities under the Planning (Listed Buildings and

Conservation Areas) Act 1990. Provisions relating to conservation areas are contained in the Act. The Local Planning Authority has additional powers over the demolition of buildings and the removal of trees within such areas, and certain permitted development rights are either reduced or removed.

County Wildlife Sites - Cumbria Wildlife Trust designates some sites, which do not meet the criteria set out by Natural England for SSSI's, as Wildlife Sites. They contain examples of important habitats with uncommon species of plants and animals.

Critical Drainage Areas - Areas with drainage problems and therefore at risk from surface water flooding, that have been identified as such by the Environment Agency.

Cumbria Landscape Character Guidance and Toolkit - A document which maps and describes the character of different landscape types across the County and provides guidance to help maintain their distinctiveness.

Cumulative Effects - The state in which a series of repeated actions have an effect greater than the sum of their individual effects; noted here especially in the location of wind turbines.

D

Decentralised Energy - Local renewable energy and local low-carbon energy usually but not always on a relatively small scale encompassing a diverse range of technologies.

Density - The volume of development relative to the size of the site on which it occurs. From a housing perspective density is generally measured as the number of homes per Hectare of land.

Designated Heritage Asset - A World Heritage Site, Scheduled Monument, Listed Building, Protected Wreck Site, Registered Park and Garden, Registered Battlefield or Conservation Area designated as such under the relevant legislation.

Development Management - The process by which development proposals in the form of planning applications, are considered and decided. It is a positive and proactive approach to shaping, considering, determining and delivering development proposals. It is led by the local planning authority, working closely with those proposing developments and other stakeholders.

Duty to Cooperate - The Localism Act 2011 introduced a Duty to Cooperate, which is designed to ensure that all of the bodies involved in planning work together on issues that are of bigger than local significance.

E

Employment Land Review (ELR) - To assess the demand for and supply of land for employment.

**Environmental Impact Assessment (EIA) -**

A process by which information about the environmental effects of a proposal are collected and taken into account by the Planning Authority in forming their judgement about whether or not to grant planning consent. The Town and Country Planning (Environmental Impact Assessment etc.) Regulations 1999 as modified sets out the types of project for which an EIA is required.

European Marine Sites (EMS) - Also known as Natura 2000 sites these are Special Areas of Conservation (SACs) for habitats of European importance and Special Protection Areas (SPAs) for birds.

Equality Impact Assessment (EQIA) -

A process designed to ensure that a policy, project or scheme does not discriminate against any disadvantaged or vulnerable people.

Evidence base - A range of technical reports and studies that have been or are being prepared to support the development and implementation of policies and proposals in the Local Plan.

Examination in Public - This is the examination of a local plan document by an independent planning inspector acting on behalf of the Secretary of State.

F

Flood Flows - The natural distribution of water during a flood event.

Flood Plain - All land adjacent to a watercourse over which water flows or would flow, but for the presence of flood defences, in times of flood. The limits of the flood plain are defined by the peak water level of an appropriate return period event on the watercourse or at the coast. On rivers this will normally be the greater of the 1 in 100 year return period flood or the highest known water level. In coastal areas the 1 in 200 year return period flood or the highest known flood will be used.

Flood Risk - An expression of the combination of the flood probability or likelihood and the magnitude of the potential consequences of the flood event.

Flood Risk Assessment (FRA) -

An assessment or test of the risk of flooding from river, tidal, coastal, groundwater and/or local sources conducted to meet the requirements of national policy and practice guidance. The FRA will provide a framework for robust and sustainable flood risk management solutions within (re)developing areas.

G**General Permitted Development Order -**

The Town and Country Planning (General Permitted Development) Order 1995 (as amended) prescribes many of the procedures for the determination of planning applications and details those forms of minor development which may be undertaken without the need for an application for planning permission.

Geodiversity - The range of rocks, minerals, fossils, soils and landforms.

Greenfield - Land on which no development has previously taken place unless the previous development was for agriculture or forestry purposes or the remains of any structure or activity have since blended into the landscape.

Green Infrastructure (GI) - The network of natural environmental components and green spaces that lie within and between cities, towns and villages which provide multiple social, economic and environmental benefits. The physical components include parks, rivers, street trees, moorlands, green corridors, gardens and amenity spaces.

Gypsy and Traveller Accommodation Assessment (GTAA) - Assessment to ensure that the needs and wider demand of the Gypsy and Traveller communities for suitable accommodation can be considered and met equally and fairly alongside other sectors of the community.

H

Habitats Regulations Assessment (HRA) - Assesses the likely impacts of the possible effects of a plan's policies on the integrity of the Natura 2000 sites (including possible effects 'in combination' with other plans, projects and programmes).

Homes and Communities Agency (HCA) - The national housing and regeneration agency for England. They provide investment for new affordable housing and to improve existing social housing, as well as for regenerating land. They are also the regulator for social housing providers in England.

Health Impact Assessment (HIA) - A combination of procedures, methods and tools by which a policy, programme or project may be judged as to its potential effects on the health of a population, and the distribution of those effects within the population.

Heritage Asset - A building, monument, site, place, area or landscape identified as having a degree of significance meriting consideration in planning decisions, because of its heritage interest. Heritage asset includes designated heritage assets and assets identified by the local planning authority (including local listing).

Historic Environment - All aspects of the environment resulting from the integration between people and places through time, including all surviving physical remains of past human activity, whether visible, buried or submerged, and landscaped and planted or managed flora.

House in Multiple Occupation (HMO) - As defined in the 1985 Housing Act, one that is occupied by persons who do not form a single household.



Housing Market Area - A geographical area defined by household demand and preferences for all types of housing, reflecting the key functional linkages between places where people live and work. Some housing market areas overlap.

Housing Need and Demand Study

(HNDS) - Also referred to as a Strategic Housing Market Assessment (SHMA). The Assessment considers future housing requirements, in terms of the number of homes required to meet need and demand. It considers the mix of housing required, in both the affordable and market sectors. It also looks at the housing requirements of specific groups, including older people, Black and Minority Ethnic (BME) households, and those with support needs.

I

Infrastructure - A collective term for services such as roads, electricity, sewerage, water, education, health facilities, parks and recycling and refuse facilities.

Infrastructure Delivery Plan (IDP) -

Contains a list of all infrastructure needed to support sustainable growth, as set out in the Local Plan. Infrastructure projects are identified by location, cost and delivery timescale and funding.

K

Key Townscape Frontage Buildings -

Primarily located within conservation areas and are defined as buildings that make a contribution to the character of a particular area. Such conservation areas include the City Centre, Botchergate, Longtown, Brampton and Dalston.

L

Lead Local Flood Authority (LLFA) -

Are county councils and unitary authorities. For Carlisle, the LLFA is Cumbria County Council. Under the Flood and Water Management Act, LLFAs are required to:

- prepare and maintain a strategy for local flood risk management in their areas, coordinating views and activity with other

local bodies and communities through public consultation and scrutiny, and delivery planning;

- maintain a register of assets – these are physical features that have a significant effect on flooding in their area;
- investigate significant local flooding incidents and publish the results of such investigations;
- establish approval bodies for design, building and operation of Sustainable Urban Drainage Systems (SUDs);
- issue consents for altering, removing or replacing certain structures or features on ordinary watercourses; and
- play a lead role in emergency planning and recovery after a flood event.

Listed Building - The Secretary of State for Culture, Media and Sport, advised by Historic England, compiles a list of buildings of 'special architectural or historic interest'. Any material alteration to or demolition/part demolition of a listed building, whether external or internal will require an application for listed building consent.

Localism Act - Received Royal Assent in November 2011. In relation to Planning, the Act abolished Regional Strategies but introduced a duty for interested parties to co-operate in the preparation of development plans and introduced Neighbourhood Planning.

Local Development Scheme (LDS) - Provides information on how Carlisle City Council intends to produce its Local Plan. It sets out the planning policy documents that form the development plan for the Carlisle District area and their programme of preparation over a three year period.

Local Distinctiveness - The positive features of a place and its communities which contribute to its special character and sense of place.

Local Enterprise Partnership (LEP) - Locally owned partnerships between local authorities and businesses which play a central role in determining local economic priorities and undertaking activities to drive economic growth and the creation of local jobs. Carlisle is part of the Cumbria LEP.

Local Nature Reserves - May be established by Local Authorities under section 21 of the National Parks and Access to the Countryside Act 1949. They are habitats of local significance which can make a useful contribution both to nature conservation and to the opportunities for the public to learn more about and enjoy wildlife. Local nature reserves are predominantly ecological, but can also be established on geological sites.

Local Planning Authorities (LPAs) - The public authority whose duty it is to carry out specific planning functions for a particular area. Carlisle City Council is the LPA for the administrative area it covers.

Local Strategic Partnership (LSP) - The Carlisle Partnership is a non-statutory, non-executive partnership bringing together different agencies to support each other and work effectively together on economic, community and environmental issues that matter to local people including crime, employment, education, health and housing. Their aim is to deliver sustainable economic, social and physical regeneration, improved public services, promotion of equality and inclusion, and improvements to the quality of life for local citizens, particularly those from deprived areas and disadvantaged groups. In order to achieve this, partners are required to assess local needs, plan services, set targets and monitor delivery.



Local Transport Plan 3 (Draft) (LTP) - The Transport Act 2000 introduced a statutory requirement for local transport authorities (in Carlisle's case Cumbria County Council) to produce a Local Transport Plan (LTP) every five years and to keep it under review. It sets out the statutory framework for Local Transport Plans and policies.

M

Main Town Centre Uses - Retail development (including warehouse clubs and factory outlet centres); leisure, entertainment facilities the more intensive sport and recreation uses (including cinemas, restaurants, drive-through restaurants, bars and pubs, night-clubs, casinos, health and fitness centres, indoor bowling centres, and bingo halls); offices; and arts, culture and tourism development (including theatres, museums, galleries and concert halls, hotels and conference facilities).

Masterplan - A type of planning brief outlining the preferred usage of land and the overall approach to the layout of a development, including the coordination of necessary infrastructure, to provide detailed guidance for subsequent planning applications.

Minerals and Waste Local Plan (MWLP) - The Draft Cumbria Minerals and Waste Local Plan is for the period up until 2030. It sets out Cumbria County Council's policies for the provision for mineral working, for safeguarding mineral resources and associated mineral developments, and for waste management. It covers those parts of Cumbria that are outside of the Lake District and Yorkshire Dales National Parks.

N

National Nature Reserve - Areas of national and sometimes international importance which are owned or leased by Natural England or managed in accordance with their wishes. The essential characteristic of such areas is that they are primarily used for nature conservation.

National Planning Policy Framework (NPPF) - Sets out the Government's planning policies for England and how these are expected to be applied. It provides a framework within which local people and their accountable councils can produce their own distinctive local and neighbourhood development plans, which reflect the needs and priorities of their communities.

Natura 2000 - Created by the European Union, this is a network made up of Special Protection Areas and Special Areas of Conservation. These designations form an internationally important network of wildlife sites.

Neighbourhood Development Plans (NDP) - Introduced by the Localism Act, 'Neighbourhood Planning' aims to give people greater ownership of plans and policies that affect their local area. It enables local people to put together ideas for development (relating to land-use or spatial matters) in their area via a "Neighbourhood Development Plan". Once adopted such plans form part of the statutory development plan.

O

Open Space - All open space of public value, including not just land, but also areas of water (such as rivers, canals, lakes and reservoirs) which offer important opportunities for sport and recreation and can act as a visual amenity.

Out of Centre - A location which is not in or on the edge of a designated retail centre but not necessarily outside the urban area.

Overarching National Policy Statement for Energy (EN-1) - A National Policy Statement (NPS) which sets out national policy for energy infrastructure.

P

Permitted Development - The Town and Country Planning (General Permitted Development) Order 1995 permits certain minor alterations and extensions to be undertaken without the need to apply for planning permission from the local planning authority. Such development is known as permitted development.

Pitch (with regards to Gypsies and Travellers) - An authorised area of land which is generally home to one Gypsy and Traveller household. There is no one-size-fits-all with regards to the precise size of a pitch but as a general guide an average family pitch must be capable of accommodating an amenity building, a large trailer and touring caravan (or two trailers), drying space for clothes, a lockable shed (for bicycles, wheelchair storage etc.), parking space for two vehicles and a small garden area.

Planning Obligations - Private agreements made between local authorities and developers and can be attached to a planning permission to make acceptable development which would otherwise be unacceptable in planning terms.

Planning Practice Guidance (PPG) - Technical guidance published by the Government to support the practical implementation of the NPPF and the plan making process.

Policies Map - Identifies geographically the adopted policies and proposals of the Local Plan.

Primary Employment Areas - Designated when the predominant land use relates to employment. Also included within this designation is land that has planning permission and land allocated for employment use. Such areas are located within Carlisle, Longtown, Brampton and Dalston.

Primary Residential Areas - Housing areas within Carlisle, Longtown and Brampton. These areas are predominantly residential, and they contain a number of other uses normally acceptable in housing areas such as churches, small shops and public houses.



Primary Shopping Area - Contains all the important shopping streets and areas in the City Centre. All the major stores are included together with the streets with continuous shopping frontages and sites where shopping development is acceptable in principle. It also includes the main shopping streets in Brampton and Longtown.

Public Realm - This is the space between and within buildings that are publicly accessible, including streets, squares, forecourts, parks and open spaces.

R

Ramsar Site - Wetlands of international importance, particularly as waterfowl habitats, listed by the Secretary of State. The provisions of the Ramsar Convention require the promotion of the conservation of the wetlands.

Regionally Important Geological/ Geomorphological Sites (RIGS) - These are geological/geomorphological sites of local importance which complement the national network of geological SSSIs. The aim of designation is to maintain and enhance specific features of rock and landform, and the dynamic natural processes which create them.

Register of Battlefields - Identifies a limited number of areas of historic significance where important battles are sufficiently documented to be located on the ground. This register is compiled by Historic England.

Register of Parks and Gardens of Special Historic Interest - This is a register, produced by Historic England, which identifies parks and gardens of visual and/or historic interest.

Renewable and Low-Carbon Energy - Includes energy for heating and cooling as well as generating electricity. Renewable energy covers those energy flows that occur naturally and repeatedly in the environment; from the wind, the fall of water, the movement of the oceans, from the sun and also from biomass and deep geothermal heat. Low carbon technologies are those that can help reduce emissions (compared to conventional use of fossil fuels).

Rural Exception Sites - Small sites used for affordable housing in perpetuity where sites would not normally be used for housing. Rural exception sites seek to address the needs of the local community by accommodating households who are either current residents or who have an existing family or employment connection. Small numbers of market homes may be allowed, for example, where essential to enable the delivery of affordable units without grant funding.

Rural Masterplanning - Joint working with Parish Councils to establish the capacity for development within the rural area informed by community opinion.

S

Scheduled Ancient Monument - Nationally important monuments usually archaeological remains, that enjoy greater protection against inappropriate development through the Ancient Monuments and Archaeological Areas Act 1979.

Section 106 Agreement - Planning Agreements (or 'Planning Obligations') are made under Section 106 of the Town and Country Planning Act 1990. Agreements may be made between a local planning authority and a land owner (often a developer) or may be entered into unilaterally by such persons. Agreements are usually employed to restrict the development or use of land in ways which cannot properly or conveniently be achieved by the imposition of conditions.

Setting of a Heritage Asset - The surroundings in which a heritage asset is experienced. Its extent is not fixed and may change as the asset and its surroundings evolve. Elements of a setting may make a positive or negative contribution to the significance of an asset, may affect the ability to appreciate that significance or may be neutral.

Significance of Heritage Assets - The value of a heritage asset to this and future generations because of its heritage interest. That interest may be archaeological, architectural, artistic or historic. Significance derives not only from a heritage asset's physical presence, but also from its setting.

Site of Special Scientific Interest (SSSI) - Section 28 of the Wildlife and Countryside Act 1981 enables Natural England to designate areas of land which, by reason of their flora, fauna, or geological or physiographic features, it is in the national interest to conserve. To protect SSSIs from operations outside the scope of planning controls, Natural England specify to their

owners and occupiers the operations which they consider to be harmful to their conservation interest. Local authorities have a responsibility under the Countryside and Rights of Way (CROW) Act 2000 to take reasonable steps to further the conservation and enhancement of the features for which a SSSI has been notified.

Special Area of Conservation (SAC) - Areas established under the EU Directive on the Conservation of Natural Habitats and of Wild Fauna and Flora as contributing to the maintenance of a coherent Community wide network of habitats called Natura 2000. SAC's are selected for their contribution to the survival of species and habitats of European importance. The areas proposed as SACs are also SSSIs.

Special Protection Area (SPA) - Areas established under the EC Directive on the Conservation of Wild Birds in order to safeguard habitats of migrating birds and certain threatened species and thereby to conserve populations. All SPAs are also SSSIs.

**Statement of Community Involvement**

(SCI) - Explains to the public how they will be involved in the preparation of local planning. It sets out the standards to be met by the authority in terms of community involvement.

Strategic Environmental Assessment

(SEA) - A procedure (set out in the Environmental Assessment of Plans and Programmes Regulations 2004) which requires the formal environmental assessment of certain plans and programmes which are likely to have significant effects on the environment.

Strategic Flood Risk Assessment

(SFRA) - Informs knowledge of flooding, refines the information on the Flood Map and determines variations in flood risk from all sources of flooding across and from their area.

Strategic Housing Land Availability

Assessment (SHLAA) - A technical study to inform planning policy relating to planning for housing. It also assists in the monitoring of whether there is an adequate supply of deliverable and developable housing land.

Strategic Housing Market Assessment

(SHMA) - See 'housing needs and demand study'.

Sui Generis (Use Class) - Certain uses do not fall within any use class and are considered 'sui generis'. Such uses include: theatres, hostels providing no significant element of care, scrap yards. Petrol filling stations and shops selling and/or displaying motor vehicles. Retail warehouse clubs, nightclubs, launderettes, taxi businesses, amusement centres and casinos.

Supplementary Planning Document

(SPD) - Documents which add further detail to the policies in the Local Plan. They can be used to provide further guidance for development on specific sites, or on particular issues, such as design. Supplementary planning documents are capable of being a material consideration in planning decisions but are not part of the development plan.

Sustainability Appraisal (SA)

- A statutory assessment undertaken on Local Plans to identify and evaluate the impacts of a plan on the community (social), economy and environment.

Sustainable Development

- The Bruntland Report in 1987 brought a new approach when it proposed that an ongoing balance could be struck between economic growth and the needs of the environment through the concept of sustainable development. A definition of this concept is 'development that meets the needs of the present without compromising the ability of future generations to meet their own needs'. The NPPF identifies a presumption in favour of sustainable development.

Sustainable Urban Drainage Systems

(SUDS) - A sequence of management practices and control structures designed to drain surface water in a more sustainable way than some conventional techniques. SUDS manage surface water on site as near to source as possible by slowing down the rate of run-off and treating it naturally through such design techniques as porous pavements, infiltration trenches and basins, french drains, swales and passive treatment systems including filter strips, detention basins, retention ponds and wetlands. This approach will allow the release of good quality surface water into watercourses and the groundwater resource.

T

Tree Preservation Order (TPO) - Under Section 198 of the 1990 Act a local planning authority may, in the interests of amenity, make provisions for the preservation of individual trees or woodlands. TPOs prohibit the cutting down, topping, lopping, uprooting, wilful damage or wilful destruction of trees without the prior consent of the Authority.

U

Use Classes Order - The Town and Country Planning (Use Classes) Order 1987 (as amended) contains a number of Classes into which most uses of land or buildings fall. The change of use of land or buildings, from one class to another, normally requires planning permission. The change of use of land or buildings within a particular Class does not involve development requiring planning permission.

Use Class A1 Shops - Shops, retail warehouses, hairdressers, undertakers, travel and ticket agencies, post offices (but not sorting offices), pet shops, sandwich bars, showrooms, domestic hire shops, dry cleaners, funeral directors and internet cafes.

Use Class A2 Financial and Professional Services - Financial services such as banks and building societies, professional services (other than health and medical services) including estate and employment agencies and betting offices.

Use Class A3 Restaurants and Cafes

For the sale of food and drink for consumption on the premises - restaurants, snack bars and cafes.

Use Class A4 Drinking Establishments

Public houses, wine bars or other drinking establishments (but not night clubs).

Use Class A5 Hot Food Takeaways

For the sale of hot food for consumption off the premises.

Use Class B1 Business Use

Offices (other than those that fall within A2), research and development of products and processes, light industry appropriate in a residential area.

Use Class B2 General Industrial Use

Use for industrial process other than one falling within class B1 (excluding incineration purposes, chemical treatment or landfill or hazardous waste).

**Use Class B8 Storage or Distribution**

Use - Storage or Distribution warehouses including wholesale cash and carry. This class includes open air storage.

V

Village - A group of houses, other buildings and open spaces which can include businesses and community uses such as a village hall and village green, church or primary school. The pattern of dispersed villages in the rural area has resulted in a significant number of villages sharing one church, primary school or village hall.

W

Wildlife Corridors - Areas of habitat connecting wildlife populations.

Windfall Site - An informal term used to describe a site where planning consent (usually for housing) is granted despite that site not being allocated for development in the Local Plan.

World Heritage Sites (WHS) - The World Heritage Convention from which World Heritage Sites derive was ratified by the UK in 1984. The Convention provides for the identification, protection, conservation and presentation of cultural and natural sites of outstanding universal value. Hadrian's Wall Military Zone was designated as a World Heritage Site in 1987.

World Health Organisation (WHO) - Is the directing and coordinating authority for health within the United Nations system.

Z

Zero Carbon - That all emissions from a house or commercial property and the activities that take place within them must be net zero over the course of a year.

1 Appendix 1

Sites Allocated within Policy HO 1

The following site profiles are intended to aid identification of the sites allocated for housing development in Policy HO 1, and identify some of the associated main issues. The profiles are not intended to include an exhaustive list of every matter to be considered. All of the allocated housing sites lie within Flood Zone 1. Anyone considering submitting a planning application is encouraged to undertake early discussions with the Council's Development Management team.



Appendix 1

Urban Area:

U 1 and U 2: Land to the south east of junction 44 of the M6 - these two sites are immediately adjacent to each other at the northern edge of Carlisle and have good accessibility to the main public transport network and to the M6 via junction 44. Careful consideration needs to be given to the design of the development so that the two sites integrate, but also respect the privacy of the outdoor play spaces for the adjacent James Rennie School. Opportunities should be taken to link into the public footpath which lies adjacent to the site. In addition, noise attenuation from the M6/Kingstown Road will be required by a combination of planting and bunding. The main infrastructure issue in north Carlisle is the current lack of primary school places. Additional housing in this area has the potential to fund the development of primary school provision.

Highways advice: the Highway Authority has indicated that the sites would need significant infrastructure works to create access off A7/C1022 signalised junction.

Consideration should also be given to the development providing alternative access arrangements to the James Rennie School in order to help resolve school traffic related problems.

Biodiversity: there are no statutory or non-statutory designations within or adjacent to the site. The land is agricultural grassland, and is bordered by mature hedgerows which are likely to provide wildlife corridors and habitats for a variety of species.

Heritage assessment: the course of a Roman road is indicated along the eastern boundary of the site. An archaeological evaluation in the form of an appropriate desk based assessment (and where necessary a field evaluation) will be required at the planning application stage.

Flooding/drainage:

- some recent surface water flooding on California Road so any development here should incorporate a solution to limit surface water flows to the south of the site;

- water course on site should remain open and road crossing limited to as few as possible; and
- most obvious drainage option would be into School Sike.

Other constraints: Tree Preservation Order 207 on northern boundary of site. Public footpaths along northern (FP 109002 and 120001) and eastern (FP 132012 and 132020) boundary of site. These will need to be taken into account in the design and layout.

U 3: Site of Pennine Way Primary School, Pennine Way/Edgehill Road - the school is about to undergo redevelopment in order to accommodate an increased intake of pupils. This will involve relocating the school to an adjacent site on the south side of Edgehill Road. The redevelopment is part of a wider project including a new community hub. The redevelopment of the site provides an opportunity to diversify the housing mix in this area of Harraby.

Highways advice: assumed access would be from Pennine Way and Edgehill Road. Arnside Way/Eastern Way junction may need improvement with contribution to A69 corridor depending on total development of all proposed allocations in this part of Carlisle.

Biodiversity: no statutory or non-statutory designations within or adjacent to the site. As school playing fields the site is likely to have low biodiversity value.

Heritage assessment: no known heritage assets within or adjacent to site.

Flooding/drainage:

- significant surface water flooding issues within the site boundary – need to be managed on site;
- historic records show flooding has been a problem in the area so needs careful approach to drainage; and
- could be significant cumulative impacts from concentration of allocations in the area draining into Durranhill Beck.

U 4: Land north of Moorside Drive/Valley Drive

- a previously allocated site which has residential development on its north, western and southern boundary and integrates well with the urban form in this area. Careful consideration should be given so that the design and layout leads to a development which harmonises with the surrounding built context, but has its own sense of place.

Highways advice: the Highway Authority has indicated that the scale of development envisaged would need a link road from Edgehill Road to Moorside Drive. Extension of suburban bus services would also be required.

Biodiversity: no statutory or non-statutory designations within or adjacent to the site. Site currently used as agricultural land (arable) so likely to be species and habitat poor. No trees although hedges border the site.

Heritage assessment: Bronze Age remains have been revealed adjacent to the site and the wider landscape is rich in prehistoric

remains. An archaeological desk-based assessment and field evaluation will be required at the planning application stage.

Flooding/drainage:

- localised surface water flooding to west of site, around Moorside drive – needs to be taken into consideration;
- should connect to the watercourse as far down as possible; and
- cumulative impact on Durranhill Beck (culverted).

Other constraints: the site will require noise attenuation measures due to proximity of M6 to east.

U 5: Land between Carlton Road and Cumwhinton Road

- the southern edge of Carlisle in this location is characterised by mainly low density semis and bungalows, before the small village of Carleton, which has a range of designs and sizes of properties. Carlton also has a mix of services including a pub, restaurant, garage and offices. The development of this site

provides the opportunity to create an attractive edge to the City, whilst retaining the identity of Carleton as a village.

Highways advice: due to traffic issues associated with the standard of the existing access/lack of visibility onto London Road, an improved two way access such as the upgrading of Sewells Lonning to Local Access Road Standard will be required. The site also has poor accessibility and would require the provision of new bus stops and a developer contribution towards an increased frequency bus service.

Biodiversity: no statutory or non-statutory designations within or adjacent to site.

Grazing land but good roadside hedgerows and some hedgerows within the site.

Heritage assessment: no known heritage assets within or adjacent to site.

Flooding/drainage:

- Run-off rate should be QBAR (estimated annual greenfield runoff rate) if the site is to drain south to the Petteril; and

- United Utilities request no surface water to sewer.

U 6: Land at Garden Village, west of Wigton Road

- this site is in two ownerships, with the western section being a long narrow strip of land. It will be necessary to develop the site as a whole for optimum design and layout and from an infrastructure planning perspective. The site wraps around four existing properties which front onto Wigton Road and one on the A689, and as such the design will need to minimise loss of amenity to these properties. The site is immediately adjacent to the A689, and some noise attenuation measures will be required.

Highways advice: the Highway Authority has confirmed that satisfactory access is available off Wigton Road. The site would require the provision of new bus stops and potentially a developer contribution towards an increased frequency of bus service. The site should ensure good non-motorised links to the surrounding area as well as improvements to the existing to accommodate the potential increase in use.

Biodiversity: no statutory or non-statutory designations within or adjacent to the site. Fairy Beck lies adjacent to the site and is a tributary which ultimately discharges into the River Eden SAC/SPA. However, the proposal is not likely to have a significant effect on the interest features for which the designated site has been classified. Mature hedgerows within and on boundary of site, especially along north western boundary of site. Some mature trees in hedgerows.

Heritage assessment: no known heritage assets within or adjacent to site.

Flooding/drainage:

- drainage into either Dow Beck or Fairy Beck possible, provided that satisfactory measures are incorporated to control run off during construction and completion of the site;
- SUDS system on site desirable;
- No historic surface water flooding has been reported for the site; and

- Fairy Beck - possible cumulative impact issues with Morton development (though Morton has SUDS included in plans so shouldn't be a problem).

Other constraints: sensitive design required to integrate new development with four existing houses on south eastern edge of site.

U 7: Land at Newhouse Farm, south east of Orton Road - this is a significant site in terms of size and is predicted to come forward in the later part of the plan period. Access will be taken from Orton Road, as the southern boundary of the site is adjacent to the A689, the Carlisle western bypass. A masterplan approach will be required to guide the development of the site. The overall design and layout will need to consider ways of using the land beneath and around the power lines on the western boundary of the site in ways which will benefit the overall development.

Highways advice: the Highway Authority has indicated that the site would need to be accessed off Orton Road which would need corridor improvements and suburban bus service extension. Cycle path linkage to secondary school is essential.

Biodiversity: no statutory or non-statutory designations apply within or adjacent to the site. Dow Beck crosses part of the site and is a tributary which ultimately discharges into the River Eden SAC/SPA. However, the proposal is not likely to have a significant effect on the interest features for which the designated site has been classified. The land is agricultural grassland, and is bordered by mature hedgerows which are likely to provide wildlife corridors and habitats for a variety of species.

Heritage assessment: prehistoric remains have been revealed on an adjacent residential development site. An archaeological desk-based assessment and field evaluation will be required at the planning application stage.

Flooding/drainage:

- drainage into either Dow Beck or Fairy Beck possible provided that satisfactory measures are incorporated to control run off during construction and completion of the site;
- should aim for standard greenfield run-off rates;
- SUD system on site desirable;
- no report of surface water flooding problems on site;
- Dow Beck/Fairy Beck - possible cumulative impact issues with Morton development (though Morton has SUDS included in plans so shouldn't be a problem); and
- open watercourses need to be retained except where road crossings are required.

Other constraints: three high voltage overhead power lines cross the south western corner of the site.

Appendix 1

U 8: Land north of Burgh Road - the site has potential to integrate successfully with the built edge of Carlisle in this location.

Established housing areas lie to the south, and to the east is further housing fronting onto Burgh Road, behind which is a small industrial estate. The design and layout of the site will need to address the site boundary with the industrial estate, and the western boundary adjacent to the overhead high voltage cables.

Highways advice: The Highways Authority has raised no particular issues with this site. Access is achievable from the C2042 Burgh Road, although some upgrading of the current 40mph restriction section will be necessary, together with bus infrastructure provision. The size of the site is unlikely to cause any significant traffic impacts.

Biodiversity: the site lies within 200m of River Eden SSSI, SAC. However, the proposal is not likely to have a significant effect on the interest features for which the designated sites have been classified, subject to

satisfactory measures to control run off during construction and completion of the site.

Heritage assessment: site lies within 150 m of Hadrian's Wall Military Zone World Heritage Site (WHS). However, the WHS is not physically in evidence in this location. The NPPF states that not all elements of a WHS will necessarily contribute to its significance. It is not considered that development in this location would cause harm or loss of the WHS. The site has been subject to a geophysical survey which revealed archaeological assets. These will need to be investigated and recorded prior to any development commencing.

Flooding/drainage:

- no major issues - small flooding issues further down but not on this site; and
- drain directly into the Eden.

U 9: Former Morton Park Primary School, Burnrigg - originally the site of a primary school, this is now a cleared site offering potential to improve the character of the area

through good design and incorporation of the existing mature trees on the site which are protected by TPO 245. Development would need to be in accordance with the adopted SPD Trees and Development. The design and layout of the site needs to protect the amenity of the bungalows on Kingrigg. The site lies within walking distance of Newlaithes Primary School, neighbourhood shops, a community centre and the large area of public open space known as Morton Park.

Highways advice: no particular issues with the site considering previous use. Localised upgrade work will be needed to surrounding network.

Biodiversity: no statutory or non-statutory designations apply within or adjacent to the site.

Heritage assessment: no local or national designations apply within or adjacent to the site.

Flooding/drainage:

- no major issues; and
- drainage into Dow Beck

Other constraints: Tree Preservation Order 245 applies within the site.

U 10 and U 11: Land off Windsor Way and land east of Lansdowne Close/

Lansdowne Court - the main infrastructure issue in north Carlisle is the current lack of primary school places. Additional housing in this area has the potential to help fund the development of new primary school provision. Careful consideration needs to be given to the relationship/boundary between the two sites, as U 11 is landlocked. Therefore the development of U10 must maintain access to U 11. Access onto Tarraby Lane will not be permitted except for emergency vehicles. Existing flooding problems at the culvert on the adjacent Pennington Drive must not be exacerbated by any new development and plans must include a management regime for surface water run-off.

Highways advice: the Highway Authority has expressed some concern over traffic generation, and indicated that a loop road would be required so that a bus service can access the site and the adjoining housing area. Capacity issues are likely with M6 junction 44 and onto Scotland Road, as well as other major junctions to the north of Carlisle. Tarraby Lane is not of sufficient standard to serve the development. Any further development will need improvements to the resilience of the site (i.e. additional access points).

Biodiversity: the land is agricultural grassland, and is bordered by mature hedgerows which are likely to provide wildlife corridors and habitats for a variety of species.

Heritage assessment: it is likely that archaeological remains will be encountered on the site, and appropriate measures will be required to record these remains. An archaeological evaluation in the form of an appropriate desk based assessment (and where necessary a field evaluation) will be required at the planning application stage.

Flooding/drainage:

- SUDS storage already proposed for the area; and
- contribution from development towards SUDS plans would be desirable. Contributions would need to clearly demonstrate relationship of development with the SUDS scheme.

Other constraints: public footpath 132011 partially borders the north eastern boundary of the site.

U 12: Land to the rear of the Border Terrier, Ashness Drive - the site lies in

an established area of housing close to neighbourhood shops, a primary school, and public open space. The character of the immediate area is nondescript, and therefore this site offers the potential to improve the environment of the area through good design. The site is owned by a registered affordable housing provider and as such the loss of incidental open space is mitigated by the gain of a significant proportion of affordable housing.

Appendix 1

Highways advice: acceptable with minimal works. Footway fronting site required.

Biodiversity: no statutory or non-statutory designations within or adjacent to the site.

Heritage assessment: no known heritage assets within or adjacent to site.

Flooding/drainage:

- United Utilities have issues with sewer flooded properties in this area (considered a High Risk area); and
- future development should ensure that surface water run-off into sewers is severely restricted;

Other constraints: mobile phone mast lies adjacent to north eastern corner of site.

U 13: Land east of Beverley Rise, Harraby

the site is adjacent to an established area of housing which had good local facilities and amenities including a primary school for which there are immediate plans for redevelopment in order to allow expansion for an increased pupil intake. Noise attenuation measures will be required

between the site and the M6 which lies to the east. Careful consideration will also need to be given to the boundaries of the site adjacent to existing housing and the Carlisle Settle railway line to the north.

Highways advice: proposed means of access is acceptable in principle. Local widening of existing access road needed

Biodiversity: there are no statutory or non-statutory designations which apply within or adjacent to the site. The site is agricultural grazing land with some hedgerows and trees which are likely to provide habitats for wildlife.

Heritage assessment: the site lies immediately adjacent to the Carlisle/Settle line Conservation Area (CA). The special interest of the CA lies in the corporate architectural styles of the buildings along the route, the mainly civil engineering works, and the scenic nature of the route. There are no buildings associated with the line at this point, and the line cannot be seen as an element in the wider landscape, as it is screened by trees.

Flooding/drainage:

- bounded by railway embankment - drainage pipes should go to the south;
- run-off rates will need to be restricted to QBAR (greenfield) 1 in 200 run-off rates (2 year rainfall event); and
- drainage into Durranhill Beck - need to be wary of cumulative impact in this area - potentially need a masterplan approach towards Durranhill Beck.

Other constraints: noise attenuation measures will be required along eastern boundary of site due to proximity of M6 motorway. Boundary treatment will be required along northern boundary of site for safeguarding from Carlisle/Settle railway line.

U 14: Land north of Carleton Clinic, east of Cumwhinton Drive

- as part of the long term development strategy for the Carleton Clinic, Cumbria Partnership NHS is consolidating its operations into certain sectors of the site. As such U 14 surplus to NHS requirements. The eastern boundary

of the site extends to the motorway, and as such significant noise attenuation measures will be required, through layout and design, to mitigate any future adverse impacts on residents. A public footpath lies on the southern boundary, and currently has a semi-rural feel as it has fields on both sides. This footpath must remain unobstructed, and the ultimate layout and design should not have an overbearing effect. The buildings adjacent to the north west corner of the site are currently in ancillary use for the Carleton Clinic, and the northern boundary of the site is adjacent to Parklands Village. Layout and design of the site must respect these adjacent uses.

Highways advice: the Highway Authority has advised that Cumwhinton Drive at this point is a private road and would require upgrading to local distributor road standard. The development of the site should ensure satisfactory linkage to the A6. The traffic modelling results carried out by Cumbria County Council to inform the Local Plan should be considered for junction capacities. The development of the site should ensure

good non-motorised links to the surrounding area as well as improvements to the existing to accommodate the potential increase in use.

Heritage assessment: a Bronze Age cemetery and other prehistoric remains have been found at the former Garlands Hospital. An archaeological desk-based assessment and field evaluation will be required at the planning application stage.

Flooding/drainage:

- drainage into Durranhill Beck;
- reasonable opportunities for a number of SUDS features; and
- needs to limit drainage due to cumulative impact.

U 15: Former dairy site, Holywell

Crescent, Botcherby - planning permission has been granted for 66 houses on this site. Its allocation in the Local Plan safeguards the site for future development for housing over the plan period. It is one of a limited number of brownfield sites within the City

which is available for housing development. The site is well located in relation to local services and facilities including a primary school and public open space.

Highways advice: no highways issues have been raised.

Biodiversity: the information submitted with the planning application recorded that the majority of the habitats on site are of low conservation interest in terms of vegetation. However, there was some potential for birds to use the trees/scrub, and therefore removal of such vegetation should not be undertaken during the breeding season.

Heritage assessment: no known heritage assets within or adjacent to site.

Flooding/drainage:

- no further comment in view of planning permission for site.

Other constraints: site lies adjacent to gas pipeline.

Appendix 1

U 16: Land at Deer Park, Belah - the site is bordered by residential development to the south and east, and by employment uses to the north. The protected trees within the site provide a strong green presence, and any development must be in accordance with the adopted SPD Trees on development Sites. The layout and design of the development will need to make provision for adequate separation distance between the houses and the trees. Consideration should also be given to a buffer between new housing and the small industrial estate to the north. The main infrastructure issue in north Carlisle is the lack of primary school places. Development of housing in this area has the potential to fund the development of primary school provision.

Highways advice: access should be safe and the development of the site should ensure good non-motorised links to the surrounding area as well as improvements to the existing to accommodate the potential increase in use.

Biodiversity: immediately to the west of the site lies the Kingmoor Sidings County Wildlife Site, which is also designated as a Local Nature Reserve. It contains a series of small ponds which support a population of Great Crested Newt. As an old railway siding, the succession of habitats colonising this site has resulted in a high species diversity.

Heritage assessment: an archaeological desk-based assessment has identified that there is the potential for Roman archaeological remains to survive on the site. An archaeological investigation will need to be carried out prior to any development commencing.

Flooding/drainage:

- drainage is achievable and there are no major surface water issues.

Other constraints: public footpath 109397 crosses the site in a north westerly direction from Kingmoor Road, and must be retained and protected as part of the development. TPO 181 applies to a number of groups and

individual trees within the site. These trees must be retained and protected as part of the development. There is potential to incorporate them as part of the open space requirement for the site. They are significant, mature parkland trees which will require adequate separation distances from any new development in order for them to be effectively protected.

U 17: Land to the south west of Cummersdale Grange Farm - this site formed part of a larger housing, retail, employment and open space allocation in the 2008 Local Plan. In November 2010 outline planning permission was granted for the allocation, but excluded this site. As such it is almost entirely enveloped by land subject to the planning permission. In addition, the land to the south, bounded by Peter Lane, has approval for reserved matters and is under construction. It is therefore imperative that the development of this site integrates both visually and physically with the area subject to the wider planning permission.

Highways advice: access should be safe and the development of the site should ensure good non-motorised links to the surrounding area as well as improvements to the existing to accommodate the potential increase in use.

Biodiversity: Fairy Beck borders part of the northern boundary of the site, and ultimately drains into the River Eden SSSI and SAC. Housing development is not likely to have a significant effect on the interest features for which the designated site has been classified, subject to satisfactory measures to control run off during construction and on completion of the site. The hedgerows on the site may have potential as bird and bat roosting sites, and measures will be required to ensure the protection of these species.

Heritage assessment: there is potential for unknown archaeological remains on site. The site has in the past been subject to an archaeological geophysical survey. Results show that it is highly unlikely that archaeological remains of national importance survive. The site should be

subject to a programme of archaeological evaluation to be consistent with the requirements of the planning permission for the wider surrounding area. Where archaeological remains survive, these should be recorded.

Flooding/drainage:

- Fairy Beck, which is classified as 'main river', borders part of the northern boundary of the site; and
- the site must be drained on a separate system with only foul drainage connected to the foul sewer.

Other constraints: the site is almost entirely surrounded by land subject to an extant planning permission (09/0413), for residential, employment and public open space. Careful consideration will need to be given as to how this site can integrate into this wider area.

U 18: Land opposite Rosehill Industrial Estate - this site was allocated in the 2008 Local Plan for a premier pedigree livestock centre. However, it is no longer needed for

this use and has instead been promoted for housing. The site is well located on the edge of Carlisle in terms of accessing a range of services and facilities, and the wider road network. The site will require considerable noise attenuation measures from the M6, and also a physical barrier such as bunding and planting to reduce the visible impact of the motorway.

Highways advice: access should be safe and the development of the site should ensure good non-motorised links to the surrounding area as well as improvements to the existing to accommodate the potential increase in use. Mitigation measures for traffic impact will be needed not merely to allow the additional motorised traffic, but also pedestrian movements to main attractors (schools, retail, leisure).

Biodiversity: there are hedgerows bordering the site, and a number of isolated stretches of hedgerows within the site which could provide roosting, feeding or nesting sites for birds or bats etc. These should be evaluated as part of any planning application. There is

Appendix 1

a semi-mature tree belt along the south side of Durranhill Road. This should be retained.

Heritage assessment: prehistoric remains survive on the site. An archaeological desk based assessment and field evaluation will be required at the planning application stage.

Flooding/drainage:

- Durranhill Beck - there are capacity issues further downstream. Need to be sure that development here won't exasperate that situation.

U 20: Land south of Durranhill Road, Botcherby - this parcel of land was part of a larger allocation in the 2008 adopted Local Plan. There is an existing regular bus service along Durranhill Road, and the site is close to local services and facilities, including primary schools and an employment area at Rosehill. The layout and design of the site must take account of the protected trees, adequate separation distances between existing housing and the proposed new housing.

Highways advice: access will be from Durranhill Road, through the adjacent

development known as Barley Edge, where an access road has been created to serve this site, unless a suitable alternative access can be provided in conjunction with, and without prejudice to, the development of site U18. Access should be safe and the development of the site should ensure good non-motorised links to the surrounding area as well as improvements to the existing to accommodate the potential increase in use. Mitigation measures for traffic impact will be needed not only to allow the additional motorised traffic, but also pedestrian movements to main attractors (schools, retail, leisure).

Biodiversity: no statutory or non-statutory designations apply within or adjacent to the site. TPO 254 applies along the north western boundary of the site and any new development would have to comply with the Council's adopted SPD Trees and Development.

Heritage assessment: Chapel Brow, a Grade II listed building sits on the opposite side of Durranhill Road. However, this proposed

development will not detract from the setting of the listed building as new housing development (Barley Edge) exists between the site and the building. Prehistoric remains have been revealed on an adjacent residential development site and there is further potential for unknown archaeological remains to survive. An archaeological desk-based assessment and field evaluation will be required at the planning application stage.

Flooding/drainage:

- Small area of surface water flooding to the east of the site; and
- Durranhill Beck - there are capacity issues further downstream. Need to be sure that development here won't exasperate that situation.

Other constraints: TPO 254 along the north western boundary of the site. The Carlisle to Newcastle railway line forms the southern boundary of the site.

U 21: Former Laing's site, Stanhope Road

to the east of this site, and fronting onto Dalston Road is a recently constructed 1,532 m² retail food store. The layout of the development incorporates an access road designed to link through to this allocated housing site. This is a brownfield site, which was allocated in the 2008 Local Plan for mixed use. High quality and design and layout will be required in order to contribute towards improving the character and appearance of the local area. Dow Beck, which is classified as 'main river' runs adjacent to the northern boundary of the site.

Highways advice: the Highways Authority has advised that Stanhope Road is a local distributor road and there may be a need to improve its junctions with Wigton Road and Dalston Road.

Biodiversity: no statutory or non-statutory designations apply within or adjacent to the site. Dow Beck runs along the north western boundary of the site and ultimately drains into the River Eden SSSI and SAC. However, the proposal is not likely to have a significant

effect on the interest features for which the designated site has been classified subject to satisfactory measures to control run off during construction and on completion of the site.

Heritage assessment: no known heritage assets within or adjacent to site.

Flooding/drainage:

- the Environment Agency's surface water mapping indicates flooding around the edge of the site which may affect access;
- brownfield site - unlikely to reach greenfield run-off standards, but a betterment in run off rates should be sought through development; and
- 8m buffer from Dow Beck (culverted) main river required.

Rural Area:

R 1: Land south of Carlisle Road, Brampton - this site is located on the edge, but within walking distance of the town centre, which has a wide range of local services and facilities. The site abuts existing housing development on its north eastern and eastern sides, and is opposite established housing and employment uses on the northern side of Carlisle Road. The western boundary of the site abuts open countryside, and care will need to be taken over the design of the boundaries to ensure that the development integrates with surrounding land uses. Within the site there will be land set aside for the provision of a medical centre to accommodate the relocation of the Brampton Medical Practice, which has a requirement to expand to purpose built premises.

Highways advice: the Highway Authority has advised that this site is well positioned just to the west of the town centre and therefore close to local facilities. However, there are likely to be town centre parking

Appendix 1

and school muster time issues with this scale of development, which will require mitigation measures.

Biodiversity: there are no statutory or non-statutory designations which apply within or adjacent to the site. Substantial roadside hedgerows (although species poor), should be retained as far as possible, with the exception of where their removal is required for site access sight lines.

Heritage assessment: there is a grade II listed building (Green Lane House) on Greenhill. However the building lacks a strong presence as it is partly single storey and is screened by mature roadside trees. It is also not visible from the proposed housing site as it is separated from the site by a row of two story semi-detached houses, (Elmfield). Therefore the development of this site is unlikely to harm the setting of the listed building. Prehistoric and Roman remains survive around the borders of the site. An archaeological desk-based assessment and field evaluation will be required at the planning application stage. The north eastern corner of the site lies 100m from the

boundary of the Brampton Conservation Area (CA). The CA is not visible from the site. New development should not directly imitate the existing development in this area, but should be well designed with respect for the local context, and have its own well established character and appearance.

Flooding/drainage:

- no apparent flooding issues; and
- possible opportunities for infiltration SUDS due to sandy soil (this has been done in the locality).

R 2: Land west of Kingwater Close, Brampton - this site is City Council owned. There is agreement with the landowner at Kingwater Close to achieve access to the site. The land is within walking distance of the town centre, which has a wide range of local services and facilities. The landscape has the capacity to absorb additional development without adverse impacts.

Highways advice: the Highway Authority has indicated that the site is well related to the town centre, but access would require

obtaining rights over third party land. The adjoining land owner from Kingwater Close and Gelt Rise is Riverside. Discussions with Riverside have led to agreement in principle for access over their land to facilitate this development.

Biodiversity: no statutory or non-statutory designations apply within or adjacent to the site. TPO 225 covers land immediately adjacent to the north west corner of the site. There are mature hedgerows around the boundary of the site.

Heritage assessment: there is a Grade II listed building (Green Lane House) adjacent to the western boundary of the site. The property operates as a private residential care home, and is part single/ part two storey. There have been a variety of extensions over recent years, and there are a number of outbuildings. On the eastern boundary of the plot, between the building and the proposed development site there is a mature hawthorn and beech hedge, which stands on a one metre mound. This partially obscures the building and its setting from the adjacent site. It is considered that the

site can be developed whilst still preserving the setting of this listed building.

Flooding/drainage:

- no apparent flooding issues; and
- possible opportunities for infiltration SUDS due to sandy soil (this has been done in the locality).

Other constraints: there is a public footpath running along the western boundary of the site which connects with Greenhill.

R 3: Land north of Greenfield Lane, Brampton - this is a large site which is connected to the built edge of Brampton at Dacre Road and Greenfield Lane. The southern corner of the site will require careful design considerations in the context of the small bungalow on the corner of Dacre Road, and the protected trees on the boundary of Garth House, which is a listed building. Care will need to be taken over the design of the site in relation to the Brampton to Longtown road frontage, in both matters of layout, design and boundary treatment. In addition, particular measures will need to be

taken to either integrate or divert the route of the public footpath which crosses the site.

Highways advice: the Highway Authority has indicated that a development of this size would require a link road to Local Access standards. Direct access to properties from the A6071 (Brampton to Longtown Road) would not be permitted. A public footpath passes through the site.

Biodiversity: no statutory or non-statutory designations apply within the site. However, there are a number of mature trees within the site, and a low roadside hedgerow which is predominantly hawthorn. The trees and the hedgerow are likely to provide feeding corridors and roosting sites for birds.

Heritage assessment: the Grade II listed Garth House lies adjacent to the south western corner of the site. However, a dense tree screen which is protected by a TPO separates the two sites. As such the listed building has a very limited presence, and its setting is defined by the mature tree boundary. Development of this site would be unlikely to cause harm to the

setting of the listed building. Roman remains survive around the borders of the site. An archaeological desk-based assessment and field evaluation will be required at the planning application stage.

The site lies within the buffer zone of Hadrian's Wall World Heritage Site (WHS). The buffer zone protects the visual setting of the WHS, but at this point there is no inter-visibility between the WHS and the allocation.

Flooding/drainage:

- main river abuts site to north - 8m buffer required; and
- the site could drain into river in the north.

Other constraints: TPO 217 applies to trees on the eastern boundary of Garth House. These mature trees will require adequate separation distance from any new development as set out in the adopted SPD Trees and Development.

Appendix 1

R 4: Site of former Lochinvar School, Mary Street, Longtown - this is a former secondary school site owned by Cumbria County Council. The buildings have been cleared. The site is well contained within the existing built form of Longtown. The layout and design of the development on this site will need to protect the amenity of the community buildings and create a suitable buffer to the retained playing fields to the east.

Highways advice: information provided shows an indicative access capable of allowing for an appropriate access for this scale of development. The development of the site should ensure good non-motorised links to the surrounding area as well as improvements to the existing to accommodate the potential increase in use.

Biodiversity: no local, national or internationally designations apply within or adjacent to the site. There are a number of mature trees adjacent to the entrance to the site.

Flooding/drainage:

- main river crosses the north west boundary of the site. Eight metre clearance applies; and
- the site is flat and will drain to the north. As this is a brownfield site, any development should result in a betterment in run-off rates.

R 5: Land south of Old Road, Longtown - this site lies on the eastern edge of Longtown and is bordered to the south by the Longtown to Brampton Road, and to the north by a minor link road (Old Road). The boundaries of the site are in the main established hedges or tree belts which should be maintained with any new development to help integrate the site with both the adjacent built edge of Longtown and the open countryside beyond. Careful consideration will need to be given to the boundary treatment of the site where it abuts the housing and employment site to the west.

Highways advice: main access off A6071 with potential secondary access of Old Road.

Biodiversity: no statutory or non-statutory designations apply within or adjacent to the site. The land is agricultural grassland, and is bordered by mature hedgerows which are likely to provide wildlife corridors and habitats for a variety of species.

Heritage assessment: the site lies within the boundary of a much larger area which is on the English Heritage register of Historic Battlefields, (Battle of the Solway Moss). The purpose of the register is to offer battlefields protection and to promote better understanding of their significance.

Flooding/drainage: no major surface water issues.

Other constraints: within Ministry of Defence Safeguarding Zone but unlikely to preclude development.

R 6: Land west of Amberfield, Burgh by Sands - the site adjoins recent housing development to the south of the village, and is close to the primary school. Much of the village is covered by Conservation Area designation, whilst the north of the village lies within the Solway Coast AONB.

Hadrian's World Heritage Site (WHS) crosses the central part of the village from west to east. This site lies outside all of these designations, and as such is less constrained. Development here should seek to create and enhance green infrastructure connections with the centre of the village. The creation of a pavement connecting the site with the Primary School is likely to be required to ensure any development is sustainable from an accessibility perspective.

Highways advice: access should be safe and the development of the site should ensure good non-motorised links to the surrounding area.

Biodiversity: no statutory or non-statutory designations apply within or adjacent to the site.

Heritage assessment: the site lies within the buffer zone of Hadrian's Wall Military Zone WHS. As such any development will have to be assessed on its impact on the outstanding universal value of the WHS, and particularly on key views, into and out of it.

The site also lies adjacent to the Burgh by Sands Conservation Area (CA) boundary. This boundary is marked by a screen of dense tree and hedge cover, giving limited views into or out of the CA. The CA at this point is mainly either private or public open green space, with very few buildings. New development will be expected to harmonise with the grain of the CA, and respond to the local form, context and character.

An archaeological evaluation has revealed Roman remains surviving on the site. These will need to be investigated and recorded prior to development commencing.

Flooding/drainage:

- surface water flooding is an issue at various points throughout the village;
- need careful consideration of how it is intended to address surface water issues; and
- surface water run-off must not exacerbate any existing problems.

R 7: Land east of Cummersdale

Road, Cummersdale - a small site with community and parish council support for a modest increase of up to 14 houses. There are a number of mature trees along the northern boundary of the site, and adequate separation distances will be required between new houses and the canopy of the trees. The location of the site on the edge of the village will not increase traffic flow through the village, as the primary school, pub and village hall are all located within walking distance.

Highways advice: the Highway Authority has indicated that the site is a logical extension to the village. The only constraint highlighted is that the site lies on a bend, and as such the development will need to be set back to provide the requisite visibility splays.

Biodiversity: no statutory or non-statutory designations apply within or adjacent to the site.

Heritage assessment: the Spinners Arms is a Grade II listed building which is separated

Appendix 1

from the eastern boundary of the site by four houses. The development of the site is unlikely to have an impact on this building. An archaeological evaluation has revealed Roman remains surviving on the site. These will need to be investigated and recorded prior to development commencing.

Flooding/drainage:

- flat land so would look to see SUDS measures incorporated.

Other constraints: a number of mature trees are located along the northern boundary of the site.

R 8: Land adjacent to Beech Cottage, Cumwhinton - the site has planning permission subject to the signing of a Section 106 agreement (application reference 12/0856), for 15 dwellings including three affordable bungalows and one dwelling for an elderly person. The site is therefore allocated to safeguard the permission, as the principle of development on this site has been accepted.

Highways advice: the Highways Authority has not raised any highways issues.

Biodiversity: no statutory or non-statutory designations apply within or immediately adjacent to the site. There is potential for a range of species to be present within the vicinity of the site due to the network of hedgerows in the area.

Flooding/drainage:

- foul drainage can connect to the public sewer via a pumping station;
- capacity exists in the existing sewage network to accommodate the foul flow from the development; and
- surface water to be disposed of via soakaways.

R 9: Land west of How Croft, Cumwhinton - adequate provision for access can be made between a gap in existing properties on the B6263. The site has housing on its western, northern and eastern boundaries, and is well contained within the landscape. Any development proposals must ensure that any existing surface water drainage issues are fully addressed in the design of the development. The village has a number of local amenities and services, and an hourly bus service to Carlisle.

Highways advice: the access visibility splays from the site require careful consideration. The access will need to comply with adoptable road criteria. A speed survey will be needed to inform the aforementioned splay requirements.

Biodiversity: there are no statutory or non-statutory designations which apply within or adjacent to the site. There is potential for a range of species to be present within the vicinity of the site due to the network of hedgerows in the area.

Flooding/drainage:

- potential land drainage issues which will require further investigation.

R 10: Land at Hadrian's Camp, Houghton - the site has outline planning permission for 96 houses (planning application reference 12/0610) and is allocated in the Local Plan to safeguard the permission. A reserved matters application (14/0930) was received at the end of October 2014 for 99 houses (including 25 affordable dwellings).

Highways advice: the Highways Authority has not raised any significant issues with the

proposal, subject to satisfactory visibility splays being provided onto Houghton Road, and no properties being accessed directly from Houghton Road.

Biodiversity: Natural England has commented as follows: The watercourses - Brunstock Beck and Gosling Sike - both discharge into the River Eden and Tributaries SSSI and SAC. We advise that sufficient pollution prevention measures will need to be designed into the detailed drainage design, and employed on site during the construction period, in order to not impact on the interest features of the designated river.

The site and the surrounding area is designated as a non-statutory County Wildlife Site. The biodiversity interest of the site is due to its mosaic of habitats including orchid rich grassland. The ecological assessment prepared to inform the planning application recommends that the species rich turfs are relocated to an area to the east of the application site which are currently under metalled road surfaces, the surfaces to be removed and broken up beforehand.

Heritage assessment: Historic England has commented that it is likely that this site can be developed without unacceptable impact on the Hadrian's Wall World Heritage Site, subject to a height limit of no more than 2½ storeys.

Flooding/drainage:

- only foul drainage connected into the foul sewer - foul water must discharge into the manhole located at Brampton Old Road;
- surface water drainage to discharge into either a soakaway/infiltration or watercourse; land drainage or subsoil drainage water must not be connected into the public sewer;
- the connection of highway drainage from the proposed development to the public wastewater network will not be permitted; and
- the Environment Agency requires a greenfield rate of discharge.

R 11: Kingmoor Park Harker Estate, Low Harker - an underused brownfield site with outdated buildings which are

something of an eyesore, and which are unsuitable for ongoing commercial use. Its redevelopment for housing would yield a significant amount of affordable housing, and lead to an improvement to the local environment. The site lies close to junction 44 of the M6, and employment areas and other services in the north of Carlisle. There are a number of small businesses in Harker. There is a primary school at Blackford which is just over 2km away. Providing a safe route to school is likely to be an issue which will need to be addressed as part of any planning application.

Highways advice: would require cycle path along C1015/1022. Site has poor accessibility and would potentially require a developer contribution to improve bus service frequency. Improvements will be required to enhance pedestrian and cycle facilities linking the site to nearby schools etc.

Biodiversity: no statutory or non-statutory designations apply within or adjacent to the site. The main river which runs along the southern boundary of the site ultimately drains to the River Eden and Tributaries SSSI

Appendix 1

and SAC. However, housing development is not likely to have a significant effect on the interest features for which the SAC has been classified, subject to satisfactory measures to control run off during construction and on completion of the site.

Heritage assessment: no known heritage assets within or adjacent to site.

Flooding/drainage:

- likely surface water issues on site;
- main rivers border site – 8m buffer zones will be required;
- potential for surface water flooding on south west corner – would need to be careful with the layout to this part of the site - may provide the opportunity for open space here; and
- could cause surface water issues for any potential future land use to the south.

Other constraints: brownfield site - some contamination may be present and remediation likely.

R 12: Land east of Monkhill Road, Moorhouse - a modest increase of 10 houses over the plan period is considered acceptable for the size and scale of the village. Although there are limited services within the village, other nearby villages of Burgh, Great Orton and Kirkbampton have primary schools, pubs, village halls and a shop. The primary school at Burgh by Sands is currently has spare capacity.

Highways advice: the Highway Authority has indicated that there may be a gradient issue, but the development is acceptable from a highways point of view in principle. Junction spacing will need to be considered.

Biodiversity: no statutory or non-statutory designations apply within or adjacent to the site. The roadside hedgerow is likely to provide a habitat for wildlife and should be retained after taking into account access arrangements.

Heritage assessment: Grade II listed building (Fairfield) opposite southern boundary of the site. Any development on this site will be expected to minimise any adverse impact on

the listed building and its setting. Prehistoric remains survive adjacent to the site. An archaeological desk-based assessment and field evaluation will be required at the planning application stage.

Flooding/drainage:

- there have been drainage issues within Moorhouse in the past; and
- United Utilities developed a first time sewerage project here but consideration would need to be given to surface water and where it might discharge to – this doesn't rule out the development but it may be hard to find a suitable place to drain.

Other constraints: mature tree within centre of site should be retained and protected, being incorporated within the layout to provide focal point and mature landscape element.

R 14: Land at Tower Farm, Rickerby

A small village very close to the edge of Carlisle. The whole village is covered by a conservation area designation and the majority of the buildings, apart from this site,

lie within flood zones two and three. The scale of the proposed development, at 10 houses, is considered appropriate for the scale and form of the village. The site is a gateway to the conservation area, and the 19th century barns and stables should be retained and converted creatively into the redevelopment of this site.

Highways advice: the Highway Authority has advised that there are no major issues with the site. A speed survey will be required to inform the visibility splay requirement.

Biodiversity: no statutory or non-statutory designations apply within the site. However, the land lies within 150m of the River Eden and Tributaries SSSI and SAC. Sufficient pollution prevention measures will need to be designed into the detailed drainage design, and employed on site during the construction period, in order to not impact on the interest features of the designated river.

Heritage assessment: the site lies within the Rickerby Conservation Area. As such, the development of this site should harmonise

with the grain of the conservation area by respecting historic layout, road patterns and land form etc. New development should not directly imitate existing, but should be well designed with respect for its context, and have its own well established character and appearance. New development should also protect important views into and out of the area. Prehistoric remains survive adjacent to the site. An archaeological desk-based assessment and field evaluation will be required at the planning application stage.

The Old School House, and Wayside and Old School Cottage are grade II listed buildings which lie approx 100m from the western boundary of the site. However, a large new bungalow has been constructed between the site and The Old School House, effectively resulting in neither listed building being visible from the site.

The existing buildings on the site, while not statutorily listed, are nonetheless designated heritage assets by virtue of their setting within the conservation area. The Nineteenth Century stables and barns on the site would be expected to be incorporated creatively

into any development of this sensitive site, effectively a gateway to the Rickerby Conservation Area.

Flooding/drainage:

- small amount of surface water flood risk susceptibility; and
- drain to the south and/or west.

Other constraints: TPO 191 covers a number of trees on the western boundary of the site.

R 15: Land east of Scotby Road and north of Hill Head, Scotby

- the site lies at the northern end of Scotby, with easy access to the A69 and junction 43 of the M6, and to Carlisle. Careful design of the layout including type of dwellings and location of open space will be required to minimise impact on the occupiers of the existing housing and bungalows which border the site on both Hill Head and Scotby Road. The layout should ensure appropriate distances between existing and proposed dwellings to ensure no adverse effect on the residential amenity of existing residents. The boundary of the site with the open countryside to the east should reflect the transition from the

Appendix 1

development to the open countryside for example by the use of hedgerows. The main access will be onto Scotby Road, but there is potential for a secondary access to Hill Head. The roadside hedgerow fronting the A69 should be retained. The hedgerow fronting Scotby Road should also be retained unless some limited removal is required for sight lines.

Highways advice: the proposed access will require upgrading to be wide enough for two way traffic and pedestrian footways. No other highways issues raised, other than some junction capacity testing may be required.

Biodiversity: the site lies within 150m of Powmaughan beck which is a tributary of the River Eden and Tributaries SSSI and SAC. However, housing development is not likely to have a significant effect on the interest features for which the SAC has been classified, subject to satisfactory measures to control run off during construction and on completion of the site.

Heritage assessment: an unscheduled archaeological site lies approximately

50m to the east of the site. Prehistoric remains survive adjacent to the site. An archaeological desk-based assessment and field evaluation will be required at the planning application stage.

Flooding/drainage advice: potential drainage issues on site.

Other constraints: the North Western Ethylene Pipeline lies to the east of the site, and is operated by Essar Oil (UK). It is a significant pipeline asset of strategic importance in the supplies of oil and gas from the North Sea. The pipeline is classified by the Health and Safety Executive as a major accident hazard pipeline (MAHP) and as such is subject to land use planning constraints.

R 16: Land at Broomfallen Road, Scotby - the site has planning permission for 28 houses (including seven affordable houses), subject to the signing of a Section 106 agreement to secure the affordable units, open space, community transport, education contribution and waste bins. The site is allocated to safeguard the planning permission.

Highways advice: there are no fundamental issues with the proposed development.

Biodiversity: no statutory or non-statutory designations apply within or adjacent to the site. A key issue is that a length of hedgerow is to be removed for access to the site. This must be undertaken outside of the bird nesting season. The area is especially important for protected species such as yellowhammer, spotted flycatcher and tree sparrow. Some form of appropriate compensatory planting should be undertaken so as to avoid a net loss of hedgerow biodiversity.

Heritage assessment: there is an unscheduled archaeological site to the north and south of this site. It is therefore recommended that an archaeological evaluation and, where necessary, a scheme of archaeological recording of the site be undertaken in advance of development.

Other constraints: public bridleway 138049 runs along the northern and north western boundary of the site.

R 17: Land east of Little Corby Road, Little Corby/Warwick Bridge - the site presents an opportunity to enhance the approach to Corby Hill with a development that reflects local design. Any development here would need to have full regard to the setting of Little Corby Hall, a Grade II listed building. The development boundaries consist of mature hedges which should be retained and reinforced where necessary by additional planting to enhance biodiversity and to help integrate the development with its rural aspect to the north and east.

Highways advice: the Highway Authority has indicated that pedestrian linkages to the Hurley Road Estate would be essential, as would improvements along Little Corby Road.

Biodiversity: no statutory or non-statutory designations apply within the site. However, the River Eden and Tributaries SSSI and SAC lies within 100m of the site. Appropriate measures will need to be taken to ensure that foul and surface water drainage does not impact on the interest features of the designated river.

Heritage assessment: Grade II listed Little Corby Hall lies 100m north of the site. The Hall was built in 1702 from dressed red sandstone, with end walls of brick/part rendered. This is an attractive building in an open setting which has a strong presence in this location. There is clear visibility from the proposed housing site to Little Corby Hall. In order to preserve the setting of the listed building, the density of development on the site has been reduced to give scope for better design. The site presents an opportunity to enhance the approach to Corby Hill with a development that reflects local design better than the post war estate development that currently forms its northern edge. Any development here would need to have full regard to the setting of Corby Hall, which until post war years, enjoyed an isolated location, set apart from the small hamlet of Little Corby.

Flooding/drainage:

- relatively flat site; and
- drain into watercourse to the west.

R 18: Land to the south of Corby Hill to Heads Nook Road, Corby Hill/Warwick Bridge - located to the east of Corby Hill, this site can be accessed from the Corby Hill to Heads Nook Road, and makes provision for up to 30 houses. Where the site abuts open countryside to the east and south, careful consideration will need to be given to boundary treatment in order to integrate the development with the open countryside. The frontage of the site onto the public highway will also need high quality design and layout to complement the attractive approach to the village at this point.

Highways advice: Main access off Heads Nook to Corby Hill road.

Biodiversity: the site is located just under 500m from the River Eden and Tributaries SSSI/SAC. Trout Beck which crosses the site is a tributary of this designated site. Development must ensure no adverse impact on the special interest features of the designated site from run off etc.

Appendix 1

Heritage assessment: unlikely to impact on the setting of Warwick Mill Main Mill and High Buildings listed buildings.

Flooding/drainage:

- area around Trout Beck classified as flood zone 2 and 3; and
- Trout Beck classified as 'main river', 8 metres clearance required either side.

R 19: Wetheral South - there are acknowledged issues with the capacity of the waste water treatment works (WWTW) for Wetheral. However, increasing the capacity of the WWTW is in the United Utilities forward funding plan. In the meantime United Utilities has advised that any surface water should discharge at the lowest possible rate. This will be at a rate which is less than the average greenfield run-off rate. The surface water drainage system should include on-site attenuation. The site lies adjacent to Wetheral Conservation Area (CA) boundary, and as such new development will be expected to harmonise with the local context.

Highways advice: the Highways Authority has not raised any issues regarding this site.

Biodiversity: there are no statutory or non-statutory designations within or adjacent to the site. There are a number of hedgerows within and on the boundary of the site which are likely to provide habitats and feeding areas for birds.

Heritage assessment: Grade 1 listed Wetheral Priory and Gatehouse lies 250 metres from the site. There are also two scheduled ancient monuments within the Wetheral Abbey Farm cluster. The land rises steeply to the west of the listed building, blocking views of the heritage asset from the wider landscape. The roofs of the westernmost houses on The Glebe are only just visible. It is unlikely that development of the proposed site would adversely impact the character and setting of the listed building. Wetheral CA boundary lies adjacent to part of the northern boundary of the site. The CA at this point has a range of designs and sizes of two storey properties, finished in stone, render and brick, in a compact layout.

New development will be expected to harmonise with the local context both within and adjacent to the CA.

Flooding/drainage:

- historically lack of WWTW capacity has been an issue with new development;
- initial assessment of capacity at WWTW has been revised. Monitoring has shown the situation is not as bad due to the brewery permission in Great Corby not being implemented;
- foul water connections can potentially connect now;
- increasing the capacity is in the United Utilities funding plan - expected delivery of improved works 2020 will upsize the works to take additional flow; and
- some surface water flood risk within area to adjacent properties - the run off across the site would need to be managed to prevent this.

R 20: Land west of Steele's Bank, south of Ashgate Lane, Wetheral - whilst the site is bordered to the north and east by existing housing, the landscape in this location is flat and open, and very careful design of the layout and housing will be required to establish an attractive edge to the village and prevent any adverse impact on the properties on both Ashgate Lane and Steele's Bank. Adequate separation distances will be required between the new development and the mature trees which fringe the cemetery, in accordance with the adopted SPD Trees and Development.

Highways advice: the Highway Authority has not raised any issues regarding this site.

Biodiversity - there are no statutory or non-statutory designations which apply within or adjacent to the site. There are a number of hedgerows within and on the boundary of the site which are likely to provide habitats and feeding areas for birds and other wildlife.

Heritage assessment: no known heritage assets within or adjacent to site.

Flooding/drainage:

- the main issue in Wetheral is lack of sewer capacity;
- initial assessment of capacity at WWTW has been revised. Monitoring has shown the situation is not as bad due to the brewery permission in Great Corby not being implemented;
- foul water connections can potentially connect now;
- increasing the capacity is in the United Utilities funding plan - expected delivery of improved works 2020 will upsize the works to take additional flow); and
- some surface water flood risk within area to adjacent properties - the run off across the site would need to be managed to prevent this;

R 21: Land west of Wreay School, Wreay

Wreay is a small village with a good range of local services including a primary school with spare pupil capacity. Though not designated as a conservation area, Wreay is a notable location due to its association

with local architect and landowner Sarah Losh 1785-1853. A number of nearby listed buildings include St Mary's Church, (Grade II*), the Grade II Mausoleum, and to the immediate north of the site is the Grade II Pompeian Cottage.

The site is sensitive given its high density of designated heritage assets and also the relative low-density of Wreay as a whole. Any design should be of extremely high quality and fully respond to the sensitivity of its surroundings.

Highways advice: the Highway Authority has not raised any issues regarding this site.

Biodiversity: there are no statutory or non-statutory designations which apply within or adjacent to the site. There are good roadside hedgerows which are likely to provide habitats and feeding area for birds etc.

Heritage assessment: Wreay is a notable location thanks to its association with local architect and landowner Sarah Losh 1785-1853. A number of listed buildings are in proximity to this proposed site, all by her hand. These include St Mary's Church,

Appendix 1

which is Grade II* listed, located on the opposite side of the road to the south eastern corner of the site. Associated with this are a number of other listed structures in the vicinity of the Church including the Grade II Mausoleum. There is a mature tree belt which provides some screening of the site from some of these structures. Any development would have to respect, and not cause harm to the significance and setting of these listed buildings. To the immediate north of the site is the Grade II Pompeian Cottage, built in 1830 by Sarah Losh as a school master's house, and a replica of a house excavated at Pompeii.

Flooding/drainage:

- main river runs down western side of site - 8m buffer would be required; and
- watercourse would provide point of discharge.

2 Appendix 2

Local Plan Monitoring Framework

The below schedule should be read within the context of Chapter 11 of the Local Plan.



Appendix 2

Policy	Objective	Indicator	Trigger	Possible Actions	SA Objective
Spatial Strategy and Strategic Policies					
SP 1	Timely approval of applications that represent sustainable development	% applications determined within statutory timescales	Sustained poor performance	Review circumstances with Development Management and identify further actions as necessary	All
		% appeals dismissed			
SP 2	Delivery of at least 9,606 net additional dwellings between 2013 and 2030	Net cumulative total new dwelling completions	Negative deviation from trajectory for a sustained two year period	Depending on the scale and nature of the potential under-delivery/deviation, actions may include: • engaging with stakeholders; • the preparation of an interim position statement; • bringing forward additional allocations; and/or • a partial review of the Local Plan	1, 2, 5, 6, 7, 11, 13, 16
		Projected rates of delivery as illustrated through the housing trajectory	Anticipated or actual shortfall in five year supply of housing land		
	Approximately 70% of new homes delivered in the Urban area	Urban/rural split of gross housing completions	Actual and projected completions significantly deviating from target.		
	Five years of deliverable housing land at all times	Annual Five Year Housing Land Supply Position Statement	Anticipated or actual shortfall in five year supply of housing land		

Policy	Objective	Indicator	Trigger	Possible Actions	SA Objective
SP 2	Adequate delivery of and forward supply of employment land to support economic growth	Employment Land uptake (Ha) and type (B1/B2/B8)	Uptake analysis	Depending on the scale and nature of any shortfall, actions may include: • engaging with stakeholders; and/or • a partial review of the Local Plan	1, 2, 5, 6, 7, 11, 13, 16
		Amount of employment land available (Ha) and type (B1/B2/B8)	Diminishing forward supply of employment land (Ha) and type (B1/B2/B8)		
	Realisation of the opportunity presented by the part commercialisation of MOD Longtown (Solway 45)	Progress toward the delivery and take up of the opportunity	Stalled progress		
	Take up of additional 18,700 m ² (net) additional comparison retail floorspace between 2012 and 2030	New (net) Comparison Retail Floorspace	Under delivery and no forward supply		
	Respond to opportunities and encourage development on previously developed land	Amount of development on previously developed land	Little or no reuse of previously developed land		

Appendix 2

Policy	Objective	Indicator	Trigger	Possible Actions	SA Objective
SP 3	Masterplan and infrastructure delivery strategy in place for Carlisle South	Progress against timetable set out in LDS	Deviation from LDS without legitimate reason (as reported in the AMR)	• Review circumstances; • engage with stakeholders; • review LDS; and/or • secure additional resources to accelerate delivery	1, 13
	Housing delivery at Carlisle South in line with Masterplan	Actual dwelling completions at Carlisle South.	Housing/ infrastructure delivery not in accordance with Masterplan	Depending on the scale and nature of the potential under-delivery, actions may include: • engaging with stakeholders; and/or • partial Review of the Masterplan and IDP (including phasing)	
		Progress against delivery of required infrastructure			
SP 4	Protect and enhance the vitality and viability of the City Centre	City Centre Health Check	Sustained decline in health of City Centre	Depending on the scale and nature of the decline/lack of progress, actions may include: • review circumstances; • engage with stakeholders; and/or • partial review of the Local Plan	1, 2, 5, 6, 7, 11, 13, 16, 17
	Realisation of City Centre and Caldew Riverside development opportunities	Progress towards the realisation of identified opportunities	Lack of published year on year progress towards implementation of a deliverable scheme		

Policy	Objective	Indicator	Trigger	Possible Actions	SA Objective
SP 5	To protect and enhance the strategic connectivity of the District and support delivery of priorities as identified in the Infrastructure Delivery Plan and Local Transport Plan	Progress towards delivery of identified priorities	Stalled progress	Engage with stakeholders in particular in context with the IDP/ LTP	1, 2, 4, 7, 11, 12
SP6	High quality design which supports/ creates a strong sense of place	Policy usage	Decision monitoring	Review circumstances and if appropriate review Policy and alternatives	1, 9, 10, 12, 13, 14, 15, 16, 17
SP 7	To protect, enhance and enable the enjoyment of the District's heritage and cultural assets	Net change in designated heritage assets	Negative trends	Review circumstances, engage with stakeholders and consider options if necessary	1, 6, 16, 17
		Number of conservation areas with up to date appraisals and management plans	Deviation from agreed programme for appraisals		
		Number of designated heritage assets considered to be at risk	Negative trends		

Appendix 2

Policy	Objective	Indicator	Trigger	Possible Actions	SA Objective
SP 8	Protection and enhancement of an interconnected and multifunctional green and blue Infrastructure network	Policy usage and S 106 Monitoring	Decision monitoring	Engage with stakeholders in particular in context with the IDP	1, 3, 4, 5, 6, 7, 11, 12, 14, 15, 16, 18, 19
SP 9	Improve the health and sense of wellbeing of the District's population, and reduce health inequalities	Health Profile/Joint Strategic Needs Assessment of the District	Negative trends	Review circumstances, engage with stakeholders and consider options if necessary	1, 2, 4, 7, 8, 9, 11, 12, 13, 14, 19, 20
SP 10	To support efforts to up-skill the District's population	Levels of education attainment	Negative trends	Review circumstances, engage with stakeholders and consider options if necessary	1, 2, 13, 20
Economy					
EC 1	To support economic growth and increase the level of high value jobs within the local economy through making land available for employment land purposes	Take up of the allocated 45Ha employment land	No or limited prospect of take up of allocated land as reviewed annually	Depending on rate of delivery and/or speed of progress, actions may include: • engaging with stakeholders; • review evidence; and/or • a partial review of the Local Plan	1, 2

Policy	Objective	Indicator	Trigger	Possible Actions	SA Objective
EC 2	To safeguard primary employment areas to ensure land and premises are available to provide the wide variety of sites required to meet the needs of businesses across the plan period	Vacant floorspace (m2) and/or land on designated Primary Employment Areas	Sustained net increase in vacancy rates	Depending on the scale and nature of the position, action may include: • engaging with stakeholders; and/or • review appropriateness of designation	1, 2, 7, 20
		Loss of Primary Employment Areas (Ha) and/or floorspace (m ²) to non-employment (B1, B2, B8) uses	Sustained net loss of land (Ha) and/or floorspace (m ²) to non-employment (B1, B2, B8) uses		
EC 3	To maintain the vitality and viability of Primary Shopping Areas through the retention of high levels of retailing (Use Class A1) at ground floor levels	% of ground floor units within the Primary Shopping Areas in A1 use	Negative trend	Review circumstances and if appropriate review policy and alternatives	1, 2, 5, 6, 7, 11
		% of ground floor units within designated Primary Shopping Frontages in A1 use			

Appendix 2

Policy	Objective	Indicator	Trigger	Possible Actions	SA Objective
EC 4	Delivery of a District Centre	Progress towards the delivery and take up of the allocation including foodstore anchor	Lack of published year on year progress towards implementation of a deliverable scheme	Depending on rate of delivery and/or speed of progress, actions may include: • engaging with stakeholders; • review evidence; and/or • a partial review of the Local Plan	1, 2, 7, 11, 14
			Superseded master plan		
EC 5	To protect the vitality and viability of District and Local Centres	District and Local Centre Health Checks	Negative trends	Review circumstances and if appropriate review policy and designations	1, 2, 7, 11, 16, 20
EC 6	To protect the vitality and viability of defined retail centres through controlling inappropriate out of centre retail and leisure developments	Retail Centre Health Checks	Negative trends	Review circumstances and if appropriate review policy and alternatives	1, 2, 5, 7, 11
		New Comparison Retail floorspace (m2) in out of centre locations			
EC 7	To help establish a strong sense of place through well designed shop fronts	Policy usage	Decision monitoring	Review circumstances and if appropriate review policy and alternatives	7, 16, 17

Policy	Objective	Indicator	Trigger	Possible Actions	SA Objective
EC 8	To facilitate the creation of a vibrant and viable food and drink offer across the District	Retail Centre Health Checks	Negative trends	Review circumstances and if appropriate review policy and alternatives	1, 2, 7, 11, 20
		Policy usage	Decision monitoring		
EC 9	To protect and enhance the District's arts, cultural, tourism and leisure offer	Policy usage	Decision monitoring	Review circumstances and if appropriate review policy and alternatives	1, 2, 7, 11, 12, 14, 16
EC 10	To facilitate visitor accommodation in appropriate locations	Policy usage	Decision monitoring	Review circumstances and if appropriate review policy and alternatives	1, 2, 4, 16, 17
EC 11	To enable rural diversification in order to support the rural economy	Policy usage	Decision monitoring	Review circumstances and if appropriate review policy and alternatives	1, 2, 5, 16
EC 12	To support ongoing agricultural investment and activities within the District	Policy usage	Decision monitoring	Review circumstances and if appropriate review policy and alternatives	1, 2, 16, 20
EC 13	To support ongoing equestrian investment and activities within the District	Policy usage	Decision monitoring	Review circumstances and if appropriate review policy and alternatives	1, 2, 12, 16, 20

Appendix 2

Policy	Objective	Indicator	Trigger	Possible Actions	SA Objective
Housing					
HO 1	Site allocations contributing to housing delivery as anticipated	Delivery of site allocations in line with policy	Cumulative reduction in indicative yields	Depending on the scale and nature of any potential under-delivery, actions may include: • engaging with stakeholders; • bring forward additional allocations utilising evidence from the SHLAA; and/or • a partial review of the Local Plan	1, 2, 5, 6, 7, 11, 12, 13
			Allocations not coming forward within the plan period indicated.		
HO 2	Annual average of at least 100 windfall dwelling completions	Actual and projected rates of windfall delivery	Sustained lower windfall delivery rates	Review windfall rate employed in trajectory and land assessments	1, 2, 6, 9, 13
HO 3	To preserve the character and quality of housing areas	Policy usage	Decision monitoring	Review circumstances and if appropriate review policy and alternatives	1, 9, 13, 14, 16

Policy	Objective	Indicator	Trigger	Possible Actions	SA Objective
HO 4	To contribute towards meeting affordable housing needs through securing affordable homes from qualifying open market housing developments	No. of affordable homes delivered	Negative trends in percentages secured and delivered on sites	Review circumstances and if appropriate: - engage with stakeholders; - review housing need and/or viability evidence; - the preparation of an interim position statement; - bring forward additional allocations utilising evidence from the SHLAA; and/or - a partial review of the Local Plan	1, 6, 13, 14
		No. of affordable housing secured via Development Management process			
HO 5	To make provision for rural housing need	Policy usage	Decision monitoring	Review circumstances and engage stakeholders and if appropriate review Policy and alternatives	1, 2, 13
HO 6	To protect the open countryside from inappropriate housing development whilst recognising there may be special circumstances where new housing will be allowed	Policy usage	Decision monitoring	Review circumstances and if appropriate review policy and alternatives	1, 2, 5, 13, 14
HO 7	To assist in protecting Heritage Assets	Policy usage	Decision monitoring	Review circumstances and if appropriate review policy and alternatives	1, 5, 6, 9, 13, 17, 20

Appendix 2

Policy	Objective	Indicator	Trigger	Possible Actions	SA Objective
HO 8	To assist in adaption of existing dwellings to meet changes in lifestyle	Policy usage	Decision monitoring	Review circumstances and if appropriate review Policy and alternatives	1, 2, 9, 13, 16, 20
HO 9	To contribute to the mix of housing offer within the District	Policy usage	Decision monitoring	Review circumstances and if appropriate review Policy and alternatives	6, 10, 13, 14
HO 10	To contribute to the mix of housing offer within the District	Policy usage Number of additional specialist and/or supported housing units delivered	Decision monitoring No additional specialist and or supported housing units delivered	Review circumstances and engage stakeholders and if appropriate review Policy and alternatives	2, 7, 9, 11, 12, 13, 14
HO 11	To meet the accommodation needs of Gypsies and Travellers and Travelling Showpeople	Net increase in permanent pitches and plots delivered	Progress towards the build out of the allocations Sustained increase in number of unauthorised pitches/developments	Review circumstances and if appropriate: - engage with stakeholders; - review evidence; - bring forward additional allocations; and/or - a partial review of the Local Plan	11, 12, 13, 14
		Turnover on permanent sites	Lower than cumulative 10% turnover on rented sites within the District over a two year period		
		Net increase in transit pitches and plots delivered	Progress towards the build out of the allocations		
			Sustained increase in number of unauthorised encampments		

Policy	Objective	Indicator	Trigger	Possible Actions	SA Objective
HO 12	To protect the amenity of Primary Residential Areas	Policy usage	Decision monitoring	Review circumstances and if appropriate review Policy and alternatives	1, 2, 13, 14, 20
Infrastructure					
IP 1	To ensure timely delivery of infrastructure needed to support delivery of the Plan	Delivery mechanisms within IDP	Continued deficit as identified in the IDP	Engage with stakeholders in particular in context with the IDP	1, 3, 4, 6, 7, 11, 12, 14
IP 2	To minimise the impact of new developments on the transport network	Type, nature and location of new developments	Continued deficit as identified in the IDP	Engage with stakeholders in particular in context with the IDP	1, 2, 4, 7, 9, 11, 16, 18, 19, 20
IP 3	To ensure appropriate parking standards are adhered to	Compliance with any standards in operation	Deviation from LDS without legitimate reason (as reported in the AMR)	• Review circumstances; • engage with stakeholders; • review LDS; • secure additional resources to accelerate delivery; and/or • partial review of the Local Plan	1, 2, 6, 9, 13, 14
	Adoption of SPD setting out parking standards	Progress against timetable set out in LDS			
IP 4	To ensure new developments benefit from access to high speed internet	Policy usage	Decision monitoring	Engage with stakeholders in particular in context with the IDP	1, 2, 13
		Infrastructure Delivery Plan	Decision monitoring Continued deficit as identified in the IDP		

Appendix 2

Policy	Objective	Indicator	Trigger	Possible Actions	SA Objective
IP 5	To reduce the level of waste and improve levels of recycling	Levels of residual household waste per household (kg)	Negative trend	Engage with stakeholders and review circumstances and if appropriate review Policy and alternatives	4, 10 ,13, 19, 20
		Levels of household waste sent for re-use, recycling or composting (%)			
IP 6	To ensure sufficient capacity for foul water drainage to support growth	Policy usage	Decision Monitoring	Engage with stakeholders in particular in context with the IDP	3, 13, 20
		Infrastructure Delivery Plan	Continued deficit as identified in the IDP		
IP 7	To facilitate the ongoing operation of Carlisle Airport	Policy usage	Decision monitoring	Review circumstances and if appropriate review Policy and alternatives	1, 2
IP 8	To secure any measures agreed as necessary to make development acceptable in planning terms	S106/CIL monitoring as reported annually	Issues raised through the annual reporting	Depending on scale and nature of the issues, action may include: • engage with stakeholders; and/or • partial review of the Local Plan	1, 7, 11, 12, 13, 14

Policy	Objective	Indicator	Trigger	Possible Actions	SA Objective
Climate Change and Flood Risk					
CC1	To facilitate/enable development which contributes to generating renewable energy	Capacity in kW output of approved applications	Decline in the number of applications received and/or capacity kW output over a five year period	Depending on scale and nature of the decline, action may include: • engage with stakeholders; and/or • partial review of the Local Plan	1, 2, 4, 8, 10, 19
		Number of applications received			
CC 2	To facilitate/enable development which contributes to generating renewable energy from wind	Capacity in kW output of approved applications	Decline in the number of applications received and/or capacity kW output over a five year period	Depending on scale and nature of the decline, action may include: • engage with stakeholders; and/or • partial review of the Local Plan	1, 2, 4, 8
		Number of applications received			
	DPD to identify suitable areas for wind energy development is in place	Progress against timetable set out in LDS	Deviation from LDS without legitimate reason (as reported in the AMR)	• Review circumstances; • engage with stakeholders; • review LDS; and/or • secure additional resources to accelerate delivery	
CC 3	To ensure development proposals are energy efficient and resilient to the impacts of climate change	Policy usage	Decision monitoring	Review circumstances and if appropriate review Policy and alternatives	4, 8, 9, 10, 13

Appendix 2

Policy	Objective	Indicator	Trigger	Possible Actions	SA Objective
CC 4	No development which would be subject to flood risk or increase the possibility of flood risk elsewhere	Number of applications granted against flood authority advice	Negative trend	Engage with stakeholders in particular in context with the IDP	1, 3, 4, 13, 14, 20
CC 5	Prioritisation of SUDs in new development sites	Number of applications approved contrary to advice of appropriate bodies	Year on year increase in number of applications approved contrary to advice of appropriate bodies	Depending on the scale and nature of issues, actions may include: • engage with stakeholders; and/or • consider introduction of further guidance /SPD	3, 4, 9, 12, 13, 14, 15
Health, Education and Community					
CM 1	Support New Health Care Provision	Type, nature and location of new healthcare provision	Continued deficit as identified in the IDP	Engage with stakeholders in particular in context with the IDP	1, 12, 14
CM 2	Support Educational Provision	Sufficient capacity to support proposed growth	Continued deficit as identified in the IDP	Engage with stakeholders in particular in context with the IDP	1, 2
CM 3	Avoid loss of valued community facilities and services	Policy usage	Decision monitoring	Review circumstances and if appropriate review Policy and alternatives	1, 2, 7, 12, 14
		Number of facilities registered as a Community Asset	Increase of assets at risk		

Policy	Objective	Indicator	Trigger	Possible Actions	SA Objective
CM 4	Design of development deters crime	Policy usage	Decision monitoring	Review circumstances and if appropriate review Policy and	1, 4
CM 5	To protect the environmental and residential amenity	Policy usage	Decision monitoring	Review circumstances and if appropriate review Policy and alternatives	3, 4, 5, 6, 10, 12, 13, 14, 15, 16, 18, 19, 20
CM 6	To facilitate and enable additional cemetery and burial grounds	Type, nature and location of new cemetery provision	Continued deficit as identified in the IDP	Engage with stakeholders in particular in context with the IDP	3, 4, 12, 18, 20
Historic Environment					
HE 1	To protect Hadrian's Wall World Heritage Site from inappropriate development	Policy usage	Decision monitoring	Review circumstances and engage with stakeholders	1, 12, 16, 17
HE 2	To protect scheduled and non-designated archaeological assets as a resource for research, education, leisure, tourism and for their influence on perceptions of identity and sense of place	Net change in designated heritage assets	Negative trends	Review circumstances and if appropriate review Policy and alternatives	1, 16, 17

Appendix 2

Policy	Objective	Indicator	Trigger	Possible Actions	SA Objective
Historic Environment					
HE 3	To protect buildings and/or structures that have been placed on the Statutory List of Buildings of Special Architectural or Historic Interest	Net change in designated Heritage Assets	Negative trends	Review circumstances and if appropriate review Policy and alternatives	1, 6, 9, 16, 17
HE 4					1, 12, 15, 16, 17
HE 5					1, 12, 15, 16, 17
HE 6	To protect locally important heritage assets that have not been placed on the Statutory List of Buildings of Special Architectural or Historic Interest	Policy usage	Decision monitoring	Review circumstances and if appropriate review Policy and alternatives	1, 6, 9, 16, 17
		No of assets included on a Local List	Negative trends		
HE 7	To preserve or enhance the character and appearance of conservation areas	Policy usage	Decision monitoring	Review circumstances and if appropriate review Policy and alternatives	1, 6, 9, 16, 17

Policy	Objective	Indicator	Trigger	Possible Actions	SA Objective
Green Infrastructure					
GI 1	To protect against insensitive development	Policy usage	Decision monitoring	Review circumstances and if appropriate review Policy and alternatives	1, 12, 14, 15, 16, 20
GI 2	To protect and enhance the natural beauty and special characteristics and landscape quality of the Solway Coast and the North Pennine AONBs	Policy usage	Decision monitoring	Review Policy and alternatives	1, 9, 12, 14, 15, 16, 17
GI 3	No net loss of biodiversity or geodiversity	Net change in designated biodiversity and geodiversity assets	Negative trend	Review circumstances and if appropriate review Policy and alternatives	3, 4, 15, 16, 18, 19
GI 4	No unacceptable loss of public open space	Amount of public open space (Ha) lost	Loss of public open space / failure to provide new provision contrary to advice of the Council's Green Spaces team	Depending on the scale and nature of issues, actions may include: • engage with stakeholders; • consider introduction of further guidance /SPD; and/or • partial review of the Local Plan	1, 4, 11, 12, 14, 15, 16, 18, 19, 20
	Ensuring new housing developments in excess of 20 units, where required, provide or contribute to the creation of additional public open space	Amount (Ha) of public open space secured on new housing developments			

Appendix 2

Policy	Objective	Indicator	Trigger	Possible Actions	SA Objective
GI 5	No net loss of public rights of way	Amount of public rights of way (Km)	Negative trend	Review circumstances and if appropriate review Policy and alternatives	1, 2, 7, 11, 12, 14, 16, 18, 19
GI 6	No unauthorised loss of trees subject to a TPO or hedgerows qualifying as 'important' under the Hedgerow Regs 1997	Number of TPOs	Negative trend	Review circumstances and if appropriate review Policy and alternatives	4, 15, 16, 18, 19
		Amount of 'important' hedgerows			



Images courtesy of Eden Housing Association, Nick Fox and Graeme Peacock